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No. 374

DECEMBER, 1846

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BLACKWOOD'S EDINBURGH MAGAZINE.

No. CCCLXXIV.

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VOL. LX.

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KOHL IN DENMARK AND IN THE MARSHES.

Die Marschen und Inseln der Herzogthümer Schleswig und Holstein. Reisen in Dänemark und den Herzogthümer Schleswig und Holstein.

Mr. Kohl, the most prolific of modern German writers, the most indefatigable of travellers, is already well known to the English public by his "Sketches of the English," "Travels in Ireland," and many other publications too numerous to remember. He is a gentleman of marvellous facility in travelling over foreign ground—of extraordinary capabilities in the manufacturing of books. Within five years he has given to the world, hostages for fame, some thirty or forty volumes; and explored, socially, politically, scientifically, and æsthetically, North and South Russia, Poland, Moravia, Hungary, Bavaria, Great Britain, France, Denmark, and we know not how many other countries besides. It is as difficult to stop his pen as his feet. He is always trotting, and writing whilst he trots, and evidently without the smallest fatigue from either occupation. He plays on earth the part assigned to the lark above it by the poet: he,

"Singing, still doth soar; and soaring, ever singeth."

He has already announced a scheme that has occurred to him for a commercial map, which shall contain, in various colours, the productions and raw materials of every country in the world, with lines appended, marking the course they take to their several ports of embarkation. We shrewdly suspect that this gigantic scheme has grown out of another, more personal and profitable, and already put in practice. We could almost swear that Mr Kohl had drawn up a literary map on the very same principle, with dots for the countries and districts to be visited and worked up, and lines to mark the course for the conveyance of that very raw material, which he is eternally digging up on the way, in the shape of disquisitions about nothing, and moral reflections on every thing. Denmark occupies him to-day. We

will wager that he is already intent upon working out an article or book from neighbouring Norway or adjacent Sweden.

It was remarked the other day by a writer, that one great literary fault of the present day is a desire to be "so priggishly curt and epigrammatic," that almost every lucubration comes from the furnace with a coating of "small impertinence," perfectly intolerable to the sober reader. If any writer is anxious to correct this fault, let him take our advice gratis, and sit down at once to a course of Kohl. So admirable a spinner of long yarns from the smallest threads, never flourished. We have most honestly and perseveringly waded through his eleven or twelve hundred pages of close print, and we unhesitatingly confess that we have never before perused so much, of which we have retained so little. Does not every man, woman, and child, in these days of cheap fares and everlasting steamers, know by heart all that can be said or sung about "tones from the sea?" Are they not to be summoned, at any given moment, under any given circumstances, by your fire at twilight, on your pillow at midnight? Mr Kohl proses about these eternal "tones," till salt water becomes odious—about storms, till they calm you to sleep—about calms, till they drive you to fury—about winds and waves, till your head aches with their motion. We will not pretend to tell you, reader, all the differences that exist between high marsh-land and low marsh-land, broad dikes and narrow dikes, or to describe the downs and embankments which we have seen, go whithersoever we may, ever since we have risen from the perusal of Mr Kohl's book. We will not, because Mr Kohl has dealt hardly by us, have our revenge upon you. Nay, we could not, if we would. The picture is jumbled in our critical head, as it lies confused in the author's work, which is as disjointed a labour as ever puzzled science seeking in chaos for a system. Backwards and forwards he goes—now up to his head in the marshes, now lighting upon an island, disdaining geography, giving the go-by to history, dragging us recklessly through digressions, repudiating any thing like order, and utterly oblivious of that beautiful scheme so dear to his heart, by which we are to trace the natural course of every thing under the sun but the narrative of Mr Kohl's very tedious adventures.

Mr Kohl knows very well what is the duty of a faithful delineator of foreign countries and manners. He acknowledges in his preface, that his work is rather a make-up of simple remarks than a comprehensive

description of the countries named in the titlepage. This confession is not—as is often the case—a modest appreciation of great merits, but a true estimate of small achievements. It is the simple fact. As for the consolatory reflections of the author, that he has at all events proved that he knows more of the lands he describes than his countrymen who stay at home, it is of so lowly a character that we are by no means disposed to discuss it. When he adds, however, that he has already earned a kind reception from the world, and trusts to be reckoned amongst the men who have been useful, we may be permitted to hint, that neither a kind reception nor the quality of usefulness will long be vouchsafed to the individual who leads confiding but unfortunate readers a Will-o'-the-Wisp chase over bogs and moors that have no end, and compels them to swallow, diluted in bottles three, the draught which might easily have found its way into an ordinary phial.

That there are gems in the volumes cannot be denied: that they are not of the first water, is equally beyond a doubt. Scattered over a prodigious surface, they have not been gained without some difficulty. Those who are not able or disposed to turn to the original, will be glad to learn from us something of the sturdy Frieslanders and Ditmarschers. They who have energy and patience enough to overcome the prolixity of the author, will at least give us credit for some perseverance, and appreciate the difficulties of our task.

Mr Kohl commences his work with a description of the *Islands*. We will follow the order of the titlepage, and begin with the "Marshes" and their brave and hardy inhabitants. The author informs us, with pardonable exultation, that, upon asking a German of ordinary education whether he knew who the Ditmarschers are, he was most satisfactorily answered, "*Ja wohl!* are they not the famous peasants of Denmark who would not surrender to the king?" We question whether many Englishmen, of even an extraordinary education, would have answered at once so glibly or correctly. To enable them to meet the question of any future Kohl with promptness and success, we will introduce them at once to this singular race, and give a rapid sketch of their country and political existence.

The territory inhabited by the Ditmarschers is a small district of flat country, stretching along the Elbe and the Eyder, and is about a hundred miles in length. Its maritime frontier was originally defended by lofty mounds, which opposed the encroachments of the sea; whilst inland it

found protection in an almost impenetrable barrier of thick wood, bogs, lakes, and morass. This barrier constitutes the marshes so minutely described by our author. The Ditmarschers are a people of Friesic origin; the name, according to Mr Kohl, being derived from *Marsch*, *Meeresland*, sea-land, and *Dith*, *Thit*, or *Teut*, *Deutsch*, German. In the time of Charlemagne, or his immediate successors, the district was included in the department of the Mouth of the Elbe, and was known as the Countship of Stade. It was bestowed by the Emperor Henry IV., in 1602, upon the archbishops of Bremen, to be held by them in fief. The Ditmarschers, however, were but slippery subjects; and, maintaining an actual independence within their embankments, cared little who governed them, provided sufficient advantages were offered by the prince or prelate who demanded their allegiance. In 1186, we find them claiming the protection of Bishop Valdemar of Sleswig, the uncle and guardian of Prince Valdemar, afterwards known as Valdemar the conqueror; for, "being grievously worried by the oppressions of the bailiffs of their spiritual Lord," they declared a perfect indifference as to "whether they paid tribute to Saint Peter of Bremen, or Saint Peter of Sleswig." They passed from the rule of Bishop Valdemar, who was subsequently excommunicated, to that respectively of the Duke of Holstein, the Bishop of Bremen, and Valdemar II., King of Denmark. When the last-named monarch gave battle to his revolted subjects at Bornhöved in Holstein, in the year 1227, the Ditmarschers suddenly united their bands with those of the enemy, and decided the fate of the day against the king. They then returned to the rule of the bishops of Bremen, stipulating for many rights and privileges, which they enjoyed unmolested during 300 years; that is to say, up to the year 1559, whilst they yielded little more than a nominal obedience to their spiritual lords, and evinced no great alacrity in assisting them in times of need.

During their long period of practical independence and freedom, the Ditmarschers governed themselves like stanch republicans. Their grand assembly was the *Meende*, to which all citizens were eligible above the age of eighteen. It met in extraordinary cases at Meldorf, the capital: but commonly seventy or eighty *Radgewere*, or councillors, decided upon all questions of national policy propounded to them by the *Schlüter*, or overseers of the various parishes into which the district was divided, who generally managed the affairs of their own little municipality independently

of their neighbours. This simple institution underwent some modifications about the middle of the fifteenth century, when, in consequence of internal dissensions, eight-and-forty men were chosen as supreme judges for life. These "*achtundveertig*" had, however, but little real power. They met weekly; but on great emergencies they summoned a general assembly, amounting to about 1500 persons, and consisting of the various councillors and *schlüter*. This assembly held forth in the market-place of the capital. The masses closely watched the proceedings, and when it was deemed necessary, called upon one of their own number to address the meeting on behalf of the rest.

The peace enjoyed by the Ditmarschers from without, contrasted strongly with the tumults that were often experienced within. The annals of these people inform us, that whole families and races were from time to time swept away by the hand of the foe, and by the violence of party spirit. The Ditmarschers celebrate several days as anniversaries of victories. One, the *Hare* day, dates as far back as 1288, when a party of Holsteiners made an incursion into the marshes, but were speedily opposed by the natives. For a time the two hostile bands watched each other, neither willing to attack, when a hare suddenly started up between them. Some of the Ditmarschers, pursuing the frightened animal, exclaimed *Löp, löp!*—"Run, run!" The foremost Holsteiners, seeing the enemy approaching at full speed, were thrown into confusion; whilst those behind them, hearing the cry of "run, run!" took to their heels, and a general rout ensued. The day of "melting lead" is another joyful anniversary. Gerard VII. of Holstein, endeavouring in 1390^[1] to subjugate the country of the Ditmarschen, drove the people at the crisis of an assault to such extremities, that they were obliged to take refuge in a church, which they obstinately defended against the Duke's troops, until Gerard, infuriated, ordered the leaden roof of the building to be heated. The melted lead trickled down on the heads of the Ditmarschers, who, finding themselves reduced to a choice of deaths, desperately fought their way out, engaged the Holsteiners, whom they overcame, and who, ignorant of the country, were either lost in the intricacies of the marshes or drowned in the dikes. The forces of a count, a duke, and a king, were in turns routed by the brave Ditmarschers, who have not yet forgotten the glory of their ancient peasantry. In 1559, however, they ceased to gain victories for celebration. In that year Denmark and the Duchies united to subdue the small but very valiant nation. They marshalled an army of

twenty-five thousand picked men, whilst the Ditmarschers could with difficulty collect seven thousand. John Rantzan commanded the allied army. He captured Meldorf, set fire to the town, pursued the inhabitants in all directions and destroyed the greater number whilst they were nobly fighting for their liberties. Utterly beaten, the Ditmarschers submitted to their conquerors. Three of the clergy proceeded to the enemy, bearing a letter addressed to the princes as "The Lords of Ditmarschen," and offering to surrender their arms and ammunitions, together with all the trophies they had ever won. A general capitulation followed: not wholly to the disadvantage of the people, since it was stipulated that none but a native of the country should hold immediate authority over it. At first the land was divided amongst the sovereigns of Denmark, Holstein, and Sleswig; but in 1773 it was finally ceded in full to the Danish monarch, together with part of Holstein, by the Duke of Schleswig-Holstein, (afterwards Grand-Duke of Russia,) in exchange for Oldenburg and Delmenhorst. The Ditmarschers, at the present hour enjoy many of their former privileges: they acknowledge no distinctions of rank; they have their forty-eight Supreme Judges (the ancient *schlüter*) under the name of *Vögte* or overseers, and may, in fact, be regarded as one of the best samples of republicanism now existing in the world.

Thus much for their history. Of their far-farmed dikes and sluices, of the marsh-lands and downs which their embankments inclosed, much more may be said, for Mr Kohl devotes half his work to their consideration. We will not fatigue the indulgent reader by engaging him for a survey. The land is distinguished by the inhabitants by the terms *grest* and *marsch*; the former being the hilly district, the latter the deposits from the sea:—the one is woody in parts, having heath and sand, springs and brooks: the other is flat, treeless, heathless, with no sand or spring, but one rich series of meadows, intersected in every direction by canals and dikes. Far as the eye can reach, it rests upon broad and fertile meads covered with grazing cattle; whilst from the teeming plain stand forth farm-houses innumerable, raised upon *wurten*, or little hillocks, some ten or twelve feet above the level of the land, for security against constantly recurring inundation. All external appliances needful for the establishment are elevated upon these heights, whose sides are, for the most part, covered with vegetable gardens, and here and there with flowers and shrubs. The houses have but one story; they are long, and built of brick. For protection against the unsteady soil, they are

often supported by large iron posts projecting from the sides, and looking like huge anchors. There are few villages or hamlets in the marshes. The inhabitants are not gregarious, but prefer the independence of a perfectly insulated abode. The "threshold right" is still so strictly maintained amongst them, that no officer of police dare enter, unpermitted, the house of a Ditmarscher, or arrest him within his own doors.

The roads in the marshes, as may be supposed, are, at times, almost impassable; riding is therefore more frequent than driving or walking, although many of the more active marshers accelerate their passage across the fens by leaping-poles, which they employ with wonderful dexterity. The women ride always behind the men, on a seat fastened to the crupper. As the dikes lie higher than the meadows, they prove the driest road for carriages and passengers; but they are not always open to the traveller, lest too constant a traffic should injure the foundations. The carriages chiefly used are a species of land canoe. They are called *Körwagen*, and are long, narrow, and awkward. On either side of the vehicle, chairs or seats swing loosely. No one chair is large enough for the two who occupy it, and who sit with their knees closely pressed against the seat which is before them.

The process of gradually reclaiming new land from the waves is somewhat curious. As soon as a sufficient amount of deposit has been thrown up from the sea, outguards, or breakwaters, called *höfter* are immediately erected. Within the breakwater there remains a pool of still water, which by degrees fills up with a rich slime or mud called *slick*. As soon as the slick has attained an elevation sufficient to be above the regular level of the high waves, plants styled "*Queller*" appear, and are soon succeeded by others termed *Drücknieder*, from the tendency of their interlaced roots and tendrils to keep down the soft mud. In the course of years, the soil rises, and a meadow takes the place of the former stagnant pool. As these new lands are extremely productive, often yielding three hundred-fold on the first crop of rape-seed, sixty to eighty fold on barley, and from thirty to forty on wheat, their possession is ever a subject of great dispute. Formerly the diking and embankments were undertaken by companies; but at present they are in the hands of the Danish government, which makes all necessary outlay in the beginning, and appropriates whatever surplus may remain upon the original cost to future repairs and to the aid of the general poor fund. Some slight idea may be formed of the

enormous expense incurred in the construction and maintenance of these dikes, when we state that the *Dagebieller* dike alone cost ten thousand dollars for one recent repair. Ninety thousand dollars were one summer spent in building embankments around reclaimed land, now valued at one hundred and fifty thousand dollars, thus showing a clear gain of sixty thousand dollars by the undertaking. The embankments are generally from fifteen to twenty feet high. When the nature of the soil upon which they are raised is considered, together with the scarcity of wood on these low lands, it will not be difficult to understand that constant labour is needed to prevent the land from being undermined by the sea, and that it is only by unremitting industry, and constant attention to the condition of the breakwaters and dikes, that the enemy can at all be kept at bay.

The dangers that are to be encountered, and the laborious efforts that must be made for subsistence at home, train the Frieslander of the marshes and islands for the perils of the deep, which we find him encountering with a brave and dogged resolution. The islanders, especially, are constantly engaged in the whale and other fisheries. In the islands visited by Mr Kohl, the greater number of the men were far away on the seas, and their wives and daughters conducting the business of their several callings; some tending cattle, some spinning, others manufacturing gloves. Seals abound upon the coast, and are caught by sundry ingenious devices. A fisher disguises himself in a seal-skin, and travels up to a troop of these sea monsters, imitating, as far as he is able, their singular movements and contortions. When, fairly amongst them, he lifts the gun which has been concealed beneath his body, and shoots amongst the herd. If discovered asleep a seal is sure to be caught, for his slumbers are sound. Conscious of his weakness, *Phoca* stations a patrol at some little distance from his couch, and an alarm is given as soon as any man appears. At certain seasons of the year vast flocks of ducks light upon the islands, and are caught chiefly by the aid of tame decoy-birds, who mislead the others into extensive nets spread for the visitors. One duck-decoyer will catch twenty thousand birds in the course of a summer; the soft down obtained from the breast of one species is the *eider down*. The season begins in September and lasts till Christmas. Hamburg beef is due to the localities we speak of. One of the large meadow districts already mentioned, is said to fatten eight thousand head of oxen yearly, who, at their death, bequeath to the world the far-famed dainty.

The islands visited by our author are those lying in that part of the North Sea which the Danes call *Vesterhafet*, or the western harbour, and which extends close to the shores from the mouth of the Elbe to Jutland. Of these the most noted are Syltøe, Føehr, Amrum, Romø, and Pelvorn. Around them lie many excellent oyster-beds—royal property, and yielding an annual income of twenty thousand dollars. The people inhabiting these islands are said to be of Friesic origin: they certainly were colonists from Holland, and they still exhibit many peculiarities of the ancient Friesic stock. They are clean, neat, simple, honest, and moral. Few establishments for the punishment of culprits are to be found either in the islands or on the marshes. As late as the fifteenth and sixteenth century, in cases of homicide the accused was doomed to walk over twelve burning ploughshares. Great crimes seem unknown to-day; and the practice of leaving house-doors unbarred and unlocked upon the wide and desolate marshes, testifies not a little to the general honesty of the people.

Mr Kohl talks a whole boxfull of balaam about the identity of the islanders and the English. In the first place, he insists that *Hengist* and *Horsa* were gentlemen of Friesic extraction; and secondly, he compares them to a spirituous liquor: thirdly, he argues on the topic like a musty German bookworm, who has travelled no further than round his own room, and seen no more humanity than the grubby specimen his looking-glass once a-week, at shaving time, presents to him. What authority has Mr Kohl for this Friesic origin of Hengist and Horsa? Is there a port along the Elbe and the Weser, or on the coasts of Jutland and Holstein, which does not claim the honour of having sent the brothers out? Is not the question as difficult to decide, the fact as impossible to arrive at, as Homer's birthplace? But supposing the hypothesis of Mr Kohl to be true, he surely cannot be serious when he asserts, that the handful of men who landed with the brothers in Britain, have transmitted their Friesic characteristics through every succeeding age, and that these are discernible now in all their pristine vigour and integrity. Can he mean what he says? Is he not joking when he puts forward the "rum" argument? A little of that liquor, he says, flavours a bowl of punch. Why shouldn't a little Friesic season the entire English nation with the masculine force of the old Teutonic Frieslanders? Why should it? If Hengist and Horsa supplied the rum, who, we are justified in asking, came down with the sugar and lemon? If the beverage be milk-punch, who was the dairyman? These are questions quite as apt as Mr

Kohl's, not a whit more curious than his illustrations. The points of identity between the Frieslander and the Englishman are marvellous, if you can but see them. The inhabitants of the marshes and islands are grave, reserved, and thoughtful; so are the English; so, for that matter, are the Upper Lusatians, if we are to believe Ernst Willkomm; so are a good many other people. The marshers have an eye to their own interests; so have the English. This is a feature quite peculiar to the marshers and the English. It may be called the *right* eye, every other nation possessing only the left. Of course, Mr Kohl is perfectly blind to his interests, in publishing the present work: yet he is Friesic too! From the Frieslanders we have inherited our "English spleen." How many years have we been attributing it to the much maligned climate? We are starched and stiff; so are the islanders. The marshers dress a May king and queen at a spring festival. We know something about a May queen at the same blessed season. If these were the only instances of kindred resemblance, our readers might fail to be convinced, after all, of the truth of the Friesic theory. These doubts, if any linger, shall be removed at once. One morning a Frieslander carefully opened Mr Kohl's door, and said, "*I am afraid* there is a house on fire." Kohl rushed forth and found the building in flames; which incident immediately reminded him—he being a German and a philosopher—of the excessive caution of the Englishman, which, under the most alarming circumstances, forbids his saying any thing stronger than "I believe," "I am afraid," "I dare say." Verily we "believe," we are "afraid," we "dare say," that Mr. Kohl is a most incorrigible twaddler. One more peculiarity remains to be told. They keep gigs in the marshes. There are "gentlemen" there as well as in England. Are there none elsewhere?

The customs of the Ditmarschers could not fail to be interesting. That of the *Fenstern* or *Windowing* is romantic, and perilous to boot. At dead of night, when all good people are asleep, young gallants cross the marshes and downs for miles to visit the girls of their acquaintance, or it may be *the* girl of fairest form and most attractions. Arrived at the house, they scale the walls, enter a window, and drop into the chamber of the lady, who lies muffled up to the chin on a bed of down, having taken care to leave a burning lamp on the table, and fire in the stove, that her nocturnal callers may have both light and warmth. Upon the entrance of her visitor, she politely asks him to be seated—his chair being placed at the distance of a few feet from the bed. They converse, and the conversation being brought

to an end, the gallant takes his departure either by the door or window. Some opposition has been shown of late to this custom by a few over-scrupulous parents; but the fathers who are bold enough to put bolts on their doors or windows, are certain of meeting with reprisals from the gallants of the district. The *Fenster* is subject to certain laws and regulations, by which those who practise it are bound to abide. Another curious custom, and derived like the former from the heathen, was the dance performed at the churching of women up to the close of the last century—the woman herself wearing a green and a red stocking, and hopping upon one leg to church. The Friesic women are small and delicately formed: their skin, beautifully soft and white, is protected most carefully against the rough atmosphere by a mantle, which so completely covers the face, that both in winter and summer little can be seen beyond the eyes of the women encountered in the open streets. The generally sombre hue of the garments renders this muffling the more remarkable; for it is customary for the relatives of those who are at sea to wear mourning until the return of the adventurers. Skirt, boddice, apron, and kerchief, all are dark; and the cloth which so jealously screens the head and face from the sun and storm, is of the same melancholy hue.

The churchyards testify to the fact, that a comparatively small number of those who, year after year, proceed on their perilous expeditions, return to die at home. The monuments almost exclusively record the names of women—a blank being left for that of the absent husband, father, or brother, whose remains are possibly mouldering in another hemisphere. Every device and symbol sculptured in the churchyard has reference to the maritime life, with which they are all so familiar. A ship at anchor, dismasted, with broken tackle, is a favourite image, whilst the inscription quaintly corresponds with the sculptured metaphor. It is usual for the people to erect their monuments during life, and to have the full inscriptions written, leaving room only for the *date* of the decease. In the island of Fœhr and elsewhere, the custom still prevails of hiring women to make loud lamentations over the body, as it is carried homewards and deposited in the earth. The churches are plain to rudeness, and disfigured with the most barbarous wood carvings of our Saviour, of saints, and popes. These rough buildings are, for the most part, of great antiquity, and traditions tell of their having been brought from England. There can be no doubt that British missionaries were here in former days. At the time of the Reformation, the

islanders refused to change their faith; but once converted to Lutheranism, they have remained stanch Protestants ever since, and maintain a becoming veneration for their pastors. The clergy are natives of the islands, and therefore well acquainted with the Friesic dialect, in which they preach. Their pay is necessarily small, and is mostly raised by the voluntary contributions of the parishioners. As may be supposed, the clergy have much influence over the people, especially on the smaller islands, where the inhabitants have but little intercourse with strangers. Temperance societies have been established by the pastors. Brandy, tea, and coffee, came into general use throughout the islands about a century ago, and ardent drinking was in vogue until the interference of the clergy. The Ditmarschers especially, who are allowed to distil without paying excise duties, carried the vice of drunkenness to excess; but they are much improved.

The greatest diversity of languages, or rather of dialects, exists in the islands, arising probably from the fact of Friesic not being a written language. The dialect of the furthest west approaches nearer to English than any other. The people of *Amrum* are proud of the similarity. They retain the *th* of the old Icelandic, and have a number of words in which the resemblance of their ancient form of speech to the old Anglo-Saxon English is more apparent than in even the Danish of the present day; as, for instance, *Hu mani mile?* How many miles? *Bradgrum*, bridegroom; *theenk*, think, &c. In many of the words advanced by Mr Kohl, that gentleman evidently betrays an unconsciousness of their being synonymous with the modern Danish; and, therefore, strikingly inimical to his favourite theory of the especial Friesic descent of the English people and language. Little or nothing is known of the actual geographical propagation of the old Friesic. At present it is yielding to the Danish and the Low German in the duchies of Sleswig and Holstein. Many names are still common amongst the people, which seem to have descended from the heathen epoch, and which are, in fact, more frequently heard than the names in the "Roman Calendar," met with elsewhere. *Des*, *Edo*, *Haje*, *Pave*, *Tete*, are the names of men; *Ehle*, *Tat*, *Mantje*, *Ode*, *Sieg*, are those of women. None of them are known amongst any other people. Much confusion exists with respect to the patronymic, there being no surnames in use in many of the islands. If a man were called *Tete*, his son *Edo* would be *Edo Tetes*; and then, again, *Tat*, the wife of the *Edo*, would be *Tat Edos*, and his son *Des*, *Des Edos*; whilst

Des's son *Tete* would be *Tete Des's*, and so on in the most troublesome and perplexing combinations.

The Frieslanders, like other northern nations, are superstitious, and they have a multitude of traditions or sagas, some of them very curious and interesting. We must pass over these instructive myths—always the rarest and most striking portion of a people's history—more cursorily than we could wish, and cite a few only of the most peculiar. The island of *Sylt*, which is the richest in remains of *höogen*, the celts of heathen heroes, &c., lays claim to the largest number of *Märchen*. The most characteristic of all is that of *de Mannigfuel*, the "colossal ship," (or world,) which was so large that the commander was obliged to ride about the deck in order to give his orders: the sailors that went aloft as boys came down greyheaded, so long a time having elapsed whilst they were rigging the sails. Once, when the ship was in great peril, and the waters were running high, the sailors, disheartened by their protracted watching and labour, threw out ballast in order to lighten the vessel, when, lo! an island arose, and then another, and another still, till land was formed—the earth being, according to the sailors' notion, the secondary formation. Once—many ages afterwards—when the *Mannigfuel* was endeavouring to pass through the Straits of Dover, the captain ingeniously thought to have the side of the vessel, nearest Dover, rubbed with white soap, and hence the whiteness of the cliffs at Dover. The achievements recounted of *de Mannigfuel* are endless. The following explanation of the formation of the Straits of Dover is found in a Friesic saga:—Once upon a time, a queen of England, the land to the west of the North Sea, and a king of Denmark, the land to the east of the North Sea, loved each other, and plighted troth; but, as it happened, the king proved faithless, and left the poor queen to wear the willow. England was then joined to the Continent by a chain of hills called *Höneden*; and the queen, desiring to wreak vengeance on her false wooer and his subjects, summoned her people around her, and setting them to work for seven years in digging away these hills, at the end of the seventh year the waves pushed furiously through the channel that had been dug, and swept along the coasts of Friesland and Jutland, drowning and carrying away 100,000 persons. To this very hour the Jutland shores yearly tremble before the fatal vengeance of the slighted queen. The Frieslanders are so wedded to this marvellous geological myth, that they insist upon its historical foundation. In some

versions 700, in others 7000, in others again, even 700,000 men are said to have been employed in this gigantic undertaking.

Another allegorical saga is the narrative of the share taken by the man in the moon in the matter of the daily ebbing and flowing of the sea. His chief, or indeed only occupation, seems to be to pour water from a huge bucket. Being somewhat lazy, the old gentleman soon grows weary of the employment, and then he lies down to rest. Of course whilst he is napping, the water avails itself of the opportunity to return to its ordinary level.

The constellation of the Great Bear, or Charles's Wain, is, according to the Frieslanders, the chariot in which Elias and many other great prophets ascended into heaven. There being now-a-days no individual sufficiently pious for such a mode of transit, it has been put aside, with other heavenly curiosities, its only office being to carry the angels in their nocturnal excursions throughout the year. The angel who acts as driver for the night, fixes his eye steadily upon the centre point of the heavenly arch, (the polar star,) in order that the two stars of the shaft of the chariot may keep in a straight line with the celestial focus. The rising and setting of the sun is thus explained:—A host of beautiful nymphs receive the sun beneath the earth in the western hemisphere, and cutting it into a thousand parts, they make of it little air balloons, which they sportively throw at the heavenly youths, who keep guard at the eastern horizon of the earth. The gallant band, not to be outdone by their fair antagonists, mount a high ladder, and when night has veiled the earth in darkness, toss back the golden balls, which, careering rapidly through the vault of heaven, fall in glittering showers upon the heads of the celestial virgins of the west. The children of the sky, having thus diverted themselves through the night, they hasten at dawn of day to collect the scattered balls, and joining them into one huge mass, they bear it upon their shoulders, mid singing and dancing, to the eastern gates of heaven. The enchanting rosy light which hovers round the rising orb is the reflection of the virgins' lovely forms, who, beholding their charge safely launched upon its course, retire, and leave it, as we see it, to traverse the sky alone.

The following exquisite tradition connects itself with that brief season when, in the summer of the far north, the sun tarries night and day above the horizon. *All-fader* had two faithful servants, of the race of those who enjoyed eternal youth, and when the sun had done its first day's course, he

called to him *Demmarik*, and said, "To thy watchful care, my daughter, I confide the setting sun that I have newly created; extinguish its light carefully, and guard the precious flame that no evil approach it." And the next morning, when the sun was again about to begin its course, he said to his servant *Koite*, "My son, to thy trusty hand I remit the charge of kindling the light of the sun I have created, and of leading it forth on its way." Faithfully did the children discharge the duties assigned to them. In the winter they carefully guarded the precious light, and laid it early to rest, and awakened it to life again only at a late hour; but, as the spring and summer advanced, they suffered the glorious flame to linger longer in the vault of heaven, and to rejoice the hearts of men by the brightness of its aspect. At length the time arrived when, in our northern world, the sun enjoys but brief rest. It must be up betimes in the morning to awaken the flowers and fruit to life and light, and it must cast its glowing beams across the mantle of night, and lose no time in idle slumber. Then it was that *Demmarik*, for the first time, met *Koite* face to face as she stood upon the western edge of heaven, and received from the hands of her brother-servant the orb of light. As the fading lamp passed from one to the other, their eyes met, and a gentle pressure of their hands sent a thrill of holy love through their hearts. No eye was there save that of the *All-fader*, who called his servants before him, and said, "Ye have done well; and as recompense, I permit ye to fulfil your respective charges conjointly as man and wife." Then, *Demmarik* and *Koite*, looking at each other, replied—"No, *All-fader*! disturb not our joy; let us remain everlastingly in our present bridal state; wedded joy cannot equal what we feel now as betrothed!" And the mighty *All-fader* granted their prayer, and from that time they have met but once in the year, when, during four weeks, they greet each other night after night; and then, as the lamp passes from one to the other, a pressure of the hand and a kiss calls forth a rosy blush on the fair cheek of *Demmarik* which sheds its mantling glow over all the heavens, *Koite's* heart the while thrilling with purest joy. And should they tarry too long, the gentle nightingales of the *All-fader* have but to warble *Laisk tudrück, laisk tudrück! öpik!* "Giddy ones, giddy ones! take heed!" to chide them forward on their duty.

With a lovelier vision, reader! we could not leave you dwelling upon the rugged but, to the heart's core, thoroughly poetic Frieslander. Let us leave the gentle *Demmarik* and devoted *Koite* to their chaste and heavenly mission, and with a bound leap into Denmark, whither Mr Kohl, in his

forty-fourth volume of travels, summons us, and whither we must follow him, although the prosaic gentleman is somewhat of the earth, earthy, after the blessed imitations we have had, reader—you and we—of the eternal summer's day faintly embodied in the vision of that long bright day of the far north!

Should any adventurous youth sit down to Mr Kohl's volume on Denmark, and, half an hour afterwards, throw the book in sheer disgust and weariness out of the window, swearing never to look into it again, let him be advised to ring the bell, and to request Mary to bring it back again with the least possible delay. Having received it from the maid of all work's horny hand, let the said youth begin the book again, but, as he would a Hebrew Bible, at the other end. He may take our word for it there is good stuff there, in spite of the twaddle that encountered him erewhile at Hamburg. Mr Kohl has been won by aldermanic dinners in the chief city of the Hanseatic League, as Louis Philippe was touched by aldermanic eloquence and wit in the chief city of the world, and he babbles of mercantile operations and commercial enterprise, until the heart grows sick with fatigue, and is only made happy by the regrets which the author expresses—just one hour after the right time—respecting his inability to enlarge further upon the fruitful and noble theme of the monetary speculations of one of the richest and most disagreeable communities of Europe.

Before putting foot on Danish ground, Mr Kohl is careful to make a kind of solemn protest touching Germanic patriotism, lest, we presume, he should be suspected of taking a heretical view of the question at issue at the present moment between the Sleswig-Holstein provinces and the mother-country Denmark. It is not for us to enter into any political discussions here, concerning matters of internal government which are no more business of ours than of his Majesty Muda Hassim, of the island of Borneo; but we must confess our inability to understand why such a terrific storm of patriotic ardour has so suddenly burst forth in Germany, respecting provinces which, until recently, certainly up to the time when the late king gave his people the unasked-for boon of a constitution, were perfectly happy and contented under the Danish rule, to which they had been accustomed some five or six hundred years.^[2] It is only since the assembly of the states was constituted, that the Sleswig Holsteiners have been seized

with the Germanic *furor*—a malady not a little increased by the inflammatory harangues of needy demagogues, and the pedantic outpourings of a handful of professors stark-mad on the subject of German liberty. If there is one thing more absurd than another, upon this globe of absurdity, it is the cant of "nationality," "freedom," "fatherland," "brotherhood," &c. &c., which is dinned into your ears from one end of Germany to the other; but which, like all other cants, is nothing but so much wind and froth, utterly without reason, stamina, or foundation. We should like to ask any mustached and bearded youth of Heidelberg or Bonn, at any one sober moment of his existence, to point out to us any single spot where this boasted "nationality" is to be seen and scanned. Will the red-capped, long-haired *Bursch* tell us when and where we may behold that "vaterland" of which he is eternally dreaming, singing, and drinking? Why, is it not a fact that, to a Prussian, an Austrian or a Swabian is an alien? Does not a Saxe-Coburger, a Hessian, and any other subject of any small duchy or principality, insist, in his intense hatred of Prussia, that the Prussians are no Germans at all; that they have interests of their own, opposed to those of the true German people; and that they are as distinct as they are selfish? You cannot travel over the various countries and districts included under the name of Germany, without learning the thorough insulation of the component parts. The fact is forced upon you at every step. Mr Kohl himself belongs to none of the states mentioned. He is a native of Bremen—one of the cities of that proud Hanseatic League which certainly has never shown an enlarged or patriotic spirit with reference to this same universal "vaterland." Arrogant and lordly republics care little for abstractions. They have a keen instinct for their own material interests, but a small appreciation of the glorious ideal. We ask, again, where is this all pervading German patriotism?

We have said that Mr Kohl is a great traveller. We withdraw the accusation. He has written forty odd volumes, but they have been composed, every one of them, in his snug *stube*, at Bremen, or wheresoever else he puts up, under the influence of German stoves, German pipes, and German beer. A great traveller is a great catholic. His mind grows more capacious, his heart more generous, as he makes his pilgrimages along this troubled earth, and learns the mightiness of Heaven, the mutability and smallness of things temporal. Prejudice cannot stand up against the knowledge that pours in upon him; bigotry cannot exist in the wide temple

he explores. The wanderer "feels himself new-born," as he learns, with his eyes, the living history of every new people, and compares, in his judgment, the lessons of his ripe manhood with the instruction imparted in his confined and straitened youth. If it may be said that to learn a new language is to acquire a new mind, what is it to become acquainted, intimately and face to face, with a new people, new institutions, new faiths, new habits of thought and feeling? There never existed a great traveller who, at the end of his wanderings, did not find himself, as if by magic, released of all the rust of prejudice, vanity, self-conceit, and pride, which a narrow experience engenders, and a small field of action so fatally heaps up. We will venture to assert that there is not a monkey now caged up in the zoological gardens, who would not—if permitted by the honourable Society—return to his native woods a better and a wiser beast for the one long journey he has made. Should Mr Kohl, we ask, behave worse than an imprisoned monkey? We pardon M. Michelet when he rants about *la belle France*, because we know that the excited gentleman—eloquent and scholarly as he is—is reposing eternally in Paris, under the *drapeau*, which fans nothing but glory into his smiling and complacent visage. When John Bull, sitting in the parlour of the "Queen's Head," smoking his clay and swallowing his heavy, with Bob Yokel from the country, manfully exclaims, striking Bob heartily and jollily on the shoulder, "D—n it, Bob, an Englishman will whop three Frenchmen any day!" we smile, but we are not angry. We feel it is the beer, and that, like the valiant Michelet, the good man knows no better. Send the two on their travels, and talk to them when they come back. Well, Mr Kohl has travelled, and has come back; and he tells us, in the year of grace 1846, that the crown-jewel in the diadem of France is Alsace, and that the Alsatians are the pearls amongst her provincialists—the Alsatians, be it understood, being a German people, and, as far as report goes, the heaviest and stupidest that "vaterland" can claim. The only true gems in the Autocrat's crown are, according to the enlightened Kohl, the German provinces of Liefland, Esthonia, and Courland. All the industry and enterprise of the Belgians come simply from their Teutonic blood; the treasures of the Danish king must be looked for in the German provinces of Sleswig and Holstein. This is not all. German literature and the German tongue enjoy advantages possessed by no other literature and language. English universities are "Stockenglich," downright English; the French are quite Frenchy; the Spanish are solely Spanish; but German schools have

taken root in every part of the earth. At Dorpat, says Mr Kohl, German is taught, written, and printed; and therefore the German spirit is diffused throughout all the Russias. At Kiel the same process is going forward on behalf of Scandinavia. The Slavonians, the Italians, and Greeks, are likewise submitting, *nolens volens*, to the same irresistible influence. The very same words may be found in M. Michelet's book of "The People,"—only for *German* spirit, read *French*.

Mr Kohl proceeds in the same easy style to announce the rapid giving way of the Danish language in Denmark and the eager substitution of his own. He asserts this in the teeth of all those Danish writers who have started up within the last fifty years, and who have boldly and wisely discarded the pernicious practice (originating in the German character of the reigning family) of expressing Danish notions in a foreign tongue. He asserts it in the teeth of Mrs Howitt and of the German translators, whom this lady calls to her aid, but who have very feebly represented that rich diction and flexible style so remarkable in the Danish compositions referred to, and so much surpassing the power of any other northern tongue. We should do Mr Kohl injustice if we did not give his reason for regarding the Danish language as a thing doomed. He was credibly informed that many fathers of families were in the habit of promising rewards to their children if they would converse in German and not in Danish! Hear this, Lord Palmerston! and if, on hearing it, you still allow the rising generation, at our seminaries, to ask for *du pang* and *du bur*, and to receive them with, it may be, a silver medal for proficiency, the consequences be on your devoted head!

Denmark has been comparatively but little visited by the stranger. She offers, nevertheless, to the antiquary, the poet, and the artist, materials of interest which cannot be exceeded in any other district of the same extent. Every wood, lake, heath, and down, is rich in historical legends or mythical sagas; every copse and hill, every cave and mound, has been peopled by past superstition with the elf and the sprite, the *ellefolk* and *nissen*. Her history, blending with that of her Scandinavian sisters, Norway and Sweden, is romantic in the extreme—whether she is traced to the days of her fabulous sea-kings, or is read of in the records of those who have chronicled the lives of her sovereigns in the middle ages. The country itself, although flat, is picturesque, being thickly interspersed with lakes, skirted by, and embosomed in, luxuriant beech woods; whilst ever and anon the

traveller lights upon some ancient ruin of church or tower, palace or hermitage, affecting, if only by reason of the associations it awakens with an age far more prosperous than the present. The existence of the Danish people, as a nation, has been pronounced a miracle. It is hardly less. Small and feeble, and surrounded by the foreigner on every side, Denmark has never been ruled by a conqueror. Amid the rise and fall of other states, she has maintained her independence—now powerful and victorious, now depressed and poor, but never succumbing, never submitting to the stranger's yoke. Her present dynasty is the oldest reigning European family. It dates back to Christian I.—himself descended in a direct female line from the old kings of Scandinavia—who, as Duke of Oldenburg, was chosen king by the states in 1448.

A good account of Denmark and the Danes is yet wanting. It may be collected by any honest writer, moderately conversant with the language and history of the country. We fear that Mr. Kohl will not supply the literary void, if we are to judge from the one volume before us. Others are, however, to follow; and as our author is immethodical, he may haply return to make good imperfections, and to fill up his hasty sketches. We cannot but regret that he should have passed so rapidly through the Duchy of Holstein. Had he followed the highways and byways of the province, instead of flitting like a swallow—to use his own words—over the ground by means of the newly-opened railroad through Kiel, his "Travels" would surely have been the better for his trouble. Instead of pausing where the most volatile would have been detained, our author satisfies himself with simply expressing his unfeigned regret at being obliged to pursue his journey, consoling his readers and himself with the very paradoxical assertion that we are most struck by the places of which we see least; since, being all of us more or less poetically disposed, we permit the imagination to supply the deficiencies of experience;—an argument which, we need scarcely say, if carried to its fullest limits, brings us to the conviction, that he who stays at home is best fitted to describe the countries the furthest distant from his fireside. Surely, Mr Kohl, you do not speak from knowledge of the fact!

In his present volumes, Mr Kohl refers only passingly to the subject of education in Denmark. He remarks that the national schools far surpassed his expectations. He might have said more. For the last thirty or forty years, we believe, it has been rare to meet with the commonest peasant who could

not read and write; a fact proving, at least, that Denmark is rather in advance than otherwise of her richer neighbours in carrying out the educational measures which, of late years, have so largely occupied the attention of the various governments of Europe. No one in Denmark can enter the army or navy who has not previously received his education at one or other of the military academies of the country. The course of study is well arranged. It embraces, besides the classics, modern languages, drawing, and exercises both equestrian and gymnastic. The academies themselves are under the immediate direction of the best military and naval officers in the service. For the education of the people, two or three schools are provided in every village, the masters receiving a small salary, with a house and certain perquisites. In 1822 the system of Bell was introduced in the elementary public schools, and since that period it has been generally adhered to.

Our author speaks with natural surprise of the small number of Roman Catholics he encountered in the Danish States. The Papists have no church or chapel throughout the kingdom; indeed, with the exception of the private chapel of the Austrian minister, no place of worship. We were aware that such was the fact a few years ago; we were scarcely prepared to find that Rome, who has been so busy in planting new shoots of her faith in every nook of the known world, is still content to have no recognition in Denmark. Heavy penalties are incurred by all who secede to the Romish church. In Sweden a change to Roman Catholicism is followed by banishment. This severity, we presume, must be ascribed to state policy rather than to a spirit of intolerance, for Jews and Christians of every denomination are permitted the freest exercise of their faith. Since the year 1521, the era of the Reformation in Denmark, the religion of the country has been Lutheran. The Danish church is divided into five dioceses, of which the bishop of Zealand is the metropolitan. His income is about a thousand a-year, whilst that of the other prelates varies from four to six hundred. The funds of the clergy are derived principally from tithes; but the parish ministers receive part of their stipend in the form of offerings at the three great annual festivals. Until lately, there existed much lukewarmness on all religious questions. Within the last ten or fifteen years, however, a new impulse has been given to the spiritual mind by the writing and preaching of several Calvinistic ministers, who have migrated from Switzerland and established themselves in Copenhagen. Their object has

been to stop the recreations which, until their arrival, enlivened the Sabbath-day. They have met with more success in the higher classes than amongst the people, who now, as formerly, assemble on the green in front of the village church at the close of service, and pursue their several pastimes.

Mention is made in Mr Kohl's volume, of the churchyards and cemeteries he visited in his hasty progress. Compared with those of his own northern Germany, the Scandinavian places of burial are indeed very beautiful. The government has long since forbidden any new interments to be made within the churches, and many picturesque spots have, in consequence, been converted into cemeteries. In the immediate vicinity of Copenhagen there are several; but the essence of Mr Kohl's plan being want of arrangement, he makes no mention of them for the present. One of these cemeteries, the *Assistenskirkegaard*, outside the city, has an unusual number of fine monuments, with no exhibitions of that glaring want of taste so frequently met with elsewhere. The village churchyards are bright, happy-looking spots, which, by their cheerful aspect, seem to rob the homes of the dead of all their natural gloom and desolation. Every peasant's grave is a bed of flowers, planted, watched, and cherished by a sorrowing friend. At either end of the seven or eight feet of mound rises a wooden cross, on which fresh wreaths of flowers appear throughout the summer, giving place only to the "eternals" which adorn the grave when snow mantles its surface. A narrow walk, marked by a line of box, incloses every mound; or, not unfrequently, a trellis-work, tastefully entwined of twigs and boughs. The resting-places of the middle classes are surmounted by a tablet, not, as in our churchyards, rigidly inclosed within impassable palisades, but standing in a little garden, where the fresh-blown flowers, the neatly trimmed beds, and generally the garden-bench, mark that the spot is visited and tended by the friends of those who sleep below. Hither widowed mothers lead their children, on the anniversary of their father's death, to strew flowers on his grave, to hang up the wreaths which they have wound; but, above all, to collect the choicest flowers that have bloomed around him, which must henceforth deck, until they perish, the portrait of the departed, or some relic dear for his sake. We have watched the rough work-worn peasant, leading by the hand his little grandchild, laden with flowers and green twigs to freshen the grave of a long-absent helpmate; and as we have remarked, we confess not without emotion, feeble infancy and feeble age uniting their

weak efforts to preserve, in cleanliness and beauty, the one sacred patch of earth—we have believed, undoubtingly, that whilst customs such as these prevail, happiness and morality must be the people's lot; and that very fearful must be the responsibility of those who shall sow the first seeds of discord and dissension amongst the simple peasantry of so fair a land!

The cathedrals of Denmark are of great antiquity. Those of Ribe, of Viborg in Jutland, of Lard, Ringsted, and Roeskilde, in Zealand, all date from the end of the eleventh, or the beginning of the twelfth century; since which remote period, in fact, no churches of any magnitude have been erected. Roeskilde is one of the oldest cities in the kingdom. In the tenth century it was the capital. Canute the Great may be considered as the originator and founder of its existing cathedral, which was completed in the year 1054. It has occasionally undergone slight repairs, but never any material alteration. The edifice is full of monuments of the queens and kings of the ancient race of Valdemar, as well as of those of the present dynasty. Some of the earliest sovereigns are inclosed within the shafts of the pillars, or in the walls themselves; a mode of sepulture, it would appear, as honourable as it is singular, since we find amongst the immured the great *Svend Estridsen*, and other renowned and pious benefactors of the church. In front of the altar is the simple sarcophagus of Margaret, the great queen of Scandinavia, erected by her successor, Eric the Pomeranian. The queen is represented lying at full length, with her hands devoutly folded on her breast. At this sarcophagus our author lingers for a moment to express sentiments which would have brought down upon him the anathemas of the good John Knox, could that pious queen-hater but have heard them. Mr Kohl defies you to produce, from the number of royal ladies who have held supreme power in the world, one instance of inadequacy and feebleness. Every where, he insists, examples of female nobility and strength of character are found linked with the destinies of kings who have earned for themselves no better titles than those of the *fainéant* and the simple. The style of Roeskilde cathedral is pure Gothic; but in consequence of the additions which the *interior* has received from time to time from kings and prelates, that portion of the edifice is more remarkable for historical interest than for purity of style or architectural beauty. One incident in connexion with this building must not be omitted. When Mr Kohl quitted the cathedral, he offered his cicerone a gratuity. The man respectfully declined accepting even the customary fees. The reason being asked of a Danish gentleman, the

latter answered, that the man was a patriot, and proud of the historical monuments of his country; it would be degradation to take reward from a stranger who seemed so deeply interested in them. One would almost suspect that this honest fellow was *a verger of Westminster Abbey!*

The church of St Kund, at Odense, was erected in honour of King Kund, murdered in the year 1100 in the church of St Alben, at Odense. The bones of the canonised were immured in the wall over the altar. Many sovereigns have been interred here. Indeed, it is a singular fact that the respective burial-places of every Christian king of Denmark, from the earliest times up to the present day, are traced without the slightest difficulty; whilst every heathen sovereign, of whom any historical record remains, lies buried beneath a mound within sight of Seire, the old heathen capital of the country. St Kund's church is of Gothic architecture. Amongst the many paintings that decorate its walls is one of a female, known as *Dandserinden*, or "The Dancer." She is the heroine of a tradition, met with under slightly modified forms in various parts of Denmark. It is to the following effect:—A young lady, of noble family, went accompanied by her mother to a ball; and being an indefatigable dancer, she declared to her parent, who bade her take rest, that she would not refuse to dance even though a certain gentleman himself should ask her as a partner. The words were scarcely uttered before a finely dressed youth made his appearance, held out his hand, and, with a profound obeisance, said, "Fair maiden, let us not tarry." The enthusiastic dancer accepted the proffered hand, and in an instant was with the moving throng. The music, at that moment, seemed inspired by some invisible power—the dancers whiled round and round, on and on, one after the other, whilst the standing guests looked upon all with dread horror. At length, the young lady grew pale—blood gushed from her mouth—she fell on the floor a corpse. But her partner, (we need not say who *he* was,) first with a ghastly smile, then with a ringing laugh, seized her in his arms, and vanished with her through the floor. From that time she has been doomed to dance through the midnight hours, until she can find a knight bold enough to tread a measure with her. Regarding the sequel, however, there are a number of versions.

Mr Kohl's volume adverts cursorily to the many institutions still existing in Denmark, which owe their origin to the days of Roman Catholicism, and have been formed upon the model of Catholic establishments. Several

Frökenstifts, or lay nunneries, are still in being. They are either qualifications of some ancient monastic foundation, or they have been endowed from time to time by royal or private munificence. Each house has a lady superior, who is either chosen by the king or queen, or succeeds to the office by right of birth—some noble families having, in return for large endowments, a perpetual advowson for a daughter of the house. At these *Frökenstifts*, none but ladies of noble birth can obtain fellowships. As a large number of such noble ladies are far from wealthy, a comfortable home and a moderate salary are no small advantages. A constant residence within the cloister is not incumbent upon the "fellows;" but a requisition, generally attached to each presentation, obliges them to live in their *stift* for a certain number of weeks annually. The practice of founding institutions for ladies of noble birth has risen naturally in a country where *family* is every thing, and wealth is comparatively small: where it is esteemed less degrading to live on royal bounty than to enter upon an occupation not derogatory to any but noble blood. The system of *pensioning* in Denmark is a barrier to real national prosperity. Independence, self-respect, every consideration is lost sight of in the monstrous notion, that it is beneath a high-born man to earn his living by an honourable profession. Diplomacy, the army, and navy, are the three limited careers open to the aristocracy of Denmark; and since the country is poor, and the nobility, in their pride, rarely or never enrich themselves by plebeian alliances, it follows, of course, that a whole host of younger brothers, and a countless array of married and unmarried patricians, must fall back upon the bounty of the sovereign, administered in one shape or another. The Church and Law are made over to the middle classes. To such an extent is pride of birth carried, that without a title no one can be received at Court. In order, therefore, to admit such as are excluded by the want of hereditary rank, honorary but the most absurd titles are created. "*Glatsraad*," "*Conferenceraad*," Councillor of State, Councillor of Conference, carry with them no duties or responsibilities, but they obtain for their possessors the right of *entrée*, otherwise unattainable. In Germany, the titles of the people, from the under-turnpike-keeper's-assistant's lady, up to the wife of the lord with a hundred tails, are amusing enough. They have been sufficiently ridiculed by Kotzebue; but the distinctions of Denmark go far beyond them. A lady, whose husband holds the rank of major (and upwards) in the army, or of captain (and upwards) in the navy, or is of noble birth, is styled a *Frue*; her daughter is born a *Fröken*: but the wife of a

private individual, with no blood worth the naming in her veins, is simply *Madame*, and her daughter's *Jomfrue*. You might as easily pull down Gibraltar as the prejudice which maintains those petty and frivolous distinctions. It is highly diverting to witness the painful distress of Mr Kohl at hearing ladies of noble birth addressed as *Frue Brahe*, *Frue Rosenkrands*, instead of by the sublime title of *Gnädige Frau*, eternally in the mouths of his own title-loving countrymen. It is singular, however, that whilst the Danes are so tenacious of honorary appellations, they are without those constant quantities, the *von* and *de* of Germany and France. The *Sture*, the *Axe*, the *Trolle*, and the other nobles who, for ages, lived like kings in Denmark, were without a prefix to their names. *Greve* and *Baron* are words of comparatively modern introduction.

There are about twenty high fiefs in Denmark—the title to hold one of these lordships, which bring with them many important privileges, being the possession of a certain amount of land, rated at the value of the corn it will produce. The owners are exempt from all payment of taxes, not only on their fiefs, but on their other lands: they have the supervision of officials in the district: are exempted from arrest or summons before an inferior court, to which the lesser nobility are liable; and they enjoy the right of appropriating to their own use all treasures found under the earth in their lordships. Next to these come the baronial fiefs; then the *stammehuser*, or houses of noble stock, all rated according to various measures of corn as the supposed amount of the land's produce; all other seats or estates are called *Gaarde*, Courts, or *Godser*, estates. The country residences of the nobility are strikingly elegant and tasteful. They are surrounded by lawns and parks in the English fashion, and often contain large collections of paintings and extensive libraries. Along the upper corridors of the country residences of the nobility are ranged large wooden chests, (termed *Kister*,) containing the household linen, kept in the most scrupulous order. Many of these *Kister* are extremely ancient, and richly carved in oak. Every peasant family, too, has its *Kiste*, which holds the chief place in the sitting-room, and is filled with all the treasure, as well as all the linen, of the household. Amongst other lordly structures, Mr Kohl visited *Gyssselfelt*,^[3] near Nestned in Zealand. It was built in 1540 by Peter Oxe, and still stands a perfect representation of the fortresses of the time. Its fosses yet surround it—the drawbridges are unaltered: and, round the roof, at equal distances, are the solid stone pipes from which boiling water or pitch has often been poured

upon the heads of the assailants below. In the vicinity of this castle is *Bregentned*, the princely residence of the Counts *Moltke*. The *Moltke* are esteemed the richest family in Denmark. Their ancestors having munificently endowed several lay nunneries, the eldest daughter of the house is born abbess-elect of the convent of *Gyssselfelt*: the eldest son is addressed always as "His Excellence." The splendid garden, the fine collection of antiquities, the costly furniture and appointments that distinguish the abode at *Bregentned* send Mr Kohl into ecstasies. He is equally charmed by the sight of a few cottages actually erected by the fair hands of the noble daughters of the House of Moltke. The truth is, Mr Kohl, republican as he is, is unequal to the sight of any thing connected with nobility. The work of a noble hand, the poor daub representing a royal individual, throws him immediately into a fever of excitement, and dooms his reader to whole pages of the most prosaic eloquence.

The condition of the peasantry of Denmark is described as much better—as indeed it is—than that of the labourers of any other country. If there is no superabundance of wealth in Denmark, there is likewise no evidence of abject poverty. The terms upon which the peasants hold their farms from the landed proprietors are by no means heavy; and their houses, their manner of dressing, and their merry-makings, of themselves certify that their position is easy, and may well bear a comparison with that of their brethren of other countries. Within the last twenty years, great improvements have been effected in agriculture, and the best English machines are now in common use amongst the labourers.

Upon the moral and political condition of the Danish people at large, we will postpone all reflections, until the appearance of Mr Kohl's remaining volumes. We take leave of volume one, with the hope that the sequel of the work will faithfully furnish such interesting particulars as the readers of Mr Kohl have a right to demand, and he, if he be an intelligent traveller, has it in his power to supply. We do not say that this first instalment is without interest. It contains by far too much desultory digression; it has more than a sprinkling of German prosing and egotism: but many of its pages may be read with advantage and instruction. If the work is ever translated, the translator, if he hope to please the English reader, must take his pen in one hand and his shears in the other.

LORD METCALFE'S GOVERNMENT OF JAMAICA.

The death of Lord Metcalfe excited one universal feeling—that his country had lost a statesman whom she regarded with the highest admiration, and the warmest gratitude. The *Times*, and the other public journals, in expressing that feeling, could only give a general and abridged memoir of this great and good man. Every part of his public life—and that life commencing at an unusually early period—stamps him with the reputation of a statesman endowed in an eminent degree with all the qualities which would enable him to discharge the most arduous and responsible duties. Every part of it presents an example, and abounds in materials, from which public men may derive lessons of the most practical wisdom, and the soundest rules for their political conduct. His whole life should be portrayed by a faithful biographer, who had an intimate acquaintance with all the peculiar circumstances which constituted the critical, arduous, and responsible character of the trusts committed to him, and which called for the most active exercise of the great qualities which he possessed. That part of it which was passed in administering the government of Jamaica, is alone selected for comment in the following pages. It is a part, short indeed as to its space, but of sufficient duration to have justly entitled him, if he had distinguished himself by no other public service, to rank amongst the most eminent of those, who have regarded their high intellectual and moral endowments as bestowed for the purpose of enabling them to confer the greatest and most enduring benefits on their country, and who have actively and successfully devoted those qualities to that noble purpose.

No just estimate of the nature, extent, and value of that service, and of those endowments, can be formed, without recalling the peculiar difficulties with which Lord Metcalfe had to contend, and which he so successfully surmounted, in administering the government of Jamaica.

The only part of colonial society known in England, consisted of those West Indian proprietors who were resident here. They were highly educated

—their stations were elevated—their wealth was great, attracting attention, and sometimes offending, by its display. It was a very prevalent supposition, that they constituted the whole of what was valuable, or wealthy, or respectable in West Indian colonial society; that those who were resident in the colonies could have no claim to either of these descriptions; and that they were the mere hired managers of the properties of the West Indians resident in England. This notion was entertained by the government. The hospitable invitations from the West Indians in England, which a Governor on the eve of his departure for his colony accepted, served to impress it strongly on his mind. He proceeded to his government with too low an estimate of the character, attainments, respectability, and property of those who composed the community over whom he was to preside. The nobleman or general officer on whom the government had been bestowed, entered on his administration, familiar, indeed, with the Parliament of Great Britain, and with what Mr Burke calls "her imperial character, and her imperial rights," but little acquainted with, and still less disposed to recognise, the rights and privileges of the Colonial Assemblies, although those assemblies, in the estimation of the same great authority, so exceedingly resembled a parliament in all their forms, functions, and powers, that it was impossible they should not imbibe some idea of a similar authority. "Things could not be otherwise," he adds; "and English colonies must be had on those terms, or not had at all." He could not, as Mr Burke did, "look upon the imperial rights of Great Britain, and the privileges which the colonies ought to enjoy under these rights, to be just the most reconcilable things in the world."

The colonists, whose Legislative Assemblies had from the earliest period of their history, in all which regarded their internal legislation, exercised the most valuable privileges of a representative government, would, on their part, feel that the preservation of those privileges not only constituted their security for the enjoyment of their civil and political rights as Englishmen, but must confer on them importance, and procure them respect in the estimation of the government of the parent state. Thus, on the one hand, a governor, in his zeal to maintain the imperial rights, from the jealousy with which he watched every proceeding of the Assembly, and his ignorance of their constitution and privileges, not unfrequently either invaded these privileges, or deemed an assertion of them to be an infringement of the rights of the Imperial Parliament. On the other hand, the Colonists, with no

less jealousy, watched every proceeding of the governor which seemed to menace any invasion of the privileges of their Assemblies, and with no less zeal were prepared to vindicate and maintain them. The Governor and the Colonial Assembly regarded each other with feelings which not only prevented him from justly appreciating the motives and conduct of the resident colonists, but confirmed, and even increased the unfavourable impressions he had first entertained. His official communications enabled him to impart to and induce the government to adopt the same impressions. The influence of these feelings, in like manner, on Colonial Assemblies and colonists too frequently prevented them from justly appreciating the motives of the Governor, from making some allowance for his errors, and too readily brought them into collision with him.

It cannot be denied that those impressions exercised on both sides of the Atlantic an influence so strong, as to betray itself in the communications and recommendations, and indeed in the whole policy of the government, as well as in the legislation of the colonies.

This imperfect acquaintance with the character of the resident colonists, and the unfavourable impression with which the proceedings and motives of their Legislative Assemblies were regarded, prevailed amongst the public in Great Britain.

The colonial proprietors resident in Great Britain felt little sympathy, either with the colonial legislatures, or with those resident in the colonies. This want of sympathy may be attributed to a peculiarity which distinguished the planters of British from those of other European colonies. The latter considered the colony in which they resided as their home. The former regarded their residence in it as temporary. They looked to the parent state as their only home, and all their acquisitions were made with a view to enjoyment in that home. This feeling accompanied them to England. It was imbibed by their families and their descendants. The colony, which had been the source of their wealth and rank, was not, as she ought to have been, the object of their grateful affection. They regarded with indifference her institutions, her legislature, her resident community. From this want of sympathy, or from the want of requisite information, they made no effort to remove the unfavourable impressions with which the executive Government and the Assemblies regarded each other, or to

promote the establishment of their relations in mutual conciliation and confidence.

Another cause operated very powerfully in exciting a strong prejudice against the inhabitants of our West Indian colonies. The feeling which was naturally entertained against the slave trade and slave colonies was transferred to the resident colonists, and almost exclusively to them. By a numerous and powerful party, slavery had been contemplated in itself, and in the relations and interests which it had created, and its abolition had been endeavoured to be effected as if it were the crime of the colonies *exclusively*. It was forgotten "that it was," to use the language of Lord Stowel, "in a peculiar manner the crime of England, where it had been instituted, fostered, and encouraged, even to an excess which some of the colonies in vain endeavoured to restrain." Besides the acts passed by the legislatures of Pennsylvania and South Carolina, when those were British colonies, we find that when the Assembly of Jamaica, in 1765, was passing an act to restrain the importation of slaves into the colony, the governor of Jamaica informed the Assembly of that island, that, consistently with his instructions, he could not give his assent to a bill for that purpose, which had then been read twice. In 1774, the Jamaica Assembly attempted to prevent the further importation, by an increase of duties thereon, and for this purpose passed two acts. The merchants of Bristol and Liverpool petitioned against their allowance. The Board of Trade made a report against them. The agent of Jamaica was heard against that report; but, upon the recommendation of the Privy Council, the acts were disallowed, and the disallowance was accompanied by an instruction to the governor, dated 28th February 1775, by which he was prohibited, "upon pain of being removed from his government," from giving his assent to any act by which the duties on the importation of slaves should be augmented—"on the ground," as the instruction states, "that such duties were to the injury and oppression of the merchants of this kingdom and the obstruction of its commerce."

The opposition to the abolition of the slave trade was that of the merchants and planters resident in England, and to their influence on the members of the colonial legislature must be attributed whatever opposition was offered by the latter. In the interval between the abolition of the slave trade and that of slavery, the feelings of prejudice against them grew still stronger. Every specific measure by which this party proposed to ameliorate

the condition of the slaves, was accompanied by some degrading and disqualifying remarks on the conduct of the resident inhabitants. An act of individual guilt was treated as a proof of the general depravity of the whole community. In consequence of the enthusiastic ardour with which the abolition of slavery was pursued, all the proposed schemes of amelioration proceeded on the erroneous assumption, that the progress of civilisation and of moral and religious advancement ought to have been as rapid amongst the slave population of the colonies, as it had been in England and other parts of Europe. It was forgotten, that until the slave trade was abolished, the inherent iniquity of which was aggravated by the obstacle it afforded to the progress of civilisation, every attempt to diffuse moral and religious instruction was impeded and counteracted by the superstitions and vices which were constantly imported from Africa. Thus, instead of the conciliation which would have rendered the colonists as active and zealous, as they must always be the *only efficient*, promoters of amelioration, irritation was excited, and they were almost proscribed, and placed without the pale of all the generous and candid, and just and liberal feelings which characterise Englishmen.

This state of public feeling operated most injuriously in retarding and preventing many measures of amelioration which would have been made in the slave codes of the several colonies.

Jamaica experienced, in a greater degree than any other colony, the effects of those unfavourable impressions with which the motives and proceedings of her legislature were regarded, and of those feelings of distrust and suspicion which influenced the relations of the executive government and the Assembly. Her Assembly was more sensitive, more zealous, more tenacious than any other colony in vindicating the privileges of her legislature, whenever an attempt was made to violate them. The people of Jamaica, when that colony first formed part of the British empire, did not become subjects of England by conquest—they were by birth Englishmen, who, by the invitation and encouragement of their sovereign, retained possession of a country which its former inhabitants had abandoned. They carried with them to Jamaica all the rights and privileges of British-born subjects. The proclamation of Charles II. is not a grant, but a declaration, confirmation, and guarantee of those rights and privileges. The constitution of Jamaica is based on those rights and privileges. It is, to use

the emphatic language of Mr Burke, in speaking of our North American colonies, "a constitution which, with the exception of the commercial restraints, has every characteristic of a free government. She has the express image of the British constitution. She has the substance. She has the right of taxing herself through her representatives in her Assembly. She has, in effect, the sole internal government of the colony."

The history of the colony records many attempts of the governor and of the government to deprive her of that constitution, by violating the privileges of her Assembly; but it records also the success with which those attempts were resisted, and the full recognition of those privileges by the ample reparation which was made for their violation. That very success rendered the people of Jamaica still more jealous of those privileges, and more determined in the uncompromising firmness with which they maintained them. But it did not render the governors or the home government less jealous or less distrustful of the motives and proceedings of the Assembly. As the whole expense of her civil, military, and ecclesiastical establishment was defrayed by the colony, with the exception of the salaries of the bishop, archdeacon, and certain stipendiary curates; and as that expense, amounting to nearly £400,000, was annually raised by the Assembly, it might have been supposed that the power of stopping the supplies would have had its effect in creating more confidence and conciliation, but it may be doubted whether it did not produce a contrary effect.

The feelings entertained by the government towards the colonies, were invoked by the intemperate advocates for the immediate abolition of slavery, as the justification of their unfounded representations of the tyranny and oppression with which the planters treated their slaves. Happily, that great act of atonement to humanity, the abolition of slavery, has been accomplished; but the faithful historian of our colonies, great as his detestation of slavery may and ought to be, will yet give a very different representation of the relation which subsisted between master and slave. He will represent the negroes on an estate to have considered themselves, and to have been considered by the proprietor, as part of his family; that this self-constituted relationship was accompanied by all the kindly feelings which dependence on the one hand, and protection on the other, could create; and that such was the confidence with which both classes regarded

each other, that, with fearless security, the white man and his family retired to their beds, leaving the doors and windows of their houses unclosed. These kindly feelings, and that confidence, were at length impaired by the increasing attempts to render the employers the objects of hatred. At the latter end of 1831, a rebellion of the most appalling nature broke out amongst the slave population. A district of country, not less than forty miles in extent, was laid waste. Buildings and other property, to the amount of more than a million in value, exclusive of the crops, were destroyed.

In 1833, the act for the abolition of slavery was passed; and it cannot be denied, that the feelings of distrust and jealousy with which government had so long regarded the Assembly and their constituents, accompanied its introduction, progress, and details. They accompanied also the legislative measures adopted by the Assembly for carrying into effect its provisions, and especially those for establishing and regulating the apprenticeship. The manner in which the relative rights and duties of master and apprentices were discharged, was watched and examined with the same unfavourable feelings as if there had existed a design to make the apprenticeship a cover for the revival of slavery—an object which, even had there been persons wicked enough to have desired it, could never have been accomplished. There were persons in Jamaica exercising a powerful influence over the minds of the apprentices, who proclaimed to them their belief, that it was the design of their masters to reduce them to slavery, and who appealed to the suspicion and jealousy of the government as justifying and confirming that belief. Such was the influence of those feelings, that two attempts were made in Parliament to abolish the apprenticeship. They were unsuccessful; but enough had been said and done to fill the minds of the apprentices with the greatest distrust and suspicion of their masters. In June 1838, the Assembly was especially convened for the purpose of abolishing it. The governor, as the organ of her Majesty's government, distinctly told the Assembly that it was impossible to continue the apprenticeship. "I pronounce it," he says, "physically impossible to maintain the apprenticeship, with any hope of successful agriculture." The state to which the colony had been reduced, is told in the answer of the Assembly to this address: "Jamaica does, indeed, require repose; and we anxiously hope, that should we determine to remove an unnatural servitude, we shall be left in the exercise of our constitutional privileges, without interference." The colony was thus compelled to abolish the apprenticeship, although it had

formed part of the plan of emancipation—not only that it might contribute to the compensation awarded for the abolition of slavery, but that it might become that intermediate state which might prepare the apprentices for absolute and unrestricted freedom, and afford the aid of experience in such legislation as was adapted to their altered condition. It was again and again described by the Secretary of State for the colonies, in moving his resolutions, "to be necessary not only for the security of the master, but for the welfare of the slave." The apprenticeship was thus abruptly terminated two years before the expiration of the period fixed by the act of the Imperial Parliament for its duration, before any new system of legislation had been adopted, and when the emancipated population had been taught to regard the planters with far less kindly feelings than those which they entertained in their state of slavery.

The difficulties and dangers with which the colony was now threatened were such as would have appalled any prudent man, and would render it no less his interest than his duty to assist the Assembly in surmounting them. It was, however, the misfortune of Jamaica that her governor, from infirmity of body and of temper, far from endeavouring to surmount or lessen, so greatly increased these difficulties and dangers, that it appeared scarcely possible to extricate the colony from them. His conduct in the session of November 1838 was so gross a violation of the rights and privileges of the Assembly, as to leave that body no other alternative but that of passing a resolution, by which they refused to proceed to any other business, except that of providing the supplies to maintain the faith of the island towards the public creditor, until they had obtained reparation for this violation.

This course had obtained the sanction, not only of long usage and practice, but of the government of the parent state. The history of Jamaica abounds in numerous instances where governors, who had by their conduct given occasion for its adoption, had been either recalled, or ordered by the Executive Government to make such communication to the Assembly as had the character of being an atonement for the violation of their privileges, and an express recognition of them. Upon this resolution being passed, the governor prorogued the Assembly. On being re-assembled, they adhered to their former resolution. The governor dissolved the Assembly. A general election took place, when the same members who had composed the large majority concurring on that resolution, were re-elected, and even an

addition made to their majority. The Assembly, as might be expected, on being convened, adhered to their former resolution. It was then prorogued until the 10th of July 1839. The government, upon the urgent recommendation of the governor, and influenced by his misrepresentations, proposed to Parliament a measure for suspending the functions of the Legislative Assembly. Unjustifiable and reprehensible as this measure was, yet it is only an act of justice to the government of that day to remember that it originated, not only in the recommendation of the governor, supported also by that of the two preceding governors of Jamaica, but was sanctioned, and indeed urged on it, by several influential Jamaica proprietors and merchants, resident in London. Indeed, until the bill had been some time in the House of Commons, it was doubtful whether it would be opposed by Sir Robert Peel and his adherents. The determination of several members who usually supported the government, to oppose a measure destructive of the representative part of the constitution of this great colony, enabled him and his party to defeat the bill on the second reading. The government being thus left in a minority, resigned; but the attempt of Sir Robert Peel to form a ministry having failed, the former government was restored, and they introduced another bill, equally objectionable in its principles, and equally destructive of the representative branch of the Jamaica constitution. An amendment was proposed on the part of Sir Robert Peel, by the party then considered Conservative; but as the amendment would leave the bill still inconsistent with the rights of this popular branch of the constitution, they were deprived of the support of those who had before united with them in their opposition to the first bill, and they were therefore left in a minority. The bill passed the House of Commons. The amendment, which had been rejected, was adopted by the House of Lords, and the bill was passed. The powerful speeches of Lords Lyndhurst and Brougham, and those of the other noble lords by whom the amendment was supported, afford abundant evidence that they disapproved of the principles of the bill, and were unanswered and unanswerable arguments for its rejection.

Lord John Russell, and other members of the government, might well believe, and express their prediction, that such a bill would not satisfy the Assembly, but that they would still refuse to resume their legislation; and that in the next session the House must adopt the original measure.

It was in the power of the ministry, without resorting to any measure of undue interference which could have furnished their opponents with any ground of censure, by passively leaving the administration of the government of the colony to its ordinary course, and adopting the ordinary means of selecting a governor, to have fulfilled their own prediction. They might thus have saved themselves from the taunt with which Sir Robert Peel, in the debate on the 16th January 1840, attributed the satisfactory manner in which the Assembly of Jamaica had resumed their legislative proceedings, to "the opinion of the ministers having been overruled." But the conduct of Lord John Russell, who had then accepted the seals of secretary for the colonies, was influenced by higher motives. He immediately applied himself to secure, by confidence, the cordial co-operation of the Assembly of Jamaica, in that legislation which should promote the best interests of all classes of the community. For the accomplishment of this object, he anxiously sought for a governor who united the discretion, the judgment, the temper and firmness, which would promote that confidence, and obtain that co-operation, and, at the same time, maintain the dignity of the executive, and the supremacy of Parliament.

From no consideration of personal or political connexion, but purely from the conviction that Lord Metcalfe was eminently distinguished by these qualities, Lord John Russell offered to him the Government of Jamaica. He had just returned from the East Indies, where he had displayed the greatest ability, and met with almost unexampled success. He had scarcely tasted the sweets of the repose which he had promised himself. His acceptance of the Government was a sacrifice of that repose to his high sense of duty, and to the noble desire of rendering a great public service to his country.

But to little purpose would such a character have been selected, and to little purpose would he have possessed those eminent qualities, if he had been sent to Jamaica with instructions which would have controlled their exercise. A more wise, just, and liberal policy was adopted by the government. Lord Metcalfe was left with the full, free, unfettered power of accomplishing, in his own manner, and according to his own discretion, the great object of his administration. Of the spirit of his instructions, and of the discretion and powers confided to him, he gives his own description in his

answer to an address which, on his return to England, was presented him by the Jamaica proprietors resident in London, "I was charged by her Majesty's government with a mission of peace and reconciliation."

It is scarcely possible to conceive a public trust so full of difficulties, and requiring the possession and exercise of so many high and rare qualities for its successful discharge, as the Government of Jamaica at the time it was undertaken by Lord Metcalfe. Some account has been given of the difficulties which attended the government of every West Indian colony, and of those which were peculiar to that of Jamaica. It should be added, that the office of Governor, independently of the difficulties occasioned by any particular event, is itself of so peculiar a character as to require no inconsiderable share of temper and address as well as judgment. He is the representative of his Sovereign, invested with many of the executive powers of sovereignty. He must constantly by his conduct maintain the dignity of his Sovereign. He cannot, consistently with either the usages of his office or the habits of society, detach himself from the community over which he presides as the representative of his Sovereign. It is necessary for him to guard against a possibility of his frequent and familiar intercourse with individuals, impairing their respect for him and his authority, and, at the same time, not deprive himself of the friendly disposition and confidence on their part which that intercourse may enable him to obtain. Especially must he prevent any knowledge of the motives and views of individuals with which this intercourse may supply him, from exercising too great, or, indeed, any apparent influence on his public conduct. It will be seen how well qualified Lord Metcalfe was to surmount, and how successfully he did surmount, all these difficulties.

It has been stated, that the bill, even with the amendment it received in the House of Lords, was so inconsistent with the constitutional rights of Jamaica, that it was apprehended there would be great reluctance on the part of the Assembly to resume the exercise of its legislative functions. Considerations, which did honour to the character of that body, induced the members to overcome that reluctance, even before they had practical experience of the judicious and conciliatory conduct of Lord Metcalfe, and of the spirit in which he intended to administer his government. There was a party of noblemen and gentlemen, possessing considerable property in Jamaica, and of great influence in England, at the head of whom was that

excellent man, the late Earl of Harewood, who had given their most cordial support, in and out of Parliament, to the agent of the colony in his opposition to the measure for suspending the legislative functions of the Assembly. They had thus acquired strong claims on the grateful attention of the legislature of Jamaica. In an earnest and affectionate appeal to the Assembly, they urged that body to resume its legislation. The Assembly and its constituents, with the generosity which has ever distinguished them, and with a grateful sense of the powerful support they had received from this party, felt the full force of their appeal. Lord Metcalfe, by his judicious conduct in relation to the bill, by the conciliatory spirit which his whole conduct on his arrival in Jamaica, and first meeting the Assembly, evinced, and by his success in impressing the members with the belief that her Majesty's government was influenced by the same spirit, inspired them with such confidence in the principles on which his government would be administered, that they did not insist on their objections to the bill, but resolved on resuming their legislation. They did resume it. "They gave him," to use his own language, "their hearty support and active co-operation in adopting and carrying into effect the views of her Majesty's government, and in passing laws adapted to the change which had taken place in the social relations of the inhabitants of Jamaica."

Before we state the principles on which he so successfully conducted the government of Jamaica, and endeavour to represent the value of those services which, by its administration, he rendered to his country, we would select some of those qualities essential to constitute a great statesman, with which he was most richly endowed. He was entrusted with public duties of great responsibility at a very early period of life. Impressed with a deep sense of that responsibility, he felt that the faculties of his mind ought to be not only dedicated to the discharge of those duties, but that he ought to bestow on them that cultivation and improvement which could enable his country to derive the greatest benefit from them. He acquired the power of taking an enlarged and comprehensive view of all the bearings of every question which engaged his attention, and he exercised that power with great promptitude. He distinguished and separated with great facility and with great accuracy what was material from what was not in forming his judgment. He kept his mind always so well regulated, and its powers so entirely under his control—he preserved his temper so calm and unruffled—he resisted so successfully the approach of prejudice, that he was enabled

to penetrate into the recesses of human conduct and motives, and to acquire the most intimate knowledge and the most practical experience of mankind.

The acquisition of that experience is calculated to impress the statesman with an unfavourable opinion of his species, and to excite too general a feeling of distrust. This impression, unless its progress and effects are controlled, may exercise so great an influence as effectually to disable the judgment, frustrate the best intentions, and oppose so many obstacles as to render the noble character of a great and good statesman wholly unattainable. It is the part of wisdom no less than of benevolence, so far to control it, that it shall have no other effect than that of inducing caution, prudence, and circumspection. He will regard it as reminding him that those for whom he thinks and acts, are beings with the infirmities of our fallen nature; as teaching him to appeal to, and avail himself of the better feelings and motives of our nature; and, whenever it is practicable, to render those even of an opposite character the means of effecting good, and if that be not practicable, to correct and control them so as to deprive them of their baneful effects.

Lord Metcalfe followed the dictates of his natural benevolence, no less than those of his excellent judgment, in applying to those purposes, and in this manner, his great knowledge and experience of mankind. Burke, who has been most truly called "the greatest philosopher in practice whom the world ever saw," has said, "that in the world we live in, distrust is but too necessary; some of old called it the very sinews of discretion. But what signify common-places, that always run parallel and equal? Distrust is good, or it is bad, according to our position and our purpose." Again, "there is a confidence necessary to human intercourse, and without which men are often more injured by their own suspicions, than they would be by the perfidy of others." No man knew better or made a more wise and judicious and successful application of these maxims of wisdom and benevolence than Lord Metcalfe. The grateful attachment of the community in which he lived abundantly proved that distrust, when it was required by his judgment, never impaired the kindness of his own disposition, or alienated from him the esteem and affection of others.

The rock on which too often a governor has made shipwreck of his administration has been the selection of individuals or families on whom he bestowed his exclusive confidence. The jealousy and envy which this

preference excited in others did not constitute the only or even the greatest part of the evil. The selected few were desirous of making themselves of importance, and inducing him to value their support as essential to the success of his government. With this view they attributed to others unfriendly feelings towards the governor which they never entertained, and endeavoured to persuade him that they themselves were the only persons on whom he could rely. Their professions betrayed him into the great error of too soon and too freely making them acquainted with the views and designs of his government. Lord Metcalfe was too wise and too just to have any favourites; towards all, he acted with a frankness, sincerity, and kindness which made all equally his friends. Lord Metcalfe united with singular equanimity of temper, an extraordinary degree of self-possession. He never was betrayed into an intimation of his opinions or intentions, if prudence required that they should not be known. The time when, and the extent to which such intimation should be given, were always the result of his previous deliberate judgment. But this reserve was accompanied with so much kindness and gentleness of manner, that it silenced any disappointment or mortification in not attaining that insight into his views which was sought. A short intercourse with Lord Metcalfe could not fail to satisfy the mind that any attempt to elicit from him opinions which he did not desire to impart, would be wholly fruitless.

Another evil, no less injurious to the government than to the colony, was the hasty and imperfect estimate which governors formed of the motives and conduct of colonial legislatures. It had then been too frequent to represent those bodies as influenced by a hostile feeling, where no such feeling existed, and to exaggerate their difficulties in administering their government. Lord Metcalfe's administration was characterised by the candour with which he appreciated, the fidelity with which in his communications to her Majesty's government he represented, and the uncompromising honesty and firmness with which he vindicated the motives and acts of the Jamaica legislature, and repelled the prejudices, the misrepresentations, and calumnies by which it had been assailed. He brought to his administration, and never failed to evince, a constitutional respect for the institutions of the colony, and the strictest impartiality in maintaining the just rights of all classes of the community. Her Majesty's government continued to him that unlimited confidence he so well deserved, and left him to carry out his wise and beneficent principles of

government. To cheer him in his noble undertaking, to bestow on the Assembly the most gratifying reward for their conduct, and to give them the highest assurance of the confidence of the government, the royal speech on the prorogation of Parliament contained her Majesty's gracious approbation of the disposition and proceedings of the legislature.

So sound were the principles on which he administered the government—so firm and lasting was the confidence reposed in him by the assembly, that during his administration there was not the slightest interruption of the most perfect harmony between him and the different branches of the legislature. He had the satisfaction of witnessing a most beneficent change in the manner, the care, and spirit in which the acts of the colonial legislature were examined, objections to them treated, and amendments required, by the government. The acts were not, as before, at once disallowed; but the proposed amendments were made the subjects of recommendation by communications to the legislature from the governor. The Assembly felt this change, and met it in a corresponding spirit, which readily disposed them to adopt the recommendations of the government.

Having fully and effectually accomplished the noble and Christian purpose with which he undertook the arduous duties of the government, he resigned it in June 1842. The state in which he left Jamaica, contrasted with that in which he found the colony on the commencement of his administration, was his rich reward. He came to Jamaica at a time when her legislation was suspended, mutual feelings of distrust and jealousy disturbing not only the relation between the governor and the legislature, but all the social relations in the colony; when laws were required for the altered state of society, and when the tranquillity and existence of the colony were placed in the greatest jeopardy. When he resigned the government, there had been effected a perfect reconciliation of the colony and the mother country; order and harmony, and good feeling amongst all classes had been restored; legislation had been resumed, laws had been passed adapted to the change which had taken place in the social relations of the inhabitants; and the cordial and active co-operation of the legislature had been afforded, notwithstanding the financial difficulties of the colony, in extending at a great cost the means of religious and moral instruction, and in making the most valuable improvements in the judicial system. He quitted the shores of Jamaica beloved, respected, and revered, with a

gratitude and real attachment which few public men ever experienced. The inhabitants of Jamaica raised to him a monument which might mark their grateful homage to his memory. But there is engraven on the hearts of the public of Jamaica another memorial, in the affectionate gratitude and esteem with which they will feel the enduring blessings of his government, and recall his Christian charity, ever largely exercised in alleviating individual distress; his kindness and condescension in private life; and his munificent support of all their religious and charitable institutions, and of every undertaking which could promote the prosperity and happiness of the colony.

On Lord Metcalfe's arrival in England, a numerous meeting of the Jamaica proprietors and merchants was held, and an address presented to him, in which they offered him the tribute of their warmest and sincerest gratitude for the benefits which he had conferred on the colony "by the eminent talents, the wise, and just, and liberal principles which made his administration of the government a blessing to the colony, and had secured him the affection of all classes of the inhabitants, as well as the high approbation of his sovereign."

His answer to that address was a beautiful illustration of the unaffected modesty, of the kindness and benevolence of his disposition, and of the principles which influenced his administration. "Charged by her Majesty's government with a mission of peace and reconciliation, I was received in Jamaica with open arms. The duties which I had to perform were obvious; my first proceedings were naturally watched with anxiety; but as they indicated good-will and a fair spirit, I obtained hearty support and co-operation. My task in acting along with the spirit which animated the colony was easy. Internal differences were adjusted—either by being left to the natural progress of affairs, during which the respective parties were enabled to apprehend their real interests; or by mild endeavours to promote harmony, and discourage dissension. The loyalty, the good sense, and good feeling of the colony did every thing."

The beneficial effects of his administration did not cease on his resignation. The principles on which he had conducted it, were such, that an adherence to them could not fail to secure similar effects in every succeeding government. It was his great object to cultivate such mutual confidence and good feeling between her Majesty's government and the

legislature, and all classes of the colony, as would influence and be apparent in the views and measures of the government, and as would secure the cordial co-operation of the legislature in adopting them. In promoting that object, he was ever anxious to supply the government with those means, which his local information and experience could alone furnish, of fully understanding and justly appreciating the views and measures of the Assembly. He was sensibly alive to whatever might impair the confidence of the government in that body. It was his desire to convey the most faithful representations himself, and to correct any misrepresentations conveyed by others. In a word, it was his constant object to keep the government fully and faithfully informed of all which would enable it to render justice to the colony. Until Lord Metcalfe's administration, her Majesty's government never understood, and never rightly appreciated, the motives and conduct of the legislature of Jamaica, and never did they know the confidence which might be bestowed on that legislature, and the all-powerful influence which, by means of that confidence, could be exercised on its legislation. The foundation for the most successful, because the most beneficial, government was thus permanently laid by Lord Metcalfe.

Lord Elgin succeeded Lord Metcalfe as the governor of Jamaica. He had the wisdom to follow the example of his predecessor, and adopt his principles of government, and pursue the path which he had opened. His administration was uninterrupted by any misunderstanding between the executive government and the Assembly. It merited and received the approbation of his sovereign, and the gratitude of the colony.

More than six years have elapsed since Lord Metcalfe entered on the government of Jamaica. During that space of time, in the former history of the colony, there were frequent dissolutions or prorogations caused by some dispute between the government and the Assembly, or between the different branches of the legislature. Since the appointment of Lord Metcalfe, no misunderstanding has arisen, but perfect harmony has prevailed amongst them. The principles of Lord Metcalfe, which established the relations between the government of the parent state and the various branches of the legislature of Jamaica, and between all classes of society there, in perfect confidence and good feeling, and entirely excluded distrust and suspicion, were so strongly recommended by the enduring success of his administration, that it is not possible to anticipate that they will ever be

forgotten or abandoned. There can be no difficulties which may not be surmounted, and confidence can never be supplanted by distrust: there can be no governor of Jamaica whose administration will not have merited and received the approbation of his sovereign, and the gratitude of the colony, so long as he religiously follows the example, and adheres to the principles of Lord Metcalfe. By such an adherence to these principles, Jamaica will retain, not the remembrance alone of the wisdom, the justice, the benevolence of his administration, and the blessings it conferred, but she will enjoy, in every succeeding generation, the same administration, for although directed by another hand, it will be characterised by the sane wisdom, the same justice and beneficence, and confer on her the same blessings.

But as the beneficent effects of his government are not limited in their duration to the time, so neither are they confined to the colony, in which it was administered. The same experience of its success, and the same considerations no less of interest than of duty, recommend and secure the adoption of its principles in the administration of the government of every other colony, as well as of Jamaica. Such was the impression with which the other British colonies regarded his administration in Jamaica. They considered that the same principles on which the government of Jamaica had been administered, would be adopted in the administration of their governments. Shortly after Lord Metcalfe's return from Jamaica, a numerous and influential body, interested in the other colonies, presented him with an address, expressing "the sentiments of gratitude and admiration with which they appreciated the ability, the impartiality, and the success of his administration of the government of Jamaica. They gratefully acknowledged his undeviating adherence to those just and liberal principles by which alone the relations between the parent state and the colonies can be maintained with the feelings essential to their mutual honour and welfare; and they expressed their conviction, that, as his administration must be the unerring guide for that of every other colony, so its benefits will extend to the whole colonial empire of Great Britain." Thus, by his administration of the government of one colony, during only the short space of two years, he laid the foundation for that permanent union of this and all the other colonies with the parent state, which would secure the welfare and happiness of the millions by whom they are inhabited, and add to the strength, the power, and splendour of the British empire.

Such is a faint record of only two years of the distinguished public life of this great and good man. How few statesmen have ever furnished materials for such a record? What greater good can be desired for our country, than that the example of Lord Metcalfe, and his administration of Jamaica, may ever be "the guide-post and land-mark" in her councils for the government of all her colonies, and may ever exercise a predominant influence in the relations between them and the parent state?

ANNALS AND ANTIQUITIES OF LONDON.

An Antiquarian Ramble in the Streets of London; with Anecdotes of their more celebrated Residents. By J. T. SMITH, late Keeper of the Prints and Drawings in the British Museum, Author of *Nollekins and his Times*, &c.

What is London? Walk into Lombard Street, and ask the Merchant; he will tell you at once—the Docks and the Custom-House, Lloyd's and the Bank, the Exchange, Royal or Stock. Drive your cab to the Carlton, and learn that it is Pall-mall and the Clubs, St James's and the Parks, Almack's and the Opera. Carry your question and your fee together to legal chambers, and be told that it is Westminster and Chancery Lane, Lincoln's Inn and the Temple. All that remains of mankind, that is not to be numbered in these several categories, will tell you it is a huge agglomeration of houses and shops, churches and theatres, markets and monuments, gas-pipes and paving-stones. Believe none—Yes, believe them all! We make our London, as we make our World, out of what attracts and interests ourselves. Few are they who behold in this vast metropolis a many-paged volume, abounding in instruction, offering to historian and philosopher, poet and antiquary, a luxuriant harvest and never-failing theme. We consider London, with reference to what it is and may become, not to what it has been. The present and the future occupy us to the exclusion of the past. We perambulate the great arteries of the Monster City, from Tyburn to Cornhill, from Whitechapel to the Wellington statue, and our minds receive no impression, save what is directly conveyed through our eyes; we pass, unheeding, a thousand places and objects rich in memories of bygone days, of strange and stirring events—great men long since deceased, and customs now long obsolete. We care not to dive into the narrow lanes and filthy alleys, where, in former centuries, sons of Genius and the Muses dwelt and starved; we seek not the dingy old taverns where the wit of our ancestors sparkled; upon the spot where a hero fell or a martyr perished, we pause not to gaze and to recall the memories of departed virtue and greatness. We are a matter-of-fact generation, too busy in money-getting to speculate upon the past. So

crowded has the world become, that there is scarce standing-room; and even the lingering ghosts of olden times are elbowed and jostled aside. It is the triumph of the tangible and positive over the shadowy and poetical.

Things which men will not seek, they often thankfully accept when brought to them in an attractive form and without trouble. Upon this calculation has the book before us been written. It is an attempt to convey, in amusing narrative, the history, ancient, mediæval, and modern, of the streets and houses of London. For such a work, which necessarily partakes largely of the nature of a compilation, it is obvious that industry is more essential than talent—extensive reading than a brilliant pen. Both of industry and reading Mr Smith makes a respectable display, and therefore we shall not cavil at any minor deficiencies. His subject would have been better treated in a lighter and more detached form; and, in this respect, he might have taken a hint from an existing French work of a similar nature, relating to Paris. But his materials are too sterling and interesting to be spoiled by any slight mistake in the handling. He has accumulated a large mass of information, quotation, and extract; and although few persons may read his book continuously from beginning to end, very many, we are sure, will dip with pleasure and interest into its pages.

West and East would have been no inappropriate title for Mr Smith's twin volumes. In the first, he keeps on the Court side of Temple Bar; the second he devotes to the City. As may be supposed, the former is the more sprightly and piquant chronicle; but the latter does not yield to it in striking records and interesting historical facts. Let us accompany the antiquarian on his first ramble, from Hyde Park Corner to Charing Cross, starting from Apsley House, of which, although scarcely included in the design of his work, as announced on the title-page, he gives, as of various other modern buildings, a concise account.

How few individuals of the human tide that daily flows and ebbs along Piccadilly are aware, that within a century that aristocratic quarter was a most disreputable outlet from London. The ground now covered with ranges of palaces, the snug and select district of May Fair, dear to opulent dowagers and luxurious *célibataires*, was occupied, but a short hundred years since, by a few detached dwellings in extensive gardens, and by a far larger number of low taverns. Some of these, as the White Horse and Half Moon, have given their names to the streets to which their bowling-greens

and skittle-alleys tardily gave way. The Sunday excursions of the lower orders were then more circumscribed than at present; and these Piccadilly public-houses were much resorted to on the Sabbath, in the manner of a country excursion; for Piccadilly was then the country. "Among the advertisements of sales by auction in the original edition of the *Spectator*, in folio, published in 1711, the mansion of Streater, jun., is advertised as *his country house*, being near Bolton Row, in Piccadilly; his town residence was in Gerrard Street, Soho." The taverns nearest to Hyde Park were chiefly patronised by the soldiers, particularly, we are informed, on review days, when they sat in rows upon wooden benches, placed in the street for their accommodation, combing, soaping, and powdering each other's hair. The bad character of the neighbourhood, and perhaps, also, the nuisance of May Fair, which lasted for fifteen days, and was not abolished till 1708, prevented the ground from increasing in value; and accordingly we find that Mr Shepherd, after whom Shepherd's Market was named, offered for sale, as late as the year 1750, his freehold mansion in Curzon Street, and its adjacent gardens, for five hundred pounds. At that price it was subsequently sold. Houses there were, however, in the then despised neighbourhood of Piccadilly, of high value; but it arose from their intrinsic magnificence, which counterbalanced the disadvantages of situation. Evelyn mentions having visited Lord John Berkeley at his stately new house, which was said to have cost thirty thousand pounds, and had a cedar staircase. He greatly commends the gardens, and says that he advised the planting of certain holly-hedges on the terrace. Stratton Street was built on the Berkeley estate, and so named in compliment to the Stratton line of that family. At what is now the south end of Albemarle Street, stood Clarendon House, built, as Bishop Burnet tells us, on a piece of ground granted to Lord Clarendon by Charles II. The Earl wished to have a plain ordinary house, but those he employed preferred erecting a palace, whose total cost amounted to fifty thousand pounds.

"During the war," says the Bishop, "and in the plague year, he had about three hundred men at work, which he thought would have been an acceptable thing, when so many men were kept at work, and so much money, as was duly paid, circulated about. But it had a contrary effect: it raised a great outcry against him." The sale of Dunkirk to the French for four hundred thousand pounds, had taken place only three years before, and was still fresh in men's minds. The odium of this transaction fell chiefly on

Lord Clarendon, who was accused of pocketing a share of its profits; and the people gave the name of Dunkirk House to his new mansion. Others called it Holland House, thereby insinuating that it was built with bribes received from the Dutch, with whom this country then waged a disastrous war. In spite of popular outcry, however, the house was completed in 1667, the year of Clarendon's disgrace and banishment. Fifteen years later, after his death, his heir sold the place to the Duke of Albemarle for twenty-five thousand pounds, just half what it cost; and the Duke parted with it for ten thousand more. Finally, it was pulled down to make room for Albemarle and Stafford Streets; of which latter, as appears from old plans of London, the centre of Clarendon House occupied the entire site.

Piccadilly was formerly the headquarters of the makers of leaden figures. The first yard for this worthless description of statues was founded by John Van Nost, one of the numerous train of Dutchmen who followed William III. to England. His establishment soon had imitators and rivals; and, in 1740, there were four of these figure-yards in Piccadilly, all driving a flourishing trade in their leaden lumber. The statues were as large as life, and often painted. "They consisted of Punch, Harlequin, Columbine, and other pantomimical characters; mowers whetting their scythes, haymakers resting on their rakes, gamekeepers in the act of shooting, and *Roman* soldiers with *firelocks*; but, above all, that of a kneeling African with a sundial upon his head, found the most extensive sale." Copies from the antique were also there, and had many admirers; but the unsuitableness of the heavy and pliable material was soon discovered, and, after a brief existence, the figure-yards died a natural death.

On the etymology of the word Piccadilly, Mr Smith expends much erudite research, without, as it appears to us, arriving at a very definite or satisfactory conclusion. A pickadill is defined by Blount, in his *Glossography*, as "the round hem of a garment, or other thing; also a kinde of stiff collar, made in fashion of a band." Hence Mr Smith infers, that the famous ordinary near St James's, which first bore the name of Piccadilly, may have received it because at that time it was the outmost or skirt-house of the suburb. The derivation is ingenious, but rather far-fetched. Another notion is, that a certain Higgin, a tailor, who built the house, had acquired his money by the manufacture of pickadills, then in great vogue. The orthography of the name has varied considerably. Evelyn mentions in his

memoirs, that, as one of the commissioners for reforming the buildings and streets of London, he ordered the paving of the road from St James's North, "which was a quagmire," and likewise of the Haymarket about "Pigudello." In the same year, however, 1662, it is found inscribed in tradesmen's tokens as Pickadilla; and this appears to be the most ancient mode of spelling it. In *Gerard's Herbal*, published in the reign of Queen Elizabeth, (1596,) the author, talking of the "small wild buglosse," says that this little flower "growes upon the drie ditch bankes about Pickadilla."

Where Bennet and Arlington Streets now stand, was formerly the celebrated mulberry gardens, referred to by Malone as a favourite haunt of Dryden, who loved to eat tarts there with his mistress, Anne Reeve. To the polite ears of the nineteenth century, the very name of a public garden is a sound of horror; and to see the cream of *the ton* taking their evening lounge at Cremorne, or the "Royal Property," and battenning upon mulberry tarts and sweetened wine, would excite as much astonishment as if we read in the *Moniteur* that the Duchess of Orleans had led a *galop* at Musard's masquerade. In the easy-going days of the second Charles, things were very different, and a fashionable company was wont to collect at the Mulberry Garden, to sit in its pleasant arbours, and feast upon cheesecakes and syllabubs. The ladies frequently went in masks, which was a great mode at that time, and one often adopted by the court dames to escape detection in the intrigues and mad pranks they so liberally permitted themselves. "In *The Humorous Lovers*, a comedy written by the Duke of Newcastle,^[4] and published in 1677, the third scene of Act I. is in the Mulberry Garden. Baldman observes to Courtly, "Tis a delicate plump wench; now, a blessing on the hearts of them that were the contrivers of this garden; this wilderness is the prettiest convenient place to woo a widow, Courtly." One can hardly fancy a wilderness in the heart of St James's, except of houses; but the one mentioned in the above passage had ceased to exist at the time the play appeared, at least as a place of public resort. Five years previously, the King had granted to Henry Earl of Arlington, "that whole piece or parcel of ground called the Mulberry Gardens, together with eight houses, with their appurtenances thereon," at a rent of twenty shillings per annum. Goring House, in which Mr Secretary Bennet, afterwards Earl of Arlington, resided, was probably one of these eight houses. Two years subsequently to the grant, it was burnt down, and the earl removed to Arlington House, which stood on the site of Buckingham Palace. Sheffield, Duke of

Buckingham, bought the former, pulled it down in 1703, and erected a new mansion, which was sold to the crown by his son, and allotted, in 1775, as a residence for the Queen, instead of Somerset House.

We are glad to learn from Mr Smith, that there is a plan on foot for the removal of the confined, dirty, and unwholesome district between Buckingham Palace and Westminster Abbey, now one of the vilest parts of the metropolis, the favourite abode of thieves, beggars, pawnbrokers, and gin-sellers. The streets adjacent to the palace have at no time been of the most spacious or respectable description, although Pimlico is vastly improved from what it was in the days of Ben Jonson, who uses the name to express all that was lowest and most disreputable. In his play of *The Alchymist*, he says, "Gallants, men and women, and of all sorts, tag-rag and bob-tail, have been seen to flock here in threaves, these ten weeks, as to a second Hoxton or Pimlico." And again, "besides other gallants, oysterwomen, sailors' wives, tobacco-men—another Pimlico." *Apropos* of the gin-palaces which have replaced the old-fashioned public-houses that abounded some twenty years ago in Westminster, Mr Smith makes a digression on the subject of drunkenness, and quotes some curious particulars from an old treatise, called *The London and Country Brewer*. "Our drunkenness, as a national vice," says the writer, "takes its date from the restoration of Charles the Second, or a few years later." It may be questioned whether drunkenness was not pretty well established as an English vice long before the period here referred to. We have the authority of various writers, however, for its having greatly increased about the time of the Stuarts' restoration. "A spirit of extravagant joy," says Burnet, in his *History of his own Times*, "spread over the nation. All ended in entertainments and drunkenness, which overrun the three kingdoms to such a degree, that it very much corrupted all their morals. Under the colour of drinking the King's health, there were great disorders, and much riot every where." This was no unnatural reaction after the stern austerity of the Protectorate. "As to the materials, (of drunkenness,)" continues *The Brewer*, "beer and ale were considerable articles; they went a great way in the work at first, but were far from being sufficient; and then strong waters came into play. The occasion was this: In the Dutch wars it had been observed that the captains of the Hollanders' men-of-war, when they were about to engage with our ships, usually set a hogshead of brandy abroach afore the mast, and bid the men drink *sustick*, that they might fight *lustick*; and our poor seamen

felt the force of the brandy to their cost. We were not long behind them; but suddenly after the war we began to abound in strong-water shops." Even the chandlers and the barber-surgeons kept stores of spirituous compounds, for the most part of exceeding bad quality, but sweetened and spiced, and temptingly displayed in rows of glass bottles, under Latin names of imposing sound. Aniseed-water was the favourite dram; until the French, finding out the newly-acquired taste of their old enemies, deluged the English markets with brandy, which was recommended by the physicians, and soon acquired universal popularity. It was sold about the streets in small measures, at a halfpenny and a penny each; and the consumption was prodigious, until a war broke out with France, when the supply of course stopped, and the poor were compelled to return to their *aqua vitæ* and *aqua mirabilis*, or, better than either, to the ale-glass. When speaking of the royal cockpit at Whitehall, Mr Smith tells us of "Admiral M'Bride, a brave sailor of the old school, who constantly kept game-cocks on board his ship, and on the morning of an action, endeavoured, and that successfully, to animate his men by the spectacle of a cock-fight between decks." This, if not a very humane expedient, according to modern notions, was at any rate an improvement upon Dutch courage, with which British seamen of the present day would scorn to fortify themselves.

St James's Park, originally a swamp, was first inclosed by Harry the Eighth, but little was done towards its improvement and embellishment until after the Restoration. It was within its precincts, that in July 1626 Lord Conway assembled the numerous and troublesome French retinue of Queen Henrietta Maria, and communicated to them the king's pleasure that they should immediately quit the country. The legion of hungry foreigners, including several priests and a boy bishop, scarcely of age, had hoped long to fatten upon English soil, and they received their dismissal with furious outcry and loud remonstrance. Their royal mistress also was greatly incensed, and broke several panes of glass with her fists, in no very queenly style. But Charles for once was resolute; the Frenchmen had, to use his own expressions, so dallied with his patience, and so highly affronted him, that he could no longer endure it. They found, however, all sorts of pretexts to delay their departure, claiming wages and perquisites which were not due, and alleging that they had debts in London, and could not go away till these were discharged. L'Estrange, in his Life of Charles I., and D'Israeli in his *Commentaries*, gives many curious particulars of the proceedings of this

troop of bloodsuckers. Under pretence of perquisites, they pillaged the queen's wardrobe and jewel-case, not leaving her even a change of linen. The king accorded them a reasonable delay for their preparations, but at last he lost all patience, as will be seen by the following characteristic letter to the Duke of Buckingham, dated from Oaking, the 7th of August 1626:

"STEENIE,—I have received your letter by Dic Greame, (Sir Richard Graham.) This is my answer: I command you to send all the French away to-morrow out of the towne, if you can by fair means, (but stike not long in disputing,) otherways force them away, dryving them away lyke so manie wilde beastes, until ye have shipped them, and so the devil goe with them. Let me heare no answer, but of the performance of my command. So I rest your faithful, constant, loving friend, C. R."

Thereupon the debts of the obnoxious French were paid, their claims, both just and unjust, satisfied, presents given to some of them, and they set out for Dover, nearly forty coaches full. "As Madame St George, whose vivacity is always described as extremely French, was stepping into the boat, one of the mob could not resist the satisfaction of flinging a stone at her French cap. An English courtier, who was conducting her, instantly quitted his charge, ran the fellow through the body, and quietly returned to the boat. The man died on the spot, but no further notice appears to have been taken of the inconsiderate gallantry of the English courtier."

The Stuarts were commonly plagued with the foreign attendants of their wives. When Charles the Second's spouse, Catherine of Braganza, arrived in England, she was escorted by a train of Portuguese ladies, who highly disgusted the king and his court, less, however, by their Papistry and greediness, than by their surpassing ugliness and obstinate adherence to the fashions of their country. "Six frights," says Anthony Hamilton in his memoirs of Count Grammont, "who called themselves maids of honour, and a duenna, another monster, who took the title of governess to these extraordinary beauties. Among the men were Francisco de Melo, and one Tauravedez, who called himself Don Pedro Francisco Correo de Silva, extremely handsome, but a greater fool than all the Portuguese put together; he was more vain of his names than his person; but the Duke of Buckingham, a still greater fool than he, though more addicted to raillery, gave him the name of Peter of the Wood. He was so enraged at this, that,

after many fruitless complaints and ineffectual menaces, poor Pedro de Silva was obliged to leave England; while the happy duke kept possession of a Portuguese nymph more hideous than the queen's maids of honour, whom he had taken from him, as well as two of his names. Besides these, there were six chaplains, four bakers, a Jew perfumer, and a certain officer, probably without an office, who called himself her highness's barber." Evelyn also tells us, that "the queen arrived with a train of Portuguese ladies in their monstrous fardingals or guard-infantas, their complexions olivader, and sufficiently unagreeable;" and Lord Clarendon talks of "a numerous family of men and women, that were sent from Portugal"—the women "old and ugly and proud, incapable of any conversation with persons of quality and a liberal education; and they desired, and indeed had conspired so far to possess the queen herself, that she should neither learn the English language, nor use their habit, nor depart from the manners and fashions of her own country in any particulars." Although the Infanta herself was by no means ill-looking, her charms did not come up to those of the flattered portrait which her mother, the old Queen of Portugal, had sent to Charles; and it is possible that the selection of plain women for her retinue had been intentional, that their ugliness might serve as a foil to her moderate amount of beauty. After a short time, however, the majority of these uncomely Lusitanians were sent back to their native country.

To return to Mr Smith and St James's Park. After his Restoration, Charles the Second, who, as worthy Thomas Blount says in his *Boscobel*, had been hunted to and fro like a "partridge upon the mountains," became very *casanier*, decidedly stay-at-home, in his habits, and cared little to absent himself from London and its vicinity. He had had buffeting and wandering enough in his youth, and, on ascending the throne of his unfortunate father, he thought of little besides making himself comfortable in his capital, careless of expense, which, even in his greatest need, he seems never to have calculated. He planted the avenues of the park, made a canal and an aviary for rare birds, which gave the name to Bird-Cage Walk. Amongst other freaks, and to provide for a witty Frenchman who amused him, he erected Duck Island into a government. Charles de St Denis, seigneur of St Evremond, who had been banished from France for a satire on Cardinal Mazarine, was the first and, it is believed, the last governor. He drew the salary attached to the appointment, which was certainly a more lucrative than honourable one for a man of his talents and reputation. According to

Evelyn, Charles stored the park with "numerous flocks of fowle. There were also deer of several countries—white, spotted like leopards; antelopes, as elk, red deer, roebucks, staggs, Guinea grates, Arabian sheep," &c. In the Mall, also made by him, Charles played at ball and took his daily walk. "Here," says Colley Cibber, "Charles was often seen amid crowds of spectators, feeding his ducks and playing with his dogs, affable even with the meanest of his subjects." Mr Smith regrets the diminished affability and less accessible mood of sovereigns of the nineteenth century, although he admits that the populace of France and England are at the present day too rude for it to be advisable that kings and queens should walk amongst them with the easy familiarity of the second Charles. Of that there can be very little doubt. Even Charles, whose dislike of ceremony and restraint, and love of gossip and new faces, were cause, at least as much as any desire for popularity, that he thus mingled with the mob, occasionally experienced the disagreeables of his undignified manner of life. Aubrey the credulous, Mr Smith tells us, relates in his *Miscellanies* the following anecdote of an incident that occurred in the Park. "Avisé Evans had a fungous nose, and said that it was revealed to him that the king's hand would cure him: and at the first coming of King Charles II. into St James's Park, he kissed the king's hand, and rubbed his nose with it, which disturbed the king, but cured him." It was whilst walking on the Mall that the pretended Popish plot of Oates and Bedloe was announced to Charles. "On the 12th of August 1678," says Hume, "one Kirby, a chemist, accosted the king as he was walking in the Park. 'Sir,' said he, 'keep within the company; your enemies have a design upon your life, and you may be shot in this very walk.' Being asked the reason of these strange speeches, he said that two men, called Grove and Pickering, had engaged to shoot the king, and Sir George Wakeman, the queen's physician, to poison him." Charles, unlike his grandfather, the timid James, was little apprehensive of assassination, and, when sauntering in the Park, preferred the society of two or three intimates to the attendance of a retinue. On one occasion, however, as a biographer has recorded, an impudent barber startled him from his usual happy *insouciance*. Accustomed to chat familiarly with his good-humoured master, the chin-scraper ventured to observe, whilst operating upon that of the king, that he considered no officer of the court had a more important trust than himself. "Why so, friend?" inquired the king. "Why," replied the barber, "I could cut your majesty's throat whenever I chose." Charles started up in

consternation, swore that the very thought was treason, and the indiscreet man of razors was deprived of his delicate charge.

In the *Daily Post* for October 31st, 1728, is an order of the Board of Green Cloth for clearing St James's Park of the shoe-cleaners and other vagrants, and sending them to the House of Correction. This reminds us of what has often excited our surprise, the absence from the streets of London of an humble but very useful class of professionals, who abound in many continental towns, in all French ones of any size. Abundant ingenuity is displayed in London in the discovery and invention of strange and out-of-the-way employments. Men convert themselves into "animated sandwiches" by back and breastplates of board, encase themselves in gigantic bottles to set forth the merits of some famed specific or potent elixir, or walk about with advertisements printed on their coats, peripatetic fly-sheets, extolling the comfort and economy of halfpenny steamers, and of omnibuses at a penny a mile. Some sweep crossings, others hold horses; but none of the vast number of needy *industrials* who strain their wits to devise new means of obtaining their daily ration and nightly shelter, have as yet taken pattern by the French *décrotteur* and German *stiefel-wichser*, and provided themselves for stock in trade with a three-legged stool, a brace of brushes, and a bottle of blacking. No one has been at Paris without finding the great convenience of the *ateliers de décrottage* which abound in the passages and in the more frequented of the streets, where, for three or four *sous*, the loungee who has had boots and trousers bemired by rapid cab or lumbering *diligence*, is brushed and polished with unparalleled rapidity and dexterity. But a very moderate capital is required for the establishment of these temples of cleanliness, and we recommend the subject to the consideration of decayed railway "stags."

"Duke Street Chapel, with a flight of steps leading to the Park, formed originally a wing of the mansion of the notorious Judge Jeffries. The house was built by him, and James the Second, as a mark of especial favour, allowed him to make an entry to the Park by the steps alluded to. The son of Jeffries inhabited it for a short time." It was this son and successor of the infamous Jeffries, who, with a party of rakes and debauchees, mohocks as they were at that time called, insulted the remains of the poet Dryden, and the grief of his widow. They happened to pass through Gerrard Street, Soho, when Dryden's remains were about to be conveyed from his house, No. 43,

in that street, to Westminster Abbey. Although it was in the daytime, Jeffries was drunk; he swore that Dryden should not be buried in so shabby a manner, (eighteen mourning coaches waited to form the procession,) and that he would see due honour done to his remains. After frightening Lady Elizabeth, who was ill in bed, into a fainting fit, these aristocratic ruffians stopped the funeral, and sent the body to an undertaker in Cheapside. The bishop waited several hours in Westminster Abbey, and at last went away. When Jeffries became sober, he had forgotten all about the matter, and refused to have any thing to do with the interment. The corpse lay unburied for three weeks. At last the benevolent Dr Garth had it taken to the College of Physicians, got up a subscription for the expenses of the funeral, and followed the body to Westminster Abbey. The poet's son challenged Jeffries, but Jeffries showed the white feather, and, to avoid personal chastisement, kept carefully out of the way for three years, when Charles Dryden was drowned near Windsor.

Mr Smith is most indulgent to the blunders and blockheadism of our modern architects and monument-makers, far too much so, indeed, when he speaks approvingly of Trafalgar Square and its handsome fountains, and without positive disapprobation of the vile collection of clumsy buildings and ill-executed ornament defacing that site. There has been a deal of ink spilt upon this subject, and we have no intention of adding to the quantity, especially as there is no chance that any flow of fluid, however unlimited, shall blot out the square and its absurdities. But we defy any Englishman, with the smallest pretensions to taste, to pass Charing Cross without feelings of shame and disgust at the mismanagement and ignorance there manifest. Such an accumulation of clumsiness was surely never before witnessed. The wretched National Gallery with its absurd dome, crushed beneath the tall and symmetrical proportions of St Martin's portico, overtopped even by the private dwelling-houses in its vicinity; the dirty, ill-devised, and worse-executed fountains, with their would-be-gracefully curved basins, the steps and parapets, which give the whole place the appearance of an exaggerated child's toy. Well may foreigners shrug their shoulders, and smile at the public buildings of the great capital of Britain. A fatality attends all our efforts in that way. In regard to architecture and ornament, we pay more and are worse served than any body else. So habituated are we to failure in this respect, that when a public building is completed, scaffolding removed, and a fair view obtained, we wonder and

exult if it is found free from glaring defects, and in no way particularly obnoxious to censure. As to its proving a thing to be proud of, to be gazed at and admired, and to be spoken of out of England, or even in England, after the fuss and ceremony of its inauguration is over, we never dream of such a thing. The negative merit of having avoided the ridiculous and the grotesque, is subject for satisfaction, almost for pride. Assuredly we love not to exalt other countries at the expense of our own, to draw invidious comparisons between things English and things foreign. But the difference between public buildings of modern erection in London and in Paris is so immense, that it can escape no one. Take, for instance, the Paris *Bourse* and the London Exchange. The former, it has been objected, is out of character; a Greek temple is no fitting rendezvous for the sons of commerce; a less classic fane were more appropriate for the discussion of exchanges, for sales of cotton and muscovado. The objection, according to us, is flimsy and absurd, and must have originated with some Vandalic and prejudiced booby, with whom consistency was a monomania. Nevertheless we will, for argument's sake, admit its validity. Is that a reason that the traders and capitalists of London should meet in a building which, for heaviness and exaggerated solidity, rivals a South American Inquisition? Do the Barings and the Rothschilds anticipate an attack upon their strong boxes, and intend to stand a siege within the massive walls of the Royal Exchange? Assuredly the narrow doorways may easily be defended; for a time, at least, the ponderous walls will mock the cannonade. The curse of heaviness is upon our architects. There is total want of grace, and lightness, and airiness in all their works. Behold our new Senate House! Do its florid beauties and overdone decorations, unsparingly as they have been lavished, and convenient as they will doubtless be found as receptacles for bird's nests, contrast favourably with the elegant and dignified simplicity of the Chamber of Deputies? The two, it will be said, cannot be assimilated: the vast difference of size precludes a comparison. We reply, that the buildings are for the same purpose; but were they not, proportion at least should be observed. The Parliament House is far too low for its length. Want of elevation is the common fault, both in the ideas and in the productions of our architects.

Are we more successful in statues than in buildings? Mr Smith has some sensible remarks on this score. Speaking of the equestrian statue of George III. in Cockspur Street, he says, that "critics object to the cocked hat and tie-

wig in the royal figure; but, some ages hence, these abused parts will be the most valuable in the whole statue. It may very reasonably be asked, why an English gentleman should be represented in the dress of a Roman tribune? Let the man appear, even in a statue, in his habit as he lived; and whatever we may say, posterity will be grateful to us. We should like to know exactly the ordinary walking-dress of Cæsar or Brutus, and how they wore their hair; and we should not complain if they had cocked hats or periwigs, if we knew them to be exact copies of nature." It is certain that modern physiognomy rarely harmonises with ancient costume. What is to be said of the aspect of the "first gentleman of Europe," wrapped in his horsecloth, and astride on his bare-backed steed, in the aforesaid Square of Trafalgar? Assuredly nothing in commendation. There are portraits of Napoleon in classic drapery, and, even with his classically correct countenance, he looks a very ordinary, under-sized Roman. But, in his grey *capote* and small cocked hat, the characteristic is preserved, and we at once think of, and wonder at, the hero of Austerlitz and Marengo.

Leicester Square, as Mr Smith justly observes, has more the appearance of the *Grande Place* of some continental city than of a London square. The headquarters and chief rendezvous of aliens, especially of Frenchmen, it bears numerous and unmistakeable marks of its foreign occupancy. French hotels and restaurants replace taverns and chop-houses. French names are seen above shops; promises of French, German, and Spanish conversation, are read in the windows; and grimy-visaged, hirsute individuals, in plaited pantaloons and garments of eccentric cut, saunter, cigar in mouth, over the shabby pavement. It is curious to remark the different tone and station taken by English in Paris and French in London. In the former capital, nothing is too good for the intruding islanders. In the best and most expensive season, they throng thither, and strut about like lords of the soil, perfectly at home, and careless of the opinions of the people amongst whom they have condescended to come. The best houses are for their use; the most expensive shops are favoured with their custom; and if occasionally tormented by a troublesome consciousness of paying dearly for their importance, they easily console themselves by a malediction on the French *voleurs*, who thus take advantage of their long purses and open hands. How different is it with the Frenchman in London! He comes over, for the most part, at the dullest time of the year, in the autumn, when the town is foggy, and dreary, and empty; when the Parks are deserted, shutters shut, the

theatres dull, and exhibitions closed. He has certain vague apprehensions of the tremendous expense entailed by a visit to the English capital. To avoid this, he makes a toil of a pleasure; wearies himself with economical calculations; and creeps into some inferior hotel or dull lodging-house, tempted by low prices and foreign announcements. We find French deputies abiding in Cranbourn Street, and counts contenting themselves with a garret at Pagliano's. Thence they perambulate westwards; and ignorant, or not choosing to remember, that London is out of town, and that they have selected the very worst possible season to visit it, they greatly marvel at the paucity of equipages, at the abundance of omnibuses and hack-cabs, and the scarcity of sunbeams; and return home to inform their friends that London is a *ville monstre*, with spacious streets, small houses, few amusements; very great, but very gloomy; and where the nearest approach to sunshine resembles the twinkling of a rushlight through a plate of blue earthenware.

"The foreign appearance of Leicester Square is not of recent growth. It seems to have been the favourite resort of strangers and exiles ever since the place was built. Maitland, who wrote more than a hundred years ago, describing the parish of St Anne's, in which it is situate, says—"The fields in these parts being but lately converted into buildings, I have not discovered any thing of great antiquity in this parish. Many parts of it so greatly abound with French, that it is an easy matter for a stranger to imagine himself in France."

Sydney Alley is named after the Earls of Leicester, who had their town-house on the north side of the square, where Leicester Place has since been opened. Elizabeth, Queen of Bohemia, daughter of James I., occupied, for some years, this residence of the Sydneys. She also inhabited a house in Drury Place, where Craven Street now stands, which was built for her by Lord Craven. It was called Bohemia House for many years afterwards, and at last became a tavern, at the sign of the Queen of Bohemia. "The Earl of Craven was thought to have been privately married to the queen, a woman of great sweetness of temper and amiability of manners—a universal favourite both in this country and Bohemia, where her gentleness acquired her the title of 'The Queen of Hearts.' By right of their descent from her, the House of Hanover ascended the throne of this kingdom." Lord Craven was the eldest son of Sir William Craven, lord-mayor of London in 1611. He fought under Gustavus Adolphus with great distinction, and returned to

England at the Restoration, when Charles II. made him viscount and earl. He commanded a regiment of the guards until within three or four years of his death, which occurred in 1697, at the advanced age of eighty-five. "He was an excellent soldier," says the advertisement of his decease in No. 301 of the *Postman*, "and served in the wars under Palsgrave of the Rhine, and also under the great Gustavus Adolphus, where he performed sundry warlike exploits to admiration; and, in a word, he was then in great renowne."

However indifferently Leicester Square may at present be inhabited, and notwithstanding its long-standing reputation as a foreign colony, it has been the chosen abode of many distinguished men. Hogarth and Reynolds lived and died there. Hogarth's house is now part of the Sablonière Hotel. Sir Joshua's was on the opposite side of the square; and both of them, especially the latter, were much resorted to by the wits and wise men of the day. Johnson, Boswell, and, at times, Goldsmith, were constant visitors to Reynolds. John Hunter, the anatomist, lived next-door to Hogarth's house; and in 1725, Lords North and Grey, and Arthur Onslow, the Speaker, also inhabited this square. Leicester House, where the Queen of Bohemia lived, is called by Pennant the "pouting-place of princes." George II. retired thither when he quarrelled with his father; and his son Frederick, the father of George III., did the same thing for the same reason. Whilst Prince Frederick and the Princess of Wales lived there, they received the wedding visit of the Hon. John Spencer, ancestor of the present Earl Spencer, and of his bride, Miss Poyntz. Contrary to established etiquette, the bridal party went to visit the Prince before paying their respects to the King. They came in two carriages and a sedan chair; the latter, which was lined with white satin, contained the bride, and was preceded by a black page, and followed by three footmen in splendid liveries. The diamonds presented to Mr Spencer, on occasion of his marriage, by Sarah, Duchess of Marlborough, were worth one hundred thousand pounds. The bridegroom's shoe-buckles alone cost thirty thousand pounds. An old gentleman, born more than a century ago, from whom Mr Smith obtained some of these particulars, informed him, that about that time the neighbourhood was so thinly built, that when the heads of two men, executed for participation in the Scotch rebellion, were placed on Temple Bar, a man stood in Leicester Fields with a telescope, to give the boys a sight of them for a penny a-piece.

A house in Leicester Fields was the scene of some of the eccentricities of that semi-civilised hero, Peter the Great of Russia. It belonged to the Earl of Aylesbury, and was inhabited, during the Czar's visit to this country, by the Marquis of Carmarthen, who gave a grand ball there, on the 2d April 1698, in honour of the imperial stranger. The Marquis was Peter's particular chum and boon companion, and the Czar preferred his society to all the gaieties and visitors that beset him during his residence in England. Peter was very shy of strangers, and when William the Third gave him a magnificent entertainment at St James's, he would not mix with the company, but begged to be put into a cupboard, whence he could see without being seen. He drank tremendously, and made Lord Carmarthen do the same. Hot brandy, seasoned with pepper, was his favourite drink. Something strong he certainly required to digest his diet of train-oil and raw meats. On one occasion, when staying in Leicester Fields with the Marquis, he is said to have drunk a pint of brandy and a bottle of sherry before dinner, and eight bottles of sack after it, and then to have gone to the play, seemingly no whit the worse. He lodged in York Buildings, in a house overlooking the river, supposed by some to be that at the left-hand corner of Buckingham Street. A house in Norfolk Street also had the honour of sheltering him. "On Monday night," says No. 411 of the *Postman* "the Czar of Muscovy arrived from Holland, and went directly to the house prepared for him in Norfolk Street." His principal amusement was being rowed on the Thames between London and Deptford; and at last, in order to live quietly and avoid the hosts of visitors who poured in upon him, he took Admiral Benbow's house at the latter place. It stood on the ground now occupied by the Victualling Office, and was the property of the well-known John Evelyn.

"Horne Tooke," says Mr Smith, "in his *Diversions of Purley*, derives the word Charing from the Saxon *Charan*, to turn; and the situation of the original village, on the bend or turning of the Thames, gives probability to this etymology." Every body knows that Charing, now so central a point, was once a little hamlet on the rural high-road between London and Westminster, and that the "Cross" was added to it by Edward the First, who, when escorting his wife's remains from Lincolnshire to Westminster Abbey, erected one at each place where the beloved corpse rested. The first cross, which was of wood, and probably of rude enough manufacture, gave way to one of stone, designed by Cavalini. About the middle of the seventeenth century, that period of puritanical intolerance, this was removed by order of

the Commons' House, an order which the royalists took care to ridicule by song and lampoon. According to Lilly the astrologer and quack, the workmen were three months pulling it down, and some of the stones were used for the pavement before Whitehall. Others were made into knife-handles, and Lilly saw some of them which were polished and looked like marble. Those were days in which kingly memorials found as little favour as popish emblems; and after the death of Charles the First, the statue that now stands at Charing Cross, and which had been cast by Le Sueur in 1633 for the Earl of Arundel, was sold and ordered to be broken up. It was bought by one Rivet, a brazier, who, instead of breaking, buried it. This did not prevent the ingenious mechanic from making a large and immediate profit by the effigy of the martyred monarch; for he melted down old brass into knife and fork-handles, and sold them as proceeding from the King's statue. Roundheads and cavaliers all flocked to buy; the former desiring a trophy of their triumph, the latter eager to possess a memento of their lamented sovereign. In 1678, £70,000 was voted by Parliament for the obsequies of Charles I., and for a monument to his memory, and with a portion of this sum, how large a one is not known, the statue was repurchased.

The historian of the streets and houses of a great and ancient city, has, in many ways, a most difficult task to perform. Not only must he read much, observe closely, and diligently inquire, display ingenuity in deduction and judgment in selection, but he must be steadfast to resist temptation. For, assuredly, to the lover of antiquarian and historical lore, the temptation is immense, whilst culling materials from quaint old diaries, black-letter pamphlets, and venerable newspapers, to expatiate and extract at a length wholly inconsistent with the necessary limits of his work. Some writers are at pains to dilate their matter—his chief care must be to compress. What would fairly fill a sheet must be packed into a page—the pith and substance of a volume must be squeezed into a chapter. The diligent compiler should not be slightly considered by the creative and aspiring genius. Like the bee, he forms his small, rich store, from the fragrance of a thousand flowers—adopting the sweet, rejecting the nauseous and insipid. Nor must he dwell too long on any pet and particular blossom, lest what would please in due proportion should cloy by too large an admixture. To vary the metaphor, the writer of such a work as this *Antiquarian Ramble*, should be a sort of literary Soyer, mixing his materials so skilfully that the flavour of each is preserved, whilst not one unduly predominates. He must not prance off on a

hobby, whether architectural, historical, social, or romantic, but relieve his cattle and his readers by jumping lightly and frequently from one saddle to another.

How many books might be written upon the themes briefly glanced at in Mr Smith's book! Let us take, for instance, the places of public executions in London. Charing Cross was for centuries one of them, and its pillory was the most illustrious amongst the many that formerly graced the capital—illustrious by reason of the remarkable evil-doers who underwent ignominy in its wooden and unfriendly embrace. The notorious Titus Oates, and Parsons, the chief contriver of the Cock-Lane Ghost, were exposed in it. To the rough treatment which, in former days, sometimes succeeded exposure in the pillory, the following paragraph, from the *Daily Advertiser* of the 11th June 1731, abundantly testifies:—"Yesterday Japhet Crook, *alias* Sir Peter Stranger, stood on the pillory for the space of one hour; after which he was seated in an elbow-chair, and the common hangman cut both his ears off with an incision knife, and showed them to the spectators, afterwards delivered them to Mr Watson, a sheriff's officer; then slit both his nostrils with a pair of scissors, and sear'd them with a hot iron, pursuant to his sentence. He had a surgeon to attend him to the pillory, who immediately applied things necessary to prevent the effusion of blood. He underwent it all with undaunted courage; afterwards went to the Ship tavern at Charing Cross, where he stayed some time; then was carried to the King's Bench Prison, to be confined there for life. During the time he was on the pillory he laughed, and denied the fact to the last." Petty punishments these, although barbarous enough, inflicted for paltry crimes upon mean malefactors. Criminals of a far higher grade had, previously to that, paid the penalty of their offences at the Cross of Charing. Hugh Peters, Cromwell's chaplain, was there hung, as were Scrope, Jones, Harrison, and others of the king-killers. Long had been their impunity; but vengeance at last overtook them. To the end they showed the stern fanatical resolution of Oliver's iron followers. "Where is your GOOD OLD CAUSE?" cried a scoffer to Harrison, as he was led to the scaffold. "Here!" he replied, clapping hand on breast; "I go to seal it with my blood." At the foot of the ladder, which he approached with undaunted mien, his limbs were observed to tremble, and some amongst the mob made a mockery of this weakness. "I judge," said Harrison, "that some do think I am afraid to die, by the shaking I have in my hands and knees. *I* tell you NO! but it is by reason of much blood that I

have lost in the wars, and many wounds I have received in my body, which caused this shaking and weakness in my nerves." And he spoke further, and told the populace how he gloried in that he had done, and how, had he ten thousand lives, he would cheerfully lay them down in the same cause. "After he was hanged, a horrible scene took place. In conformity to the barbarous sentence then, and for many years afterwards, executed upon persons convicted of treason, he was cut down alive and stripped, his belly was cut open, his bowels taken out and burned before his eyes. Harrison, in the madness of his agony, rose up wildly, it is said, and gave the executioner a box on the ear, and then fell down insensible. It was the last effort of matter over mind, and for the time it conquered." The other regicides died with the same firmness and contempt of death. "Their grave and graceful demeanour," says the account in the state trials, "accompanied with courage and cheerfulness, caused great admiration and compassion in the spectators." So much so, and so strong was the sympathy excited, that the government gave orders that no more of them should be executed in the heart of London. Accordingly the remainder suffered at Tyburn.

Upon the old Westminster market-place a most barbarous event occurred in the time of that tyrannical, acetous old virgin, Queen Bess, who assuredly owes her renown and the sort of halo of respect that surrounds her memory, far less to any good qualities of her own, than to the galaxy of great men who flourished during her reign. The glory that encircles her brow is formed of such stars as Cecil, Burleigh and Bacon, Drake and Raleigh, Spencer, Shakspeare, and Sydney. Touching this barbarity, however, enacted by order of good Queen Bess. At the mature age of forty-eight, her majesty took it into her very ordinary-looking old head to negotiate a marriage with the Duke of Anjou. Commissioners came from France to discuss the interesting subject, and were entertained by pageants and tournaments, in which Elizabeth enacted the Queen of Beauty; and subsequently the duke came over himself, as a private gentleman, to pay his court to the last of the Tudors. The duke being a papist, the proposed alliance was very unpopular in England, and one John Stubbs, a barrister of Lincoln's-Inn, wrote a pamphlet against it, entitled, "The Discoverye of a gaping gulphe, whereinto England is like to be swallowed by another French marriage, if the Lord forbid not the banns, by letting her Majestye see the sin and punishment thereof." Certain expressions in this imprudent publication greatly angered the Queen; Stubbs and his servant, Page, were

brought to trial, and condemned to lose their right hands. This cruel and unusual sentence was carried into effect on the market-place at Westminster, and witnessed by Camden, who gives an account of it. Both sufferers behaved with great fortitude and courage. Their hands were cut off with a butcher's cleaver and mallet, and as soon as Stubbs had lost his, he pulled off his cap with his left, waved it in the air, and cried—"God save the Queen!" He then fainted away. It took two blows to sever Page's hand, but he flinched not, and pointing to the block where it lay, he exclaimed—"I have left there the hand of a true Englishman!" And so he went from the scaffold, says the account, "stoutlie and with great courage."

Amongst spots of sanguinary notoriety, Smithfield, of course, stands prominent. The majority of the two hundred and seventy-seven persons burned for heresy during Mary's short reign, suffered there; and here also, upon two occasions, the horrible punishment of boiling to death, formerly inflicted on poisoners, was witnessed. In France this was the punishment of coiners, and there is still a street at Paris known as the *Rue de l'Echaudé*. In Stow's *Annals* it is recorded, that on the fifth of April 1531, "one Richard Rose, a cook, was boiled in Smithfield for poisoning of divers persons, to the number of sixteen or more." Two only of the sixteen died, but the others were never restored to health. If any thing could reconcile us to torture, as a punishment to be inflicted by man on his offending brother, it is such a crime as this.

If the punishments of our ancestors were cruel, if trials were sometimes over hasty, and small offences often too severely chastised, on the other hand, culprits formerly had facilities of escape now refused to them. The right of sanctuary was enjoyed by various districts and buildings in London. Pennant and many other writers have stigmatised this practice as absurd; Mr Smith defends it upon very reasonable grounds. "In times when every man went armed, when feuds were of hourly occurrence in the streets, when the age had not yet learned the true superiority of right over might, and when private revenge too often usurped the functions of justice, it was essential that there should be places whither the homicide might flee, and find refuge and protection until the violence of angry passions had subsided, and there was a chance of a fair trial for him." Not all sanctuaries, however, gave protection to the murderer, at least in later times. Whitefriars, for instance, once a refuge for all criminals, except traitors, afforded shelter, after the

fifteenth century, to debtors only. In 1697 this sanctuary was abolished entirely, at the same time with a dozen others. It is not well ascertained how it acquired the slang name of Alsatia, which is first found in a play of Shadwell's, *The Squire of Alsatia*. Immortalised by the genius of Scott, no sanctuary will longer be remembered than Whitefriars. It was one of the largest; many others of the privileged districts being limited to a court or alley, a few houses or a church. Thus Ram Alley and Mitre Court in Fleet Street, and Baldwin's Gardens in Gray's Inn Lane, were amongst these refugees of roguery and crime. Whitefriars was much resorted to by poets and players, dancing and fencing masters, and persons of the like vagabond and uncertain professions. The poets and players were attracted by the vicinity of the theatre in Dorset Gardens, built after the fire of London, by Sir Christopher Wren, upon the site of Dorset House, the residence of the Sackvilles. Here Sir William Davenant's company of comedians—the Duke of York's servants, as they were called—performed for a considerable time. It appears, however, that even before the great fire, there was a theatre in that neighbourhood. Malone, in his *Prologomena* to Shakspeare, quotes a memorandum from the manuscript book of Sir Henry Herbert, master of the revels to King Charles I. It runs thus:—"I committed Cromes, a broker in Long Lane, the 16th of February 1634, to the Marshalsey, for lending a church robe with the name of Jesus upon it *to the players in Salisbury Court*, to represent a Flamen, a priest of the heathens. Upon his petition of submission and acknowledgement of his faults, I released him the 17th of February 1634."

The ancient sanctuary at Westminster is of historical and Shaksperian celebrity, as the place where Elizabeth Grey, Queen of Edward the Fourth, took refuge, when Warwick the king-maker marched to London to dethrone her husband, and set Henry the Sixth on the throne. It was a stone church, built in the form of a cross, and so strongly, that its demolition, in 1750, was a matter of great difficulty. The precinct of St Martin's-le-Grand was also sanctuary. Many curious particulars respecting it are to be found in Kempe's *Historical Notices of the Collegiate Church, or Royal Free Chapel and Sanctuary of St Martin's-le-Grand, London*, published in 1825. In the reign of Henry the Fifth, this right of sanctuary gave rise to a great dispute between the Dean of St Martin's and the city authorities. "A soldier, confined in Newgate, was on his way to Guildhall, in charge of an officer of the city, when on passing the south gate of St Martin's, opposite to Newgate

Street, five of his comrades rushed out of Panyer Alley, with daggers drawn, rescued him, and fled with him to the holy ground." The sheriff had the sanctuary forced, and sent rescued and rescuers to Newgate. The Dean of St Martin's, indignant at this violation of privilege, complained to the king, who ordered the prisoners to be liberated. Thereat the citizens, ever sticklers for their rights, demurred, and at last it was made a Star-Chamber matter. The dean pleaded his own cause, and that right skilfully and wittily. He denied that the chapel of St Martin's formed any part of the city of London, as claimed by the corporation; quoted a statute of Edward III. constituting St Martin's and Westminster Abbey places of privilege for treason, felony, and debt; and mentioned the curious fact, that "when the King's justices held their sittings in St Martin's Gate, for the trial of prisoners for treason or felony, the accused were placed before them, *on the other side of the street*, and carefully guarded from advancing forward; for if they ever passed the water-channel which divided the middle of the street, they might claim the saving franchise of the sacred precinct, and the proceedings against them would be immediately annulled." The dean also expressed his wonder that the citizens of London should be the men to impugn his church's liberties, since more than three hundred worshipful members of the corporation had within a few years been glad to claim its privilege. The Star-Chamber decided against the city, and the prisoners were restored to sanctuary. The Savoy was another sanctuary; and it was the custom of the inhabitants to tar and feather those who ventured to follow their debtors thither.

In the theatrical district of London, Mr Smith lingers long and fondly; for there each house, almost every brick, is rich in reminiscences, not only of players and playhouses, but of wits, poets, and artists. In the burial-ground of St Paul's, Covent-Garden, repose not a few of those who in their lifetime inhabited or frequented the neighbourhood. There lies the author of Hudibras. "Mr Longueville, of the Temple, Butler's steady friend, and who mainly supported him in his latter days, when the ungrateful Stuart upon the throne, whose cause he had so greatly served, had deserted him, was anxious to have buried the poet in Westminster Abbey. He solicited for that purpose the contributions of those wealthy persons, his friends, whom he had heard speak admiringly of Butler's genius, and respectfully of his character, but none would contribute, although he offered to head the list with a considerable sum." So poor Butler was buried in Covent-Garden, privately but decently. He is in good company. Sir Peter Lely, the painter of

dames, the man who seemed created on purpose to limn the languishing and voluptuous beauties of Charles the Second's court, is also buried in St Paul's; as are also Wycherley and Southerne, the dramatists; Haines and Macklin, the comedians; Arne, the musician; Strange, the engraver; and Walcot, *alias* Peter Pindar. Sir Peter Lely lived in Covent-Garden, in very great style. "The original name of the family was Vandervaes; but Sir Peter's father, a gallant fellow, and an officer in the army, having been born at a perfumer's shop, the sign of the Lily, was commonly known by the name of Captain Lily, a name which his son thought to be more euphonious to English ears than Vandervaes, and which he retained when he settled here, slightly altering the spelling." Wycherley, a dandy and a courtier, as well as an author, had lodgings in Bow Street, where Charles II. once visited him when he was ill, and gave him five hundred pounds to go a journey to the south of France for the benefit of his health. When he afterwards married the Countess of Drogheda, a young, rich, and beautiful widow, she went to live with him in Bow Street. She was very jealous, and when he went over to the "Cock" tavern, opposite to his house, he was obliged to make the drawer open the windows, that his lady might see there was no woman in the company. This "Cock" tavern was the great resort of the rakes and mohocks of that day; of Buckhurst, Sedley, Killigrew, and others of the same kidney. In fact, Bow Street was then the Bond Street of London; and the "Cock," its "Long's" or "Clarendon." Dryden, in an epilogue, talks of the "Bow Street beaux," and several contemporary writers have similar allusions. Like most places where the rich congregate, this fashionable quarter was a fine field for the ingenuity of pick-pockets, and especially of wig and sword-stealers, a class of thieves that appeared with full-bottomed periwigs and silver-hilted rapiers. In those days, to keep a man's head decently covered, cost nearly as much as it now does to fill his belly and clothe his back. Wigs were sometimes of the value of forty or fifty pounds. Ten or fifteen pounds was an exceeding "low figure" for these modish incumbrances. Out of respect to such costly head-dress, hats were never put on, but carried under the arm. The wig-stealers could demand no more. Mr Smith quotes a passage from Gay, describing their manœuvres:—

"Nor is thy flaxen wig with safety worn:
High on the shoulder, in a basket borne,
Lurks the sly boy, whose hand, to rapine bred,
Plucks off the curling honours of thy head."

Will's coffeehouse was in Bow Street, and "being the grand resort of wits and critics, it is not surprising," says Mr Smith, "that it should become also the headquarters of envy, slander, and detraction." There was then a lack of printed vehicles for the venting of the evil passions of rival *literati*; lampoons were circulated in manuscript, and read at Will's. As the acknowledgment of the authorship might sometimes have had disagreeable consequences for the author, a fellow of the name of Julian, who styled himself "Secretary to the Muses," became the mouthpiece of libeller and satirist. He read aloud in the coffee-room the pasquinades that were brought to him, and distributed written copies to all who desired them. Concerning this base fellow, Sir Walter Scott gives some curious particulars in his edition of Dryden's works. There is no record of cudgelings bestowed upon Julian, though it is presumed that he did not escape them. "He is described," says Malone, "as a very drunken fellow, and at one time was confined for a libel." Dryden was a great sufferer from these violent and slanderous attacks—a sufferer, indeed, in more senses than one; for, besides being himself made the subject of venomous lampoons, he was suspected unjustly of having written one, and was waylaid and beaten on his way from Will's to his house in Gerrard Street. A reward of fifty pounds was offered for the apprehension of his assailants, but they remained undiscovered. Lord Rochester was their employer: Lord Mulgrave the real author of the libel.

In James Street, Covent-Garden, where Garrick lodged, there resided, from 1714 to 1720, a mysterious lady, who excited great interest and curiosity. Malcolm, in his *Anecdotes of London during the Eighteenth Century*, gives some account of her. She was middle-sized, dark-haired, beautiful and accomplished, and apparently between thirty and forty years old. She was wealthy, and possessed very valuable jewels. Her death was sudden, and occurred after a masquerade, where she said she had conversed with the King. It was remembered that she had been seen in the private apartments of Queen Anne; but after that Queen's death, she lived in obscurity. "She frequently said that her father was a nobleman, but that, her

elder brother dying unmarried, the title was extinct; adding, that she had an uncle then living, whose title was his least recommendation. It seems likely enough that she was connected in some way with the Stuart family, and with their pretensions to the throne."

Dr Arne was born in King Street. His father, an honest upholsterer, at the sign of the "Two Crowns and Cushions," is said to have been the original of Murphy's farce of *The Upholsterer*. He did not countenance his son's musical propensities; and young Arne had to get up in the night, and practise by stealth on a muffled spinet. The first intimation received by the worthy mattress-maker of his son's proficiency in music, was one evening at a concert, where he quite unexpectedly saw him officiating as leader of the orchestra.

Voltaire, when in England, after his release from the Bastille, whither he had been sent for libel, lodged in Maiden Lane, at the White Peruke, a wigmaker's shop. When walking out, he was often annoyed by the mob, who beheld, in his spare person, polite manners, and satirical countenance, the personification of their notion of a Frenchman. "One day he was beset by so great a crowd that he was forced to shelter himself against a doorway, where, mounting the steps, he made a flaming speech in English in praise of the magnanimity of the English nation, and their love of freedom. With this the people were so delighted, that their jeers were turned into applauses, and he was carried in triumph to Maiden Lane on the shoulders of the mob." From which temporary elevation the arch-scoffer doubtless looked down upon his dupes with glee, suppressed, but immeasurable.

Quitting the abodes of wit and the drama for those of legal learning, we pass from Covent-Garden to Lincoln's Inn Fields, through Great Queen Street, in the Stuarts' day one of the most fashionable in London. Here dwelt Lord Herbert of Cherbury, and here he wrote the greater part of his treatise *De Veritate*, concerning the publication of which he believed himself, according to his own marvellous account, to have had a special revelation from heaven. A strange weakness, or rather madness, on the part of a man who disbelieved, or at least doubted, of general revelation. For himself, he thought an exception possible. Insanity alone could explain and excuse such illogical vanity. Near to this singular enthusiast lived Sir Godfrey Kneller, whose next-door neighbour and friend was Radcliffe the physician. "Kneller," says Horace Walpole, in his *Anecdotes of Painting*,

"was fond of flowers, and had a fine collection. As there was great intimacy between him and the physician, he permitted the latter to have a door into his gardens; but Radcliffe's servants gathering and destroying the flowers, Kneller sent him word he must shut up the door. Radcliffe replied peevishly, "Tell him he may do any thing with it but paint it." "And I," answered Godfrey, "can take any thing from him but his physic." Pope and Gay were frequent visitors at the painter's studio. At the wall of Lincoln's Inn Garden, Ben Jonson is by some asserted to have laboured as a bricklayer. "He helped," says Fuller, "in the building of the new structure of Lincoln's Inn, where, having a trowel in his hand, he had a book in his pocket." Aubrey tells the same story, which is discredited by Mr Gifford, who denies that the poet ever was a bricklayer. Lord William Russell was executed in Lincoln's Inn Fields, it being, Pennant tells us, the nearest open space from Newgate, where he was confined.

Passing through Duke Street, where Benjamin Franklin lodged, when working as a journeyman printer in the adjacent Great Wyld Street, into Clare Market, the scene of Orator Henley's holdings-forth, we thence, by Drury-Lane, the residence of Nell Gwynne and Nan Clarges before they became respectively the King's mistress and a Duke's wife, get back to the Strand and move Citywards. But to refer, although merely nominally, to one half the subjects of interest met with on the way, and suggested by Mr Smith, would be to write an index, not a review. Here, therefore, we pause, believing that enough has been said to convince the reader of the vast amount of information and amusement derivable from the bricks and stones of London, and able to recommend to him, should he himself set out on a street pilgrimage, an excellent guide and companion in the *Antiquarian Ramble*.

MARLBOROUGH'S DISPATCHES.

1711-1712.

After the reduction of Bouchain, Marlborough was anxious to commence without delay the siege of Quesnoy, the capture of which would, in that quarter, have entirely broken through the French barrier. He vigorously stimulated his own government accordingly, as well as that at the Hague, to prepare the necessary supplies and magazines, and expressed a sanguine hope that the capture of this last stronghold would be the means of bringing about the grand object of his ambition, and a general peace.^[5] The ministry, to appearance, went with alacrity into his projects, and every thing bore the aspect of another great success closing the campaign with honour, and probably leading to a glorious and lasting peace. Mr Secretary St John, in particular, wrote in the warmest style of cordiality, approving the project in his own name as well as in that of the Queen, and reiterating the assurances that the strongest representations had been made to the Dutch, with a view to their hearty concurrence. But all this was a mere cover to conceal what the Tories had really been doing to overturn Marlborough, and abandon the main objects of the war. Unknown to him, the secret negotiation with the French Cabinet, through Torcy and the British ministers, through the agency of Mesnager, had been making rapid progress. No representations were made to the Dutch, who were fully in the secret of the pending negotiation, about providing supplies; and on the 27th September, preliminaries of peace, on the basis of the seven articles proposed by Louis, were signed by Mesnager on the part of France, and by the two English secretaries of state, in virtue of a special warrant from the Queen.^[6]

The conditions of these preliminaries, which were afterwards embodied in the Treaty of Utrecht, were the acknowledgement of the Queen's title to the throne, and the Protestant succession, by Louis; an engagement to take all just and reasonable measures that the crowns of France and Spain should never be united on the same head,—the providing a sufficient barrier to the Dutch, the empire, and the house of Austria; and the demolition of Dunkirk, or a proper equivalent. But the crown of Spain was left to the Duke of

Anjou, and no provision whatever made to exclude a Bourbon prince from succeeding to it. Thus the main object of the contest—the excluding the Bourbon family from the throne of Spain, was abandoned: and at the close of the most important, successful, and glorious war ever waged by England, terms were agreed to, which left to France advantages which could scarcely have been hoped by the Cabinet of Versailles as the fruit of a long series of victories.

Marlborough felt deeply this clandestine negotiation, which not only deprived him of the main object for which, during his great career, he had been contending, but evinced a duplicity and want of confidence on the part of his own government at its close, which was a melancholy return for such inappreciable public services.^[7] But it was of no avail; the secession of England proved, as he had foreseen from the outset, a deathblow to the confederacy. Finding that nothing more was to be done, either at the head of the army, or in direction of the negotiations, he returned home by the Brille, after putting his army into winter-quarters, and landed at Greenwich on the 17th November. Though well aware of the private envy, as well as political hostility of which he was the object, he did nothing that could lower or compromise his high character and lofty position; but in an interview with the Queen, fully expressed his opinion on the impolicy of the course which ministers were now adopting.^[8] He adopted the same manly course in the noble speech which he made in his place in Parliament, in the debate on the address. Ministers had put into the royal speech the unworthy expression—"I am glad to tell you, that notwithstanding *the arts of those who delight in war*, both place and time are appointed for opening the treaty of a general peace." Lord Anglesea followed this up, by declaring, in the course of the debate, that the country might have enjoyed the blessing of peace soon after the battle of Ramilies, if it had not been deferred by some person whose interest it was to prolong the war.

Rising upon this, with inexpressible dignity, and turning to where the Queen sat, Marlborough said, "I appeal to the Queen, whether I did not constantly, while I was plenipotentiary, give her Majesty and her Council an account of all the propositions which were made; and whether I did not desire instruction for my conduct on this subject. I can declare with a good conscience, in the presence of her Majesty, of this illustrious assembly, and of God himself, who is infinitely superior to all the powers of the earth, and

before whom, by the ordinary course of nature, I shall soon appear to render account of my actions, that I was very desirous of a safe, honourable, and lasting peace, and was very far from wishing to prolong the war for my own private advantage, as several libels and discourses have most falsely insinuated. My great age, and my numerous fatigues in war, make me ardently wish for the power to enjoy a quiet repose, in order to think of eternity. As to other matters, I have not the least inducement, on any account, to desire the continuance of the war for my own interest, since my services have been so generously rewarded by her Majesty and her parliament; but I think myself obliged to make such an acknowledgment to her Majesty and my country, that I am always ready to serve them, whenever my duty may require, to obtain an honourable and lasting peace. Yet I can by no means acquiesce in the measures that have been taken to enter into a negotiation of peace with France, upon the foot of some pretended preliminaries, which are now circulated; since my opinion is the same as that of most of the Allies, that *to leave Spain and the West Indies to the House of Bourbon, will be the entire ruin of Europe*, which I have with all fidelity and humility declared to her Majesty, when I had the honour to wait upon her after my arrival from Holland."^[9]

This manly declaration, delivered in the most emphatic manner, produced a great impression; and a resolution against ministers was carried in the House of Peers by a majority of twelve. In the Commons, however, they had large majority, and an address containing expressions similar to those used by Lord Anglesea, reflecting on Marlborough, was introduced and carried there. The Whig majority, however, continued firm in the Upper House; and the leaders of that party began to entertain sanguine hopes of success. The Queen had let fall some peevish expressions in regard to her ministers. She had given her hand, in retiring from the House of Peers on the 15th December, to the Duke of Somerset, instead of her own Lord Treasurer; it was apprehended her old partiality for Marlborough was about to return; Mrs Masham was in the greatest alarm; and St John declared to Swift that the Queen was false.^[10] The ministers of the whole alliance seconded the efforts of the Whigs, and strongly represented the injurious effects which would ensue to the cause of European independence in general, and the interests of England in particular, if the preliminaries which had been agreed to should be made the basis of a general peace. The Dutch made strong and repeated representations on the subject; and the Elector of

Hanover delivered a memorial strongly urging the danger which would ensue if Spain and the Indies were allowed to remain in the hands of a Bourbon prince.

Deeming themselves pushed to extremities, and having failed in all attempts to detach Marlborough from the Whigs, Bolingbroke and the ministers resolved on the desperate measure of bringing forward the accusation against him, of fraud and peculation in the management of the public monies entrusted to his management in the Flemish campaign. The charges were founded on the report of certain commissioners to whom the matter had been remitted; and which charged the Duke with having appropriated L.63,319 of the public monies destined for the use of the English troops, and L.282,366, as a per-centage of two per cent on the sum paid to foreign ambassadors during the ten years of the war. In reply to these abominable insinuations, the letter of the Duke to the commissioners was published on the 27th December, in which he entirely refuted the charges, and showed that he had never received any sums or perquisites, not sanctioned by previous and uniform usage, and far less than had been received by the general in the reign of William III. And in regard to the L.282,000 of per-centage on foreign subsidies, this was proved to have been a voluntary gift from those powers to the English general, authorised by their signatures and sanctioned by warrants from the Queen. This answer made a great impression; but ministers had gone too far to retreat, and they ventured on a step which, for the honour of the country, has never, even in the worst times, been since repeated. Trusting to their majority in the Commons, they dismissed the Duke from all his situations on the 31st December; and in order to stifle the voice of justice in the Upper House, on the following day patents were issued calling *twelve* new peers to the Upper House. On the following day they were introduced amidst the groans of the House: the Whig noblemen, says a contemporary annalist, "cast their eyes on the ground as if they had been invited to the funeral of the peerage."^[11]

Unbounded was the joy diffused among the enemies of England by these unparalleled measures. On hearing of Marlborough's fall, Louis XIV. said with triumph, "The dismissal of Marlborough will do all we can desire." The Court of St Germain's was in exultation; and the general joy of the Jacobites, both at home and abroad, was sufficient to demonstrate how formidable an enemy to their cause they regarded the Duke; and how

destitute of truth were the attempts to show that he had been engaged in a secret design to restore the exiled family. Marlborough disdained to make any defence of himself in Parliament; but an able answer on his part was prepared and circulated, which entirely refuted the whole charges against the illustrious general. So convinced were ministers of this, that, contenting themselves with resolutions against him in the House of Commons, where their influence was predominant, they declined to prefer any impeachment or accusation, even in the Upper House swamped by their recent creations. In the midst of this disgraceful scene of passion, envy, and ingratitude, Prince Eugene arrived in London to endeavour to stem the torrent and, if possible, prevent the secession of England from the confederacy. He was lodged with the Lord Treasurer; and the generous prince omitted no opportunity of testifying his undiminished respect for his illustrious rival in the day of his tribulation. The Treasurer having said to him at a great dinner, "I consider this day as the happiest of my life, since I have the honour to see in my house the greatest captain of the age." "If it be so," replied Eugene, "I owe it to your lordship;" alluding to his dismissal of Marlborough. On another occasion, some one having pointed out a passage in one of the libels against Marlborough, in which he was said to have been "perhaps once fortunate." "It is true," said Eugene; "he was *once* fortunate; and it is the greatest praise which can be bestowed on him; for, as he was *always* successful—that implies that all his other successes were owing to his own conduct."^[12]

Alarmed at the weight which Marlborough might derive from the presence and support of so great a commander, and the natural sympathy of all generous minds with the cordial admiration which these two great men entertained for each other, the ministers had recourse to a pretended conspiracy, which it was alleged had been discovered on the part of Marlborough and Eugene to seize the government and dethrone the Queen, on the 17th November. St John and Oxford had too much sense to publish such a ridiculous statement; but it was made the subject of several secret examinations before the Privy Council, in order to augment the apprehensions and secure the concurrence of the Queen in their measures. Such as it was, the tale was treated as a mere malicious invention, even by the contemporary foreign annalists,^[13] though it has since been repeated as true by more than one party native historian.^[14] This ridiculous calumny, and the atrocious libels as to the embezzlement of the public money,

however, produced the desired effect. They inflamed the mind of the Queen, and removed that vacillation in regard to the measures of government, from which so much danger was apprehended by the Tory administration. Having answered the desired end, they were allowed quietly to go to sleep. No proceedings in the House of Peers, or elsewhere, followed the resolutions of the Commons condemnatory of Marlborough's financial administration in the Low Countries. His defence, published in the newspapers, though abundantly vigorous, was neither answered nor prosecuted as a libel on the Commissioners or House of Commons; and the alleged Stuart conspiracy was never more heard of, till it was long after drawn from its slumber by the malice of English party spirit.

Meanwhile the negotiations at Utrecht for a general peace continued, and St John and Oxford soon found themselves embarrassed by the extravagant pretensions which their own conduct had revived in the plenipotentiaries of Louis. So great was the general indignation excited by the publication of the preliminaries at Utrecht, that St John felt the necessity of discontinuing any general negotiation, and converting it into a private correspondence between the plenipotentiaries of the English and French crowns.^[15] Great difficulty was experienced in coming to an accommodation, in consequence of the rising demands of the French plenipotentiaries, who, deeming themselves secure of support from the English ministry, not only positively refused to abandon Spain and the Indies, but now demanded the Netherlands for the Elector of Bavaria, and the cession of Lille and Tournay in return for the seizure of Dunkirk. The sudden death, however, first of the Dauphiness of France, and then of the Dauphin, the former of whom was carried off by a malignant fever on the 12th, the latter on the 18th February 1712, followed by the death of their eldest son on the 23d, produced feelings of commiseration for the aged monarch, now in his seventy-third year and broken down by misfortunes, which rendered the progress of the separate negotiation more easy. England agreed to abandon its allies, and the main object of the war, on condition that a guarantee should be obtained against the crowns of France and Spain being united on the same head. On this frail security, the English ministry agreed to withdraw their contingent from the Allied army; and to induce the Dutch to follow their example, Ipres was offered to them on the same terms as Dunkirk had been to Great Britain.^[16]

The disastrous effects of this secret and dishonourable secession, on the part of England, from the confederacy, were soon apparent. Great had been the preparations of the continental Allies for continuing the contest; and while the English contingent remained with them, their force was irresistible. Prince Eugene was at the head of the army in Flanders, and, including the British forces under the Duke of Ormond, it amounted to the immense force of 122,000 effective men, with 120 guns, sixteen howitzers, and an ample pontoon train. To oppose this, by far the largest army he had yet had to confront in the Low Countries, Villars had scarcely at his command 100,000 men, and they were ill equipped, imperfectly supplied with artillery, and grievously depressed in spirit by their long series of disasters. Eugene commanded the army of the confederates; for although the English ministry had been lavish in their promises of unqualified support, the Dutch had begun to entertain serious suspicions of their sincerity, and bestowed the command on that tried officer instead of the Duke of Ormond, who had succeeded Marlborough in the command of the English contingent. But Marlborough's soul still directed the movements of the army; and Eugene's plan of the campaign was precisely that which that great commander had chalked out at the close of the preceding one. This was to besiege Quesnoy and Landrecies, *the last* of the iron barrier of France which in this quarter protected the frontier, and immediately after to inundate the open country, and advance as rapidly as possible to Paris. It was calculated they might reach it in *ten* marches from Landrecies; and it was well known that there was neither a defensible position nor fortress of any sort to arrest the invaders' march. The Court of Versailles were in despair: the general opinion was, that the King should leave Paris, and retire to Blois; and although the proud spirit of Louis recoiled at such a proposal, yet, in taking leave of Marshal Villars, he declared—"Should a disaster occur, I will go to Peronne or St Quentin, collect all my troops, and with you risk a last effort, determined to perish, or save the State."^[17]

But the French monarch was spared this last desperate alternative. The defection of the British Cabinet saved his throne, when all his means of defence were exhausted. Eugene, on opening the campaign on the 1st May, anxiously inquired of the Duke of Ormond whether he had authority to act vigorously in the campaign, and received an answer that he had the same authority as the Duke of Marlborough, and was prepared to join in attacking the enemy. Preparations were immediately made for forcing the enemy's

lines, which covered Quesnoy, previous to an attack on that fortress. But, at the very time that this was going on, the work of perfidious defection was consummated. On May 10, Mr Secretary St John sent positive orders to Ormond to take no part in any general engagement, as the questions at issue between the contending parties were on the point of adjustment.^[18] Intimation of this secret order was sent to the Court of France, but it was directed to be kept a positive secret from the Allied generals. Ormond, upon the receipt of these orders, opened a private correspondence with Villars, informing him that their troops were no longer enemies, and that the future movements of the troops under his command were only to get forage and provisions. This correspondence was unknown to Eugene; but circumstances soon brought the defection of England to light. In the middle of it, the Allied forces had passed the Scheldt, and taken post between Noyeller and the Boiase, close to Villars's position. To bring the sincerity of the English to a test, Eugene proposed a general attack on the enemy's line, which was open and exposed, on the 28th May. *But Ormond declined*, requesting the operation might be delayed for a few days. The defection was now apparent, and the Dutch deputies loudly condemned such dishonorable conduct; but Eugene, anxious to make the most of the presence of the British troops, though their co-operation could no longer be relied on, proposed to besiege Quesnoy, which was laid open by Villars's retreat. Ormond, who felt acutely the painful and discreditable situation in which, without any fault of his own, he was placed, could not refuse, and the investment took place that very day. The operations were conducted by *the Dutch and Imperial troops alone*; and the town was taken, after a siege of six weeks, on the 10th July.^[19]

This disgraceful defection on the part of the English government excited, as well it might, the utmost indignation among the Allies, and produced mingled feelings of shame and mortification among all real patriots or men of honour in this country. By abandoning the contest in this manner, when it was on the very point of being crowned with success, the English lost the fruit of TEN costly and bloody campaigns, and suffered the war to terminate without attaining the main object for which it had been undertaken. Louis XIV., defeated, and all but ruined, was permitted to retain for his grandson the Spanish succession; and England, victorious, and within sight, as it were, of Paris, was content to halt in the career of victory, and lost the opportunity, never to be regained for a century to come, of

permanently restraining the ambition of France. It was the same as if, a few days after the battle of Waterloo, England had concluded a separate peace, guaranteeing the throne of Spain to Joseph Buonaparte, and providing only for its not being held also by the Emperor of France. Lord Halifax gave vent to the general indignation of all generous and patriotic men, when he said, in the debate on the address, on 28th May, after enumerating the proud list of victories which, since the commencement of the war, had attended the arms of England,—“But all this pleasing prospect is totally effaced by the orders given to the Queen's general, not to act offensively against the enemy. I pity that heroic and gallant general, who, on other occasions, took delight to charge the most formidable corps and strongest squadrons, and cannot but be uneasy at his being fettered with shackles, and thereby prevented from reaping the glory which he might well expect from leading on troops so long accustomed to conquer. I pity the Allies, who have relied upon the aid and friendship of the British nation, perceiving that what they had done at so great an expense of blood and treasure is of no effect, as they will be exposed to the revenge of that power against whom they have been so active. I pity the Queen, her royal successors, and the present and future generations of Britain, when they shall find the nation deeply involved in debt, and that the common enemy who occasioned it, though once near being sufficiently humbled, does still triumph, and design their ruin; and are informed that this proceeds from the conduct of the British cabinet, in neglecting to make a right use of those advantages and happy occasions which their own courage and God's blessing had put into their hands.”^[20]

Marlborough seconded the motion of Halifax, in a speech of peculiar interest, as the last which he made on the conduct of this eventful war. “Although,” said he, “the negotiations for peace may be far advanced, yet I can see no reason which should induce the Allies or ourselves to remain inactive, and not push on the war with the utmost vigour, as we have incurred the expense of recruiting the army for the service of another year. That army is now in the field; and it has often occurred that a victory or a siege produced good effects and manifold advantages, when treaties were still further advanced than in the present negotiation. And as I am of opinion that we should make the most we can for ourselves, the only infallible way to force France to an entire submission, is to besiege and occupy Cambray or Arras, and to carry the war into the heart of the kingdom. But as the troops of the enemy are now encamped, it is

impossible to execute that design, unless they are withdrawn from their position; and as they cannot be reduced to retire for want of provisions, they must be attacked and forced. For the truth of what I say I appeal to a noble duke (Argyle) whom I rejoice to see in this house, because he knows the country, and is as good a judge of these matters as any person now alive." Argyle, though a bitter personal enemy of Marlborough, thus appealed to, said,—"I do indeed know that country, and the situation of the enemy in their present camp, and I agree with the noble duke, that it is impossible to remove them without attacking and driving them away; and, until that is effected, neither of the two sieges alluded to can be undertaken. I likewise agree that the capture of these two towns is the most effectual way to carry on the war with advantage, and would be a fatal blow to France."^[21]

Notwithstanding the creation of twelve peers to swamp the Upper House, it is doubtful how the division would have gone, had not Lord Strafford, a cabinet minister, observed, in reply to the charge, that the British government was about to conclude a separate peace,—"Nothing of that nature has ever been intended; for such a peace would be so *foolish, villanous, and knavish*, that every servant of the Queen must answer for it with his head to the nation. The Allies *are acquainted with our proceedings, and satisfied with our terms*." This statement was made by a British minister, in his place in Parliament, on the 28th May, eighteen days *after* the private letter from Mr Secretary St John to the Duke of Ormond, already quoted, mentioning the private treaty with Louis, enjoining him to keep it secret from the Allies, and communicate clandestinely with Villars. But such a declaration, coming from an accredited minister of the crown, produced a great impression, and ministers prevailed by a majority of sixty-eight to forty. In the course of the debate, Earl Poulett let fall such cutting expressions against Marlborough for having, as he alleged, led his troops to certain destruction, in order to profit by the sale of the officers' commissions,^[22] that the Duke, without deigning a reply, sent him a challenge on leaving the house. The agitation, however, of the Earl, who was less cool than the iron veteran on the prospect of such a meeting, revealed what was going forward, and by an order of the Queen, the affair was terminated without bloodshed.^[23]

It soon appeared how much foundation there was for the assertion of the Queen's ministers, that England was engaged in no separate negotiation for

a peace. On the 6th June were promulgated the outlines of the treaty which afterwards became so famous as the PEACE OF UTRECHT. The Duke of Anjou was to renounce for ever, for himself and his descendants, all claim to the French crown; and the crown of Spain was to descend, by *the male line* only, to the Duke of Anjou, and failing them to certain princes of the Bourbon line by *male* descent, always excluding him who was possessed of the French crown.^[24] Gibraltar and Minorca remained to England; Dunkirk was to be demolished; the Spanish Netherlands were to be ceded to Austria, with Naples, Milan, and Sardinia; the barrier towns were to be ceded to the Dutch, as required in 1709, with the exception of two or three places. Spain and her Indian colonies remained with the Duke of Anjou and his male heirs, as King of Spain. And thus, at the conclusion of the most glorious and successful war recorded in English history, did the English cabinet leave to France the great object of the contest,—the crown of Spain, and its magnificent Indian colonies, placed on the head of a prince of the Bourbon race. With truth did Marlborough observe, in the debate on the preliminaries—"The measures pursued in England for the last year are directly contrary to her Majesty's engagements with the Allies, sully the triumphs and glories of her reign, and will render the English name odious to all other nations."^[25] It was all in vain. The people loudly clamoured for peace; the Tory ministry was seconded by a vast numerical majority throughout the country. The peace was approved of by large majorities in both houses. Parliament was soon after prorogued; and Marlborough, seeing his public career terminated, solicited and obtained passports to go abroad, which he soon afterwards did.

Great was the mourning, and loud the lamentations, both in the British and Allied troops, when the fatal day arrived that the former were to separate from their old companions in arms. On the 10th July, the very day on which Quesnoy surrendered, the last of their long line of triumphs, Ormond, having exhausted every sort of procrastination to postpone the dreaded hour, was compelled to order the English troops to march. He in vain, however, gave a similar order to the auxiliaries in British pay; the hereditary Prince of Cassel replied—"The Hessians would gladly march, if it were to fight the French." Another, "We do not serve for pay, but fame." The native British, however, were compelled to obey the order of their sovereign, and they set out, twelve thousand strong, from the camp at Cambresis. Of all the Germans in British pay, only one battalion of Holstein

men, and a regiment of dragoons from Liege, accompanied them. Silent and dejected they took their way; the men kept their eyes on the ground, the officers did not venture to return the parting salute of the comrades who had so long fought and conquered by their side. Not a word was spoken on either side, the hearts of all were too big for utterance; but the averted eye, the mournful air, the tear often trickling down the cheek, told the deep dejection which was every where felt. It seemed as if the Allies were following to the grave, with profound affection, the whole body of their British comrades. But when the troops reached their resting-place for the night, and the suspension of arms was proclaimed at the head of each regiment, the general indignation became so vehement, that even the bonds of military discipline were unable to restrain it. A universal cry, succeeded by a loud murmur, was heard through the camp. The British soldiers were seen tearing their hair, casting their muskets on the ground, and rending their clothes, uttering all the while furious exclamations against the government which had so shamefully betrayed them. The officers were so overwhelmed with vexation, that they sat apart in their tents looking on the ground, through very shame; and for several days shrunk from the sight even of their fellow-soldiers. Many left their colours to serve with the Allies, others withdrew, and whenever they thought of Marlborough and their days of glory, tears filled their eyes. ^[26]

It soon appeared that it was not without reason that these gloomy presentiments prevailed on both sides, as to the consequences of the British withdrawing from the contest. So elated were the French by their secession, that they speedily lost all sense of gratitude and even honesty, and refused to give up Dunkirk to the British, which was only effected with great difficulty on the earnest entreaties of the British government. So great were the difficulties which beset the negotiation, that St John was obliged to repair in person to Paris, where he remained *incognito* for a considerable time, and effected a compromise of the objects still in dispute between the parties. The secession of England from the confederacy was now openly announced; and, as the Allies refused to abide by her preliminaries, the separate negotiation continued between the two countries, and lingered on for nearly a year after the suspension of arms.

Meanwhile Eugene, after the departure of the British, continued his operations, and laid siege to Landrecies, the last of the barrier fortresses on

the road to Paris, in the end of July. But it soon appeared that England had been the soul of the confederacy; and that it was the tutelary arm of Marlborough which had so long averted disaster, and chained victory to its standard. Nothing but defeat and misfortune attended the Allies after her secession. Even the great and tried abilities of Eugene were inadequate to procure for them one single success, after the colours of England no longer waved in their ranks. During the investment of Landrecies, Villars drew together the garrisons from the neighbouring towns, no longer threatened by the English troops, and surprised at Denain a body of eight thousand men, stationed there for the purpose of facilitating the passage of convoys to the besieging army. This disaster rendered it necessary to raise the siege of Landrecies, and Villars immediately resumed the offensive. Douay was speedily invested: a fruitless effort of Eugene to retain it only exposed him to the mortification of witnessing its surrender. Not expecting so sudden a reverse of fortune, the fortresses recently taken were not provided with provisions or ammunition, and were in no condition to make any effectual resistance. Quesnoy soon fell from this cause; and Bouchain, the last trophy of Marlborough's victories, opened its gates on the 10th October. The coalition was paralysed; and Louis, who so lately trembled for his capital, found his armies advancing from conquest to conquest, and tearing from the Allies the fruits of all their victories.^[27]

These disasters, and the evident inability of the Allied armies, without the aid of the English, to keep their ground in Flanders, in a manner compelled the Dutch, how unwilling soever, to follow the example of Great Britain, in treating separately with France. They became parties, accordingly, to the pacification at Utrecht; and Savoy also concluded peace there. But the barrier for which they had so ardently contended was, by the desertion of England, so much reduced, that it ceased to afford any effectual security against the encroachments of France. That power held the most important fortresses in Flanders which had been conquered by Louis XIV.—Cambray, Valenciennes, and Arras. Lille, the conquest on which Marlborough most prided himself, was restored by the Allies, and with it Bethune, Aire, St Venant, and many other places. The Dutch felt, in the strongest manner, the evil consequences of a treaty which thus, in a manner, left the enemy at their gates; and the irritation consequently produced against England was so violent that it continued through the greater part of the eighteenth century. Austria, indignant at being thus deserted by all her Allies, continued the

contest alone through another campaign. But she was overmatched in the contest; her resources were exhausted; and, by the advice of Eugene, conferences were opened at Rastadt, from which, as a just reward for her perfidy, England was excluded. A treaty was soon concluded on the basis of the Treaty of Ryswick. It left Charles the Low Countries, and all the Spanish territories in Italy, except Sicily; but, with Sardinia, Bavaria was restored. France retained Landau, but restored New Brisach, Fribourg, and Kehl. Thus was that great power left in possession of the whole conquests ceded to Louis XIV. by the treaties of Aix-la-Chapelle, Nimeguen, and Ryswick, with the vast addition of the family alliance with a Bourbon prince, possessing Spain and the Indies. A century of repeated wars on the part of England and the European powers, with France, followed by the dreadful struggle of the Revolutionary contest, and the costly campaigns of Wellington, were the legacy bequeathed to the nation by Bolingbroke and Harley, in arresting the course of Marlborough's victories, and restoring France to preponderance, when it was on the eve of being reduced to a level consistent with the independence of other states. Well might Mr Pitt style the Treaty of Utrecht "the indelible reproach of the age!"^[28]

Marlborough's public career was now terminated; and the dissensions which had cast him down from power had so completely extinguished his political influence, that during the remaining years of his life, he rarely appeared at all in public life. On landing on the Continent, at Brille, on the 24th November, he was received with such demonstrations of gratitude and respect, as showed how deeply his public services had sunk into the hearts of men, and how warmly they appreciated his efforts to avert from England and the Coalition, the evils likely to flow from the Treaty of Utrecht. At Maestricht he was welcomed with the honours usually reserved for sovereign princes; and although he did his utmost, on the journey to Aix-la-Chapelle, to avoid attracting the public attention, and to slip unobserved through byways, yet the eagerness of the public, or the gratitude of his old soldiers, discovered him wherever he went. Wherever he passed, crowds of all ranks were waiting to see him, could they only get a glimpse of the hero who had saved the empire, and filled the world with his renown. All were struck with his noble air and demeanour, softened, though not weakened, by the approach of age. They declared that his appearance was not less conquering than his sword. Many burst into tears when they recollected what he had been, and what he was, and how unaccountably the great

nation to which he belonged had fallen from the height of glory to such degradation. Yet was the manner of Marlborough so courteous and yet animated, his conversation so simple and yet cheerful, that it was commonly said at the time, "that the only things he had forgotten were his own deeds, and the only things he remembered were the misfortunes of others." Crowds of all ranks, from the highest to the lowest, hastened to attend his levee at Aix-la-Chapelle on the 17th January 1713, and the Duke de Lesdeguières, on leaving it, said, with equal justice and felicity,—"I can now say that I have seen the man who is equal to the Maréchal de Turenne in conduct, to the Prince of Condé in courage, and superior to the Maréchal de Luxembourg in success."^[29]

But if the veteran hero found some compensation, in the unanimous admiration of foreign nations, for the ingratitude with which he had been treated by the government of his own, he was soon destined to find that gratitude for past services was not to be looked for among foreign nations any more than his own countrymen. Upon the restoration of the Elector, by the treaty of Rastadt, the principality of Mendeheim, which had been bestowed upon Marlborough after the battle of Blenheim by the Emperor Joseph, was resumed by the Elector. No stipulation in his favour was made either by the British government or the Imperial court, and therefore the estate, which yielded a clear revenue of £2000 a-year, was lost to Marlborough. He transmitted, through Prince Eugene, a memorial to the Emperor, claiming an indemnity for his loss; but though it was earnestly supported by that generous prince, yet being unaided by any efforts on the part of the English ministry, it was allowed to fall asleep. An indemnity was often promised, even by the Emperor in writing,^[30] but performance of the promise was always evaded. The Duke was made a prince of the Holy Roman Empire, but obtained nothing but empty honours for his services; and at this moment, these high-sounding titles are all that remain in the Marlborough family to testify the gratitude of the Cæsars to the hero who saved their Imperial and Royal thrones.^[31]

The same oblivion of past and inappreciable services, when they were no longer required, pursued the illustrious general in his declining years, on the part of his own countrymen. The got-up stories about embezzlement and dilapidation of the public money, in Flanders, were allowed to go to sleep, when they had answered their destined purpose of bringing about his fall

from political power. No grounds were found for a prosecution which could afford a chance of success, even in the swamped and now subservient House of Peers. But every thing that malice could suggest, or party bitterness effect, was done to fill the last days of the immortal hero with anxiety and disquiet. Additional charges were brought against him by the commissioners, founded on the allegation that he had drawn a pistole per troop, and ten shillings a company, for mustering the soldiers, though, in the foreign auxiliaries, it was often not done. Marlborough at once transmitted a refutation of those fresh charges, so clear and decisive, that it entirely silenced those accusations.^[32] But his enemies, though driven from this ground, still persecuted him with unrelenting malice. The noble pile of Blenheim, standing, as it did, an enduring monument at once of the Duke's services and the nation's gratitude, was a grievous eyesore to the dominant majority in England, and they did all in their power to prevent its completion.

Orders were first given to the Treasury, on June 1, 1712, to suspend any further payments from the royal exchequer; and commissioners were appointed to investigate the claims of the creditors and expense of the work. They recommended the payment of a third to each claimant, which was accordingly made; but as many years elapsed, and no further payments to account were made, the principal creditors brought an action in the Court of Exchequer against the Duke, as personally liable for the amount, and the court pronounced decree in favour of the plaintiffs, which was affirmed, after a long litigation, in the House of Lords. Meanwhile the works, for want of any paymaster, were at a stand; and this noble pile, this proud monument of a nation's gratitude, would have remained a modern ruin to this day, had it not been completed from the private funds of the hero whose services it was intended to commemorate. But the Duke of Marlborough, as well as the Duchess, were too much interested in the work to allow it to remain unfinished. He left by his will fifty thousand pounds to complete the building, which was still in very unfinished state at the time of his death, and the duty was faithfully performed by the Duchess after his decease. From the accounts of the total expense, preserved at Blenheim, it appears, that out of three hundred thousand pounds, which the whole edifice cost, no less than sixty thousand pounds was provided from the private funds of the Duke of Marlborough.^[33]

It may readily be believed that so long-continued and unrelenting a persecution of so great a man and distinguished benefactor of his country, proceeded from something more than mere envy at greatness, powerful as that principle ever is in little minds. In truth, it was part of the deep-laid plan for the restoration of the Stuart line, which the declining state of the Queen's health, and the probable unpopularity of the Hanover family, now revived in greater vigour than ever. During this critical period, Marlborough, who was still on the Continent, remained perfectly firm to the Act of Settlement, and the Protestant cause. Convinced that England was threatened with a counter-revolution, he used his endeavours to secure the fidelity of the garrison of Dunkirk, and offered to embark at its head in support of the Protestant succession. He sent General Cadogan to make the necessary arrangements with General Stanhope for transporting troops to England, to support the Hanoverian succession, and offered to lend the Elector of Hanover £20,000 to aid him in his endeavour to secure the succession. So sensible was the Electoral house of the magnitude of his services, and his zeal in their behalf, that the Electress Sophia entrusted him with a blank warrant, appointing him commander-in-chief of her troops and garrisons, on her accession to the crown.^[34]

On the death of Queen Anne, on August 1, 1714, Marlborough returned to England, and was soon after appointed captain-general and master-general of the ordnance. Bolingbroke and Oxford were shortly after impeached, and the former then threw off the mask, by flying to France, where he openly entered into the service of the Pretender at St Germain's. Marlborough's great popularity with the army was soon after the means of enabling him to appease a mutiny in the guards, which at first threatened to be alarming. During the rebellion in 1715, he directed, in a great degree, the operations against the rebels, though he did not actually take the field; and to his exertions, its rapid suppression was in a great measure to be ascribed.

But the period had now arrived when the usual fate of mortality awaited this illustrious man. Severe domestic bereavements preceded his dissolution, and in a manner weaned him from a world which he had passed through with so much glory. His daughter, Lady Bridgewater, died in March 1714; and this was soon followed by the death of his favourite daughter, Anne Countess of Sunderland, who united uncommon elegance and beauty to unaffected piety and exemplary virtue. Marlborough himself was not

long of following his beloved relatives to the grave. On the 28th May 1716, he was seized with a fit of palsy, so severe that it deprived him, for a time, alike of speech and recollection. He recovered, however, to a certain degree, and went to Bath, for the benefit of the waters; and a gleam of returning light shone upon his mind when he visited Blenheim on the 18th October. He expressed great satisfaction at the survey of the plan; which reminded him of his great achievements; but when he saw, in one of the few rooms which were finished, a picture of himself at the battle of Blenheim, he turned away with a mournful air, with the words—"Something then, but now——" On November 18th he was attacked by another stroke, more severe than the former, and his family hastened to pay the last duties, as they conceived, to their departing parent. The strength of his constitution, however, triumphed for a time even over this violent attack; but though he continued contrary to his own wishes, in conformity with those of his friends, who needed the support of his great reputation, to hold office, and occasionally appeared in parliament, yet his public career was at an end. A considerable addition was made to his fortune by the sagacity of the Duchess, who persuaded him to embark part of his funds in the South Sea scheme; and foreseeing the crash which was approaching, sold out so opportunely, that, instead of losing, she gained £100,000 by the transaction. On the 27th November 1721, he made his last appearance in the House of Lords; but in June 1722, he was again attacked with paralysis so violently, that he lay for some days nearly motionless, though in perfect possession of his faculties. To a question from the Duchess, whether he heard the prayers read as usual at night, on the 15th June, in his apartment; he replied, "Yes; and I joined in them." These were his last words. On the morning of the 16th he sunk rapidly, and, at four o'clock, calmly breathed his last, in the 72d year of his age.^[35]

Envy is generally extinguished by death, because the object of it has ceased to stand in the way of those who feel it. Marlborough's funeral obsequies were celebrated with uncommon magnificence, and all ranks and parties joined in doing him honour. His body lay in state for several days at Marlborough House, and crowds flocked together from all the three kingdoms to witness the imposing ceremony of his funeral, which was performed with the utmost magnificence, on the 28th June. The procession was opened by a long array of military, among whom were General, now Lord Cadogan, and many other officers who had suffered and bled in his

cause. Long files of heralds, officers-at-arms, and pursuivants followed, bearing banners emblazoned with his armorial achievements, among which appeared, in uncommon lustre, the standard of Woodstock, exhibiting the arms of France on the Cross of St George. In the centre of the cavalcade was a lofty car, drawn by eight horses, which bore the mortal remains of the Hero, under a splendid canopy adorned by plumes, military trophies, and heraldic devices of conquest. Shields were affixed to the sides, bearing the names of the towns he had taken, and the fields he had won. Blenheim was there, and Oudenarde, Ramilies and Malplaquet; Lille and Tournay; Bethune, Douay, and Ruremonde; Bouchain and Mons, Maestricht and Ghent. This array of names made the English blush for the manner in which they had treated their hero. On either side were five generals in military mourning, bearing aloft banderoles, on which were emblazoned the arms of the family. Eight dukes supported the pall; besides the relatives of the deceased, the noblest and proudest of England's nobility joined in the procession. Yet the most moving part of the ceremony was the number of old soldiers who had combated with the hero on his fields of fame, and who might now be known, in the dense crowds which thronged the streets, by their uncovered heads, grey hairs, and the tears which trickled down their cheeks. The body was deposited, with great solemnity, in Westminster Abbey, at the east end of the tomb of Henry VII.; but this was not its final resting-place in this world. It was soon after removed to the chapel at Blenheim, where it was deposited in a magnificent mausoleum; and there it still remains, surmounted by the noble pile which the genius of Vanbrugh had conceived to express a nation's gratitude.^[36]

The extraordinary merit of Marlborough's military talents will not be duly appreciated, unless the peculiar nature of the contest he was called on to direct, and the character which he assumed in his time, is taken into consideration.

The feudal times had ceased—at least so far as the raising of a military force by its machinery was concerned. Louis XIV., indeed, when pressed for men, more than once summoned the ban and arrière-ban of France to his standards, and he always had a gallant array of feudal nobility in his antechambers, or around his headquarters. But war, both on his part and that of his antagonists, was carried on, generally speaking, with standing armies, supported by the belligerent state. The vast, though generally tumultuary

array which the Plantagenet or Valois sovereigns summoned to their support, but which, bound only to serve for forty days, generally disappeared before a few months of hostilities were over, could no longer be relied on. The modern system invented by revolutionary France, of making war maintain war, and sending forth starving multitudes with arms in their hands, to subsist by the plunder of the adjoining states, was unknown. The national passions had not been roused, which alone would bring it into operation. The decline of the feudal system forbade the hope that contests could be maintained by the chivalrous attachment of a faithful nobility: the democratic spirit had not been so aroused as to supply its place by popular fervour. Religious passions, indeed, had been strongly excited; but they had prompted men rather to suffer than to act: the disputations of the pulpit were their natural arena: in the last extremity they were more allied to the resignation of the martyr, than the heroism of the soldier. Between the two, there extended a long period of above a century and a half, during which governments had acquired the force, and mainly relied on the power, of standing armies; but the resources at their disposal for their support were so limited, that the greatest economy in the husbanding both of men and money was indispensable.

Richard Cœur de Lion, Edward III., and Henry V., were the models of feudal leaders, and their wars were a faithful mirror of the feudal contests. Setting forth at the head of a force, which, if not formidable in point of numbers, was generally extremely so from equipment and the use of arms, the nobles around them were generally too proud and high-spirited to decline a combat, even on any possible terms of disadvantage. They took the field as the knights went to a *champ clos*, to engage their adversaries in single conflict; and it was deemed equally dishonourable to retire without fighting from the one as the other. But they had no permanent force at their disposal to secure a lasting fruit even from the greatest victories. The conquest of a petty province, a diminutive fortress, was often their only result. Hence the desperate battles, so memorable in warlike annals, which they fought, and hence the miserable and almost nugatory results which almost invariably followed their greatest triumphs. Cressy, Poitiers, and Azincour, followed by the expulsion of the English from France; Methven and Dunbar, by their ignominious retreat from Scotland; Ascalon and Ptolemais, by their being driven from the Holy Land, must immediately occur to every reader. This state of war necessarily imprinted a

corresponding character on the feudal generals. They were high-spirited and daring in action—often skilful in tactics—generally ignorant of strategy—covetous of military renown, but careless of national advancement—and often more solicitous to conquer an adversary in single conflict, than reduce a fortress, or win a province.

But when armies were raised at the expense, not of nobles, but of kings—when their cost became a lasting and heavy drain on the royal exchequer—sovereigns grew desirous of a more durable and profitable result from their victories. Standing armies, though commonly powerful, often irresistible when accumulated in large bodies—were yet extremely expensive. They were felt the more from the great difficulty of getting the people in every country, at that period, to submit to any considerable amount of direct taxation. More than one flourishing province had been lost, or powerful monarchy overturned, in the attempt to increase such burdens; witness the loss of Holland to Spain, the execution of Charles I. in England. In this dilemma, arising from the experienced necessity of raising standing armies on the one hand, and the extreme difficulty of permanently providing for them on the other, the only resource was to spare both the blood of the soldiers and the expenses of the government as much as possible. Durable conquests, acquisitions of towns and provinces which could yield revenues and furnish men, became the great object of ambition. The point of feudal honour was forgot in the inanity of its consequences; the benefits of modern conquests were felt in the reality of their results. A methodical cautious system of war was thus impressed upon generals by the necessities of their situation, and the objects expected from them by their respective governments. To risk little and gain much, became the great object: skill and stratagem gradually took the place of reckless daring; and the reputation of a general came to be measured rather by the permanent addition which his successes had made to the revenues of his sovereign, than the note with which the trumpet of Fame had proclaimed his own exploits.

Turenne was the first, and, in his day, the greatest general in this new and scientific system of war. He first applied to the military art the resources of prudent foresight, deep thought, and profound combination; and the results of his successes completely justified the discernment which had prompted Louis XIV. to place him at the head of his armies. His methodical and far-

seeing campaigns in Flanders, Franche Comté, Alsace, and Lorraine, in the early part of the reign of that monarch, added these valuable provinces to France, which have never since been lost. They have proved more durable than the conquests of Napoleon, which all perished in the lifetime of their author. Napoleon's legions passed like a desolating whirlwind over Europe, but they gave only fleeting celebrity, and entailed lasting wounds on France. Turenne's slow, or more methodical and more cautious conquests, have proved lasting acquisitions to the monarchy. Nancy still owns the French allegiance; Besançon and Strasbourg are two of its frontier fortresses; Lille yet is a leading stronghold in its iron barrier. Napoleon, it is well known, had the highest possible opinion of that great commander. He was disposed to place him at the head of modern generals; and his very interesting analysis of his campaigns is not the least important part of his invaluable memoirs.

Condé, though living in the same age, and alternately the enemy and comrade of Turenne, belonged to a totally different class of generals, and, indeed, seemed to belong to another age of the world. He was warmed in his heart by the spirit of chivalry; he bore its terrors on his sword's point. Heart and soul he was heroic. Like Clive or Alexander, he was consumed by that thirst for fame, that ardent passion for glorious achievements, which is the invariable characteristic of elevated, and the most inconceivable quality to ordinary, minds. In the prosecution of this object, no difficulties could deter, no dangers daunt him. Though his spirit was chivalrous—though cavalry was the arm which suited his genius, and in which he chiefly delighted, he brought to the military art the power of genius and the resources of art; and no man could make better use of the power which the expiring spirit of feudality bequeathed to its scientific successors. He destroyed the Spanish infantry at Rocroy and Lens, not by mere desultory charges of the French cavalry, but by efforts of that gallant body as skilfully directed as those by which Hannibal overthrew the Roman legions at Thrasymene and Cannæ. His genius was animated by the spirit of the fourteenth, but it was guided by the knowledge of the seventeenth, century.

Bred in the school of Turenne, placed, like him, at the head of a force raised with difficulty, maintained with still greater trouble, Marlborough was the greatest general of the methodical or scientific school which modern Europe has produced. No man knew better the importance of deeds

which fascinate the minds of men; none could decide quicker, or strike harder, when the proper time for action arrived. None, when the decisive crisis of the struggle approached, could expose his person more fearlessly, or lead his reserves more gallantly into the very hottest of the enemy's fire. To his combined intrepidity and quickness, in thus bringing the reserves, at the decisive moment, into action, all his wonderful victories, in particular Ramilies and Malplaquet, are to be ascribed. But, in the ordinary case, he preferred the bloodless methods of skill and arrangement. Combination was his great *forte*, and there he was not exceeded by Napoleon himself. To deceive the enemy as to the real point of attack—to perplex him by marches and countermarches—to assume and constantly maintain the initiative—to win by skill what could not be achieved by force, was his great delight; and in that, the highest branch of the military art, he was unrivalled in modern times. He did not despise stratagem. Like Hannibal, he resorted to that arm frequently, and with never-failing success. His campaigns, in that respect, bear a closer resemblance to those of the illustrious Carthaginian than those of any general in modern Europe. Like him, too, his administrative and diplomatic qualities were equal to his military powers. By his address, he retained in unwilling, but still effective union, an alliance, unwieldy from its magnitude, and discordant by its jealousies; and kept, in willing multitudes, around his standards, a *colluvies omnium gentium*, of various languages, habits, and religions—held in subjection by no other bond but the strong one of admiration for their general, and a desire to share in his triumphs.

Consummate address and never-failing prudence were the great characteristics of the English commander. With such judgment did he measure his strength with those of his adversary—so skilfully did he choose the points of attack, whether in strategy or tactics—so well weighed were all his enterprises, so admirably prepared the means of carrying them into execution, that none of them ever miscarried. It was a common saying at the time, which the preceding narrative amply justifies, that he never fought a battle which he did not gain, nor laid siege to a town which he did not take. This extraordinary and unbroken success extended to all his manœuvres, however trivial; and it has been already noticed, that the first disaster of any moment which occurred to his arms during *nine* successive and active campaigns, was the destruction of a convoy destined for the siege of St Venant, in October 1710, by one of Villars' detachments.^[37] It was the admirable powers of arrangement and combination which he brought to

bear on all parts of his army, equally from the highest to the lowest parts, which was the cause of this extraordinary and uninterrupted success.

He was often outnumbered by the enemy, always opposed by a homogeneous army, animated by one strong national and military spirit; while he was at the head of a discordant array of many different nations, some of them with little turn for warlike exploit, others lukewarm, or even treacherous in the cause. But notwithstanding this, he never lost the ascendant. From the time when he first began the war on the banks of the Maese in 1702, till his military career was closed in 1711, within the iron barrier of France, by the intrigues of his political opponents at home, he never abandoned the initiative. He was constantly on the offensive. When inferior in force, as he often was, he supplied the defect of military strength by skill and combination; when his position was endangered by the faults or treachery of others, as was still more frequently the case, he waited till a false move on the part of his adversaries enabled him to retrieve his affairs by some brilliant and decisive stroke. It was thus that he restored the war in Germany, after the affairs of the Emperor had been wellnigh ruined, by the brilliant cross march into Bavaria, and splendid victory at Blenheim; and regained Flanders for the Archduke by the stroke at Ramilies, after the imperial cause in that quarter had been all but lost by the treacherous surrender of Ghent and Bruges, in the very centre of his water communications.

Lord Chesterfield, who knew him well, said that he was a man of excellent parts, and strong good sense, but of no very shining genius. The uninterrupted success of his campaigns, however, joined to the unexampled address with which he allayed the jealousies and stilled the discords of the confederacy whose armies he led, decisively demonstrates that the polished earl's opinion was not just; and that his partiality for the graces led him to ascribe an undue influence in the great duke's career to the inimitable suavity and courtesy of his manner. His enterprises and stratagems, his devices to deceive the enemy, and counterbalance inferiority of force by superiority of conduct; the eagle eye which, in the decisive moment, he brought to bear on the field of battle, and the rapidity with which in person he struck the final blow from which the enemy never recovered, bespeak the intuitive genius of war. It was the admirable *balance* of his mental qualities which caused his originality to be under-valued;—no one power

stood out in such bold relief as to overshadow all the others, and rivet the eye by the magnitude of its proportions. Thus his consummate judgment made the world overlook his invention; his uniform prudence caused his daring to be forgotten; his incomparable combinations often concealed the capacious mind which had put the whole in motion. He was so uniformly successful, that men forgot how difficult it is always to succeed in war. It was not till he was withdrawn from the conduct of the campaign, and disaster immediately attended the Allied arms, and France resumed the ascendant over the coalition, that Europe became sensible who had been the soul of the war, and how much had been lost when his mighty understanding was no longer at the head of affairs.

A most inadequate opinion would be formed of Marlborough's mental character, if his military exploits alone were taken into consideration. Like all other intellects of the first order, he was equally capable of great achievements in peace as in war, and shone forth with not less lustre in the deliberations of the cabinet, or the correspondence of diplomacy, than in directing columns on the field of battle, or tracing out the line of approaches in the attack of fortified towns. Nothing could exceed the judgment and address with which he reconciled the jarring interests, and smoothed down the rival pretensions, of the coalesced cabinets. The danger was not so pressing as to unite their rival governments, as it afterwards did those of the Grand Alliance in 1713, for the overthrow of Napoleon; and incessant exertions, joined to the highest possible diplomatic address, judgment of conduct, and suavity of manner, were required to prevent the coalition, on various occasions during the course of the war, from falling to pieces. As it was, the intrigues of Bolingbroke and the Tories in England, and the ascendancy of Mrs Masham in the Queen's bedchamber councils, at last counterbalanced all his achievements, and led to a peace which abandoned the most important objects of the war, and was fraught, as the event has proved, with serious danger to the independence and even existence of England. His winter campaign at the Allied courts, as he himself said, always equalled in duration, and often exceeded in importance and difficulty, that in summer with the enemy; and nothing is more certain, than that if a man of less capacity had been entrusted with the direction of its diplomatic relations, the coalition would have soon broken up without having accomplished any of the objects for which the war had been

undertaken, from the mere selfishness and dissensions of the cabinets by whom it was conducted.

With one blot, for which neither the justice of history, nor the partiality of biography either can or should attempt to make any apology, Marlborough's private character seems to have been unexceptionable, and was evidently distinguished by several noble and amiable qualities. That he was bred a courtier, and owed his first elevation to the favour with which he was regarded by one of the King's mistresses, was not his fault:—It arose, perhaps, necessarily from his situation, and the graces and beauty with which he had been so prodigally endowed by nature. The young officer of the Guards, who in the army of Louis XIV. passed by the name of the "handsome Englishman," could hardly be expected to be free from the consequences of female partiality at the court of Charles II. But in maturer years, his conduct in public, after William had been seated on the throne, was uniformly consistent, straightforward, and honourable. He was a sincere patriot, and ardently attached both to his country and the principles of freedom, at a time when both were wellnigh forgotten in the struggles of party, and the fierce contests for royal or popular favour. Though bred up in a licentious court, and early exposed to the most entrancing of its seductions, he was in mature life strictly correct, both in his conduct and conversation. He resisted every temptation to which his undiminished beauty exposed him after his marriage, and was never known either to utter, or permit to be uttered in his presence, a light or indecent expression. He discouraged to the utmost degree any instances of intemperance or licentiousness in his soldiers, and constantly laboured to impress upon his men a sense of moral duty and Supreme superintendence. Divine service was regularly performed in all his camps, both morning and evening; previous to a battle, prayers were read at the head of every regiment, and the first act, after a victory, was a solemn thanksgiving. "By those means," says a contemporary biographer, who served in his army, "his camp resembled a quiet, well-governed city. Cursing and swearing were seldom heard among the officers; a drunkard was the object of scorn: and even the soldiers, many of them the refuse and dregs of the nation, became, at the close of one or two campaigns, tractable, civil, sensible, and clean, and had an air and spirit above the vulgar."

In political life, during his career after that event, he was consistent and firm; faithful to his party, but more faithful still to his country. He was a generous friend, an attached, perhaps too fond a husband. During the whole of his active career, he retained a constant sense of the superintendence and direction of the Supreme Being, and was ever the first to ascribe the successes which he had gained, to Divine protection; a disposition which appeared with peculiar grace amidst the din of arms, and the flourish of trumpets for his own mighty achievements. Even the one occasion on which, like David, he fell from his high principles, will be regarded by the equitable observer with charitable, if not forgiving eyes. He will recollect, that perfection never yet belonged to a child of Adam; he will measure the dreadful nature of the struggle which awaits an upright and generous mind when loyalty and gratitude impel one way, and religion and patriotism another. Without attempting to justify an officer who employs the power bestowed by one government to elevate another on its ruins, he will yet reflect, that in such a crisis, even the firmest heads and the best hearts may be led astray. If he is wise, he will ascribe the fault—for fault it was—not so much to the individual, as the time in which he lived; and feel a deeper thankfulness that his own lot has been cast in a happier age, when the great moving passions of the human heart act in the same direction, and a public man need not fear that he is wanting in his duty to his sovereign, because he is performing that to his country.

Marlborough was often accused of avarice: but his conduct through life sufficiently demonstrated that in him the natural desire to accumulate a fortune, which belongs to every rational mind, was kept in subjection to more elevated principles. His repeated refusal of the government of the Netherlands, with its magnificent appointment of L.60,000 a-year, was a sufficient proof how much he despised money when it interfered with public duty; his splendid edifices, both in London and Blenheim, attest how little he valued it for any other sake but as it might be applied to noble and worthy objects.^[38] He possessed the magnanimity in every thing which is the invariable characteristic of real greatness. Envy was unknown, suspicion loathsome, to him. He often suffered by the generous confidence with which he trusted his enemies. He was patient under contradiction; placid and courteous both in his manners and demeanour; and owed great part of his success, both in the field and in the cabinet, to the invariable suavity and charm of his manner. His humanity was uniformly conspicuous. Not only

his own soldiers, but his enemies never failed to experience it. Like Wellington, his attention to the health and comforts of his men was incessant; and, with his daring in the field and uniform success in strategy, endeared him in the highest degree to the men. Troops of all nations equally trusted him; and the common saying, when they were in any difficulty, "Never mind—'Corporal John' will get us out of it," was heard as frequently in the Dutch, Danish, or German, as in the English language. He frequently gave the weary soldiers a place in his carriage, and got out himself to accommodate more; and his first care, after an engagement, invariably was to visit the field of battle, and do his utmost to assuage the sufferings of the wounded, both among his own men and those of the enemy.

The character of this illustrious man has been thus portrayed by two of the greatest writers in the English language, the latter of whom will not be accused of undue partiality to his political enemy. "It is a characteristic," says Adam Smith, "almost peculiar to the great Duke of Marlborough, that ten years of such uninterrupted and such splendid successes as scarce any other general could boast of, never betrayed him into a single rash action, scarce into a single rash word or expression. The same temperate coolness and self-command cannot, I think, be ascribed to any other great warrior of later times—not to Prince Eugene, nor to the late King of Prussia, nor to the great Prince of Condé, not even to Gustavus Adolphus. Turenne seems to have approached the nearest to it: but several actions of his life demonstrate that it was in him by no means so perfect as in the great Duke of Marlborough."^[39] "By King William's death," says Bolingbroke, "the Duke of Marlborough was raised to the head of the army, and indeed of the confederacy, where he, a private man, a subject, obtained by merit and by management a more decided influence than high birth, confirmed authority, and even the crown of Great Britain, had given to King William. Not only all the parts of that vast machine, the Grand Alliance, were kept more compact and entire, but a more rapid and vigorous motion was given to the whole; and instead of languishing or disastrous campaigns, we saw every scene of the war full of action. All those wherein he appeared, and many of those wherein he was not then an actor, but abettor, however, of their actions, were crowned with the most triumphant success. I take with pleasure this opportunity of doing justice to that great man, whose faults I know, whose virtues I admire, and whose memory, *as the greatest general*

and greatest minister that our country or any other has produced, I honour."^[40]

MILDRED;

A TALE.

PART I. CHAP. I.

The town of Wimborne, in Dorsetshire, boasts the possession of a very ancient cathedral-like church, dignified with the title of Minster, but, with this exception, is as utterly devoid, we believe, of all interest to the traveller, as any of the numerous country-towns which he rapidly passes through, and so gladly quits, wondering for the moment how it is that any one can possibly consent to be left behind in them. He who has journeyed from Southampton to Poole will remember the town, from the circumstance that he quitted by the same narrow streets by which he entered it, his road not passing directly through, but forming an angle at this point. He will call to mind what appeared an unaccountable turning and twisting about of the coach, whilst the horses were being changed, and a momentary alarm at finding that he was retracing his steps; he will remember the two massive square towers of the old church, peering above the roofs of the houses; and this is all that he will know, or have the least desire to know, of the town of Wimborne.

If, however, the traveller should be set down in this quiet place, and be compelled to wait there half a day for the arrival of some other coach to carry him to his destination, he will probably wile away his time by a visit to its antique and venerable church; and after climbing, by the dark and narrow staircase, to the top of one of its towers, he will be somewhat surprised to find himself—in a library! A small square room is fitted up with shelves, whereon a number of books are deposited, and the centre is occupied by a large reading-desk, and a massive oak table, apparently coeval with the tower itself, and which was probably placed there before the roof was put on, since it never could have been introduced by the stairs or through the window. It is no modern library, be it understood—no vestry reading-room connected with the Sunday school of the place; they are old

books, black-letter quartos, illuminated missals, now dark and mouldy, and whose parchment has acquired no pleasant odour from age. By no means is it a circulating library, for some of the books are still chained to the reading-desk; and many more have their rusty iron chain twisted about them, by which they, in their turn, were bound to the desk. If the traveller should not be favoured with that antiquarian taste which finds a charm in decyphering, out of mouldy and black-letter volumes, what would not be worth his perusal in the most luxurious type of modern days, he will at least derive some pleasure from opening the little windows of the tower, and inhaling the fresh breeze that will blow in upon him, and in looking over an extensive prospect of green meadows, with their little river meandering about in them. It must have formed a pleasant retreat at one time to the two or three learned clerks, or minor canons, or neighbouring monks or friars—we may be sure there were never many of such students—who used to climb this turret for their morning or their evening lucubrations.

The only student who had, perhaps for some centuries, frequented it—and she brought her own books with her, and was very unlike either learned clerk, or monk, or friar—was Mildred Willoughby. She used to delight—a taste savouring of extreme youth—to bring the book she was perusing from her own comfortable parlour, to climb up with it to this solitary height, and there read it alone. She had no difficulty in obtaining from the parish-clerk permission to be left in this chosen solitude—to draw the one wooden chair it possessed to the window, and there to sit, and read, or muse, or look upon the landscape, just as long as she pleased. It did not very frequently happen that this functionary was called upon to exhibit the old tower to the curiosity of strangers; but if this occurred whilst she was thus occupied, she would rise from her seat, and for a moment put on the air of a visitor also—walk slowly round the room, looking at the backs of the books, or out of the window at the prospect, as if she saw them for the first time! and when the company had retreated, (and there was little to detain them long,) would quietly return to her chair, her study, or her reverie.

One reason she might have given, beside the romantic and pensive mood it inspired, for her choice of this retreat—the charm of being alone. Nothing could be more quiet—to look at the exterior—than the house she called her home. It stood at the extremity of the town, protected from the road by its own neat inclosure of turf and gravel-walk—surely as remote from every

species of disturbance or excitement as the most devoted student could desire. We question even whether a barrel-organ or a hurdy-gurdy was ever known to commit an outrage upon its tranquillity; and for its interior, were not Mr and Miss Bloomfield (they were brother and sister, uncle and aunt of Mildred) the most staid, orderly, methodical persons in the world? Did not the bachelor uncle cover every part of the house, and the kitchen stairs in particular, with thick carpet, in order that the footsteps of John and the maid should not disquiet him? The very appearance of the garden, both before and behind the house, was sufficient to show how orderly a genius presided over it. Could box be cut more neatly? or gravel-walks be kept cleaner? You saw a tall lance-like instrument standing by the steps of the back-door, its constant place. With this Mr Bloomfield frequently made the circuit of his garden, but with no hostile purpose: he merely transfixed with it the dry leaves or the splinters of wood that had strayed upon his gravel, carrying them off in triumph to a neat wooden receptacle, where they were both imprisoned and preserved. And Miss Bloomfield, she also was one of the most amiable of women, and as attached to a quiet and orderly house as her brother. Neither could any two persons be more kind, or more fond of their niece, than they were. But it was from this very kindness, this very fondness, that Mildred found it so pleasant at times to escape. Her aunt, especially, was willing to grant her any indulgence but that of being alone. This her love for her niece, and her love of talking, would rarely permit. Neither could Mildred very graciously petition for this unsocial privilege. In youth, nothing is so delightful as solitude, especially when it is procured by stealth, by some subtle contrivance, some fiction or pretence; and many a time did her aunt find it necessary to pursue Mildred to her own chamber, and many a time did she bring her down into the parlour, repeating, with unfeigned surprise, and a tone of gentle complaint, the always unanswerable question—what she *could* be doing so long in her own room? Therefore it was that she was fain to steal out alone—take her walk through the churchyard, ascend the tower, enter its little library, and plant herself in its old arm-chair for an hour of solitary reading or thinking.

Mildred Willoughby was born in India, and her parents (the greatest misery attendant upon a residence in that climate) were compelled to send her to England to be reared, as well as educated. She had been placed under the care of her uncle and aunt. These had always continued to live together—bachelor and spinster. As their united incomes enabled them to surround

themselves with every comfort and personal luxury, and as they were now of a very mature age, it was no longer considered to be in the chapter of probabilities that either of them would change their condition. Miss Bloomfield, in her youth, was accounted a beauty—the *belle* of Wimborne; and we may be sure that personal charms, a very amiable disposition, and a considerable fortune, could not fail to bring her numerous admirers and suitors. But her extreme placidity of temper no passion seems ever to have ruffled; and it did so happen, that though her hand had often been solicited, no opportunity of marriage had been offered to her which would not have put in jeopardy some of those comforts and indulgences to which she was habituated. She was pleased with the attentions of gentlemen, and was studious to attract them; but there was nothing in that word *love* which could have compensated for the loss of her favourite attendants, or of that pretty little carriage that drew her about the country.

As for Mr Bloomfield, it was generally supposed that he had suffered from more than one tender disappointment, having always had the misfortune to fix his affections just where they could not be returned. But those who knew him well would say, that Josiah Bloomfield was, in fact, too timid and irresolute a man ever to have married—that being himself conscious of this, yet courting, at the same time, the excitement of a tender passion, he invariably made love where he was sure to be rejected. Many a fascinating girl came before him, whom he might have won, from whose society, for this very reason, he quietly withdrew, to carry his sighs to some quarter where a previous engagement, or some other obstacle, was sure to procure him a denial. He thus had all the pleasing pains of wooing, and earned the credit for great sensibility, whilst he hugged himself in the safe felicity of a single life. By this time, a more confirmed or obdurate bachelor did not exist; yet he was pleased to be thought to wear the willow, and would, from time to time, endeavour to extort compassion by remote hints at the sufferings he had endured from unreturned affection.

Two such persons, it will be supposed, were at first somewhat alarmed at the idea of taking into their establishment a little girl about four or five years old. Indeed, they had, in the first instance, only so far agreed to take charge of her as to find her a fit school—to receive her at the holidays—and, in this distant manner, superintend her education. But Mildred proved so quiet, so tractable, and withal so cheerful a child, that they soon resolved

to depart from this plan. She had not been long in the house before it would have been a great distress to both of them to have parted with her. It was determined that she should reside perpetually with them, and that the remittances received from India should be employed in obtaining the very best masters that could be procured from Bath or Exeter. Mr Bloomfield found, in the superintendence of Mildred's education, an employment which made the day half as short as it had ever been before. He was himself a man fond of reading; and if he had not a very large store of thoughts, he had at least an excellent library, into which Mildred, who had now arrived at the age of fifteen, had already begun to penetrate.

And books—her music—&c., a few friends, more distinguished by good-breeding and good-nature than by any vivacity of mind, were all the world of Mildred Willoughby, and it was a world that there seemed little probability of her getting beyond. It had been expected that about this time she would have returned to India to her parents; but her mother had died, and her father had expressed no wish that she should be sent out to him. On the contrary, beyond certain pecuniary remittances, and these came through an agent's hands, there was nothing to testify that he bore any remembrance of his daughter. Of her father, very contradictory reports had reached her; some said that he had married again, and had formed an engagement of which he was not very proud; others that he had quitted the service, and was now travelling, no one knew where, about the world. At all events, he appeared to have forgotten that he had a daughter in England; and Mildred was almost justified in considering herself—as she did in her more melancholy moments—as in fact an orphan, thrown upon the care of an uncle and aunt, and dependent almost entirely upon them.

One fine summer's day, as she was enjoying her lofty solitude in the minster tower, a visitor had been allowed to grope up his way unattended into its antique library. On entering, he was not a little startled to see before him in this depository of mouldering literature a blooming girl in all the freshness and beauty of extreme youth. He hesitated a moment whether to approach and disturb so charming a vision. But, indeed, the vision was very soon disturbed. For Mildred, on her side, was still more startled at this entrance, alone and suddenly, of a very handsome young man—for such the stranger was—and blushed deeply as she rose from her chair and attempted

to play as usual the part of casual visitor. He bowed—what could he less?—and made some apology for his having startled her by his abrupt entrance.

The stranger's manner was so quiet and unassuming, that the timidity of Mildred soon disappeared, and before she had time to think what was most *proper* to do, she found herself in a very interesting conversation with one who evidently was as intelligent as he was well-bred and good-looking. She had let fall her book in her hurry to rise. He picked it up, and as he held the elegantly bound volume in his hand, which ludicrously contrasted with the mouldy and black-letter quartos that surrounded them, he asked with a smile, on which shelf he was to deposit it. "This fruit," said he, "came from another orchard." And seeing the title at the back, he added, "Italian I might have expected to find in a young lady's hand, but I should have looked for a Tasso, not an Alfieri."

"Yes," she replied gaily, "a damsel discovered reading in this old turret ought to have book of chivalry in her hand. I have read Tasso, but I do not prefer him. Alfieri presents me quite as much as Tasso with a new world to live in, and it is a more real world. I seem to be learning from him the real feelings of men."

The stranger was manifestly struck by this kind of observation from one so young, and still more by the simple and unpretending manner in which it was uttered. Mildred had not the remotest idea of talking criticism, she was merely expressing her own unaffected partialities. He would have been happy to prolong the conversation, but the clerk, or verger, who had missed his visitor—as well he might, for his visitor had purposely given him the slip, as all wise men invariably do to all cicerones of whatever description—had at length tracked his fugitive up the tower, and into the library. His entrance interrupted their dialogue, and compelled the stranger very soon afterwards to retreat. He made his bow to the fair lady of the tower and descended.

Mildred read very little more that day, and if she lingered somewhat longer in meditation, her thoughts had less connexion than ever with antiquities of any kind. She descended, and took her way home. The probability that she might meet the stranger in passing through the town—albeit there was nothing, disagreeable in the thought—made her walk with unusual rapidity, and bend her eyes pertinaciously upon the ground. The

consequence of which was, that in turning the corner of a street which she passed almost every day of her life, she contrived to entangle her dress in some of the interesting hardware of the principal ironmonger of the place, who, for the greater convenience of the inhabitants, was accustomed to advance his array of stoves and shovels far upon the pavement, and almost before their feet. As she turned and stooped to disengage her dress, she found that relief and rescue were already at hand. The stranger knight, who had come an age too late to release her as a captive from the tower, was affording the best assistance he could to extricate her from entanglement with a kitchen-range. Some ludicrous idea of this kind occurred to both at the same time—their eyes met with a smile—and their hands had very nearly encountered as they both bent over the tenacious muslin. The task, however, was achieved, and a very gracious "thank you" from one of the most musical of voices repaid the stranger for his gallantry.

That evening Mildred happened to be sitting near the window—it must have been by merest hazard, for she very rarely occupied that part of the room—as the Bath coach passed their gates. A gentleman seated on the roof appeared to recognise her—at least, he took his hat off as he passed. Was it the same?—and what if it were? Evidently he was a mere passer-by, who had been detained in the town a few hours, waiting for this coach. Would he ever even think again of the town of Wimborne—of its old minster—or its tower—and the girl he surprised sitting there, in its little antique library?

CHAPTER II.

Between two or three years have elapsed, and our scene changes from the country town of Wimborne to the gay and pleasant capital of Belgium.

Mr and Miss Bloomfield had made a bold, and, for them, quite a tremendous resolution, to take a trip upon the Continent, which should extend—as far as their courage held out. The pleasure and profit this would afford their niece, was no mean inducement to the enterprise. Mr Bloomfield judged that his ward, after the course of studies she had pursued, and the proficiency she had attained in most feminine accomplishments, was ripe to take advantage of foreign travel. Mr Bloomfield judged wisely; but Mr Bloomfield neither judged, nor was, perhaps, capable of judging how far, in fact, the mind of his niece *had*

advanced, or what singular good use she had made of his own neglected library. She had been grappling with all sorts of books—of philosophy and of science, as well as of history and poetry. But that cheerful quietude which distinguished her manner, concealed these more strenuous efforts of her mind. She never talked for display—she had, indeed, no arena for display—and the wish for it was never excited in her mind. What she read and thought, she revolved in herself, and was perfectly content. How it might have been had she lived amongst those who would have called her forth, and overwhelmed her with praise, it would be difficult to tell. As it was, Mildred Willoughby presented to the imagination the most fascinating combination of qualities it would be possible to put together. A young girl of most exquisite beauty, (she had grown paler than when we last saw her, but this had only given increased lustre to her blue eye)—of manners the most unaffected—of a temper always cheerful, always tranquil—was familiar with trains of deep reflection—possessed a practised intellect and really cultivated mind. In this last respect, there was not a single person in all Wimborne or its neighbourhood who had divined her character. That she was a charming girl, though a little too pale—very amiable, though a little too reserved—of a temper provokingly calm, for she was not ruffled even where she ought to be—and that she sang well, and played well; such would have been the summary of her good qualities from her best and most intimate friends. She was now enjoying, with her uncle and aunt—but in a manner how different from theirs!—the various novelties, great and small, which a foreign country presents to the eye.

Those who, in their travels, estimate the importance of any spot by its distance or its difficulty of access, will hardly allow such a place as Brussels to belong to *foreign parts*. It is no more than an excursion to Margate: it is but a day's journey. True; but your day's journey has brought you to another people—to another religion. We are persuaded that a man shall travel to Timbuctoo, and he shall not gain for himself a stronger impression of novelty, than a sober Protestant shall procure by entering the nearest country where the Roman Catholic worship is in full practice. He has seen cathedrals—many and beautiful—but they were mere architectural monuments, half deserted, one corner only employed for the modest service of his church—the rest a noble space for the eye to traverse, in which he has walked, hat in hand, meditating on past times and the middle ages. But if he cross the Channel, those past times—they have come back again; those

middle ages—he is in the midst of them. The empty cathedral has become full to overflowing; there are the lights burning in mid-day, and he hears the Latin chant, and sees high-priests in gorgeous robes making mystic evolutions about the altar; and there is the incense, and the sprinkling of holy water, and the tinkling bell, and whatever the Jew or the Pagan has in times past bequeathed to the Christian. Or let him only look up the street. Here comes, tottering in the air, upon the shoulders of its pious porters, Our Lady herself, with the Holy Child in one arm, and her sceptre in the other, and the golden crown upon her head. Here she is in her satin robe, stiff with embroidery, and gay with lace, and decked with tinsel ornaments beyond our power of description. If the character of the festival require it, she is borne by six or eight maidens clad in white, with wreaths of white roses on their heads; and you hear it whispered, as they approach, that such a one is beautiful Countess of C——; and, countess or not, there is amongst those bearers a face very beautiful, notwithstanding that the heat of the day, and a burden of no light weight, has somewhat deranged the proportions of the red and white which had been so cunningly laid on. And then comes the canopy of cloth of gold, borne over the bare head of the venerable priest, who holds up to the people, inclosed in a silver case, imitative of rays of glory, the sacred host; holds it up with both his hands, and fastens both his eyes devoutly on the back of it; and boys in their scarlet tunics, covered with white lace, are swinging the censor before it; and the shorn priests on each side, with lighted tapers in their hands, tall as staves, march, chanting forth—we regret to say, with more vehemence than melody.

Is not all this strange enough? The state-carriage of the King of the Ashantees was, some years ago, captured in war, and exhibited in London; and a curious vehicle it was, with its peacocks' feathers, and its large glass beads hung round the roof to glitter and jingle at the same time. But the royal carriage of the Ashantees, or all that the court of the Ashantees could possibly display, is not half so curious, half so strange to any meditative spirit, as this image of the Holy Virgin met as it parades the streets, or seen afterwards deposited in the centre of the temple, surrounded by pots of flowers, real and artificial, by vases filled with lilies of glazed muslin, and altogether tricked out with such decorations as a child would lavish on its favourite doll if it had an infinite supply of tinsel.

And they worship *that*!

"No!" exclaims some very candid gentleman. "No sir, they by no means worship it; and you must be a very narrow-minded person if you think so. Such images are employed by the Catholic as representatives, as symbols only—visible objects to direct his worship to that which is invisible." O most candid of men! and most liberal of Protestants! we do not say that Dr Wiseman or M. Chateaubriand worship images. But just step across the water—we do not ask you to travel into Italy or Spain, where the symptoms are ten times more violent—just walk into some of these churches in Belgium, *and use your own eyes*. It is but a journey of four-and-twenty hours; and if you are one of those who wish to bring into our own church the more frequent use of form and ceremony and visible symbol, it will be the most salutary journey you ever undertook. Meanwhile consider, and explain to us, why it is—if images are understood to have only this subordinate function—that one image differs so much from another in honour and glory. This Virgin, whom we have seen parade the streets, is well received and highly respected; but there are other Virgins—ill-favoured, too, and not at all fit to act as representatives of any thing feminine—who are infinitely more honoured and observed. The sculpture of Michael Angelo never wins so much devotion as you shall see paid here, in one of their innumerable churches, to a dark, rude, and odious misrepresentation of Christ. They put a mantle on it of purple cotton, edged with white, and a reed in its hand, and they come one after the other, and kiss its dark feet; and mothers bring their infants, and put their soft lips to the wound that the nail made, and then depart with full sense of an act of piety performed. And take this into account, that such act of devotion is no casual enthusiasm, no outbreak of passionate piety overleaping the bounds of reason; it is done systematically, methodically; the women come with their green tin cans, slung upon their arm, full of their recent purchases in the market, you see them enter—approach—put down the can—kiss—take up the can, and depart. They have fulfilled a duty.

But we have not arrived in Brussels to loiter in churches or discuss theology.

"Monsieur and the ladies will go to the ball to-night," said their obliging host to our party. "It is an annual ball," he continued, "given by the Philanthropical Society for the benefit of the poor. Their Majesties, the king

and the queen, will honour it with their presence, and it is especially patronised by your fair countrywomen.

"Enough," said Mr Bloomfield; "we will certainly go to the ball. To be in the same room with a living king and queen—it is an opportunity by no means to be lost."

"And then," said Miss Bloomfield, "it is an act of charity."

This species of charity is very prevalent at Brussels. You dance there out of pure commiseration. It is an excellent invention, this gay benevolence. You give, and you make no sacrifice; you buy balls and concerts with the money you drop into the beggar's hat; charity is all sweetness. Poverty itself wears quite a festive air; the poor are the farmers-general of our pleasures; it is they who give the ball. Long live the dance! Long live the poor!

They drive to the ball-room in the Rue Ducale. They enter an oblong room, spacious, of good proportions, and brilliantly lit up with that gayest of all artificial lights—the legitimate wax candle, thickly clustered in numerous chandeliers. Two rows of Corinthian columns support the roof, and form a sort of arcade on either side for spectators or the promenade, the open space in the centre being, of course, devoted to the dance. At the upper end is a raised dais with chairs of state for their Majesties. What, in day-time, were windows are filled with large mirrors, most commodiously reflecting the fair forms that stand or pass before them. How smooth is the inlaid polished floor! and how it seems to foretell the dance for which its void space is so well prepared! No incumbrance of furniture here; no useless decorations. Some cushioned forms covered with crimson velvet, some immense vases occupying the corners of the room filled with exotic plants, are all that could be admitted of one or the other.

The orchestra, established in a small gallery over the door, strikes up the national air, and the royal party, attended by their suite, proceed through the centre of the room, bowing right and left. They take their seats. That instant the national air changes to a rapid waltz, and in the twinkling of an eye, the whole of that spacious floor is covered thick with the whirling multitude. The sober Mr Bloomfield, to whom such a scene is quite a novelty, grows giddy with the mere view of it. He looks with all his might, but he ought to have a hundred pairs of eyes to watch the mazes of this dance. One couple after another appear and vanish as if by enchantment. He sees a bewitching

face—he strives to follow it—impossible!—in a minute fifty substitutes are presented to him—it is lost in a living whirlpool of faces.

To one long accustomed to the quiet and monotony of a country life, it would be difficult to present a spectacle more novel or striking than this of a public ball-room; and though for such a novelty it was not necessary to cross the water, yet assuredly, in his own country, Mr Bloomfield would never have been present at such a spectacle. We go abroad as much to throw ourselves for a time into new manners of life, as to find new scenes of existence. He stood bewildered. Some two hundred couples gyrating like mad before him. Sometimes the number would thin, and the fervour of the movement abate—the floor began, in parts, to be visible—the storm and the whirlwind were dying away. But a fresh impulse again seized on both musicians and dancers—the throng of these gentle dervishes, of these amiable mænads, became denser than ever—the movement more furious—the music seemed to madden them and to grow mad itself: he shut his eyes, and drew back quite dizzy from the scene.

It is a singular phenomenon, this waltz, retained as it is in the very heart of our cold and punctilious civilisation. How have we contrived, amidst our quiet refinement and fastidious delicacy, to preserve an amusement which has in it the very spirit of the Cherokee Indian? There is nothing sentimental—nothing at all, in the waltz. In this respect, mammas need have no alarm. It is the mere excitement of rapid movement—a dextrous and delirious rotation. It is the enthusiasm only of the feet—the ecstasy of mere motion. Yes! just at that moment when, on the extended arm of the cavalier, the soft and rounded arm of his partner is placed so gently and so gracefully—(as for the hand upon the whalebone waist no electricity comes that way)—just then there may be a slight emotion which would be dangerous if prolonged; but the dance begins, and there is no room for any other rapture than that of its own swift and giddy course. There are no beatings of the heart after that; only pulsations of the great artery.

Found where it is, it is certainly a remarkable phenomenon, this waltz. Look now at that young lady—how cold, formal, stately!—how she has been trained to act the little queen amongst her admirers and flatterers! See what a *reticence* in all her demeanour. Even feminine curiosity, if not subdued, has been dissimulated; and though she notes every thing and every body, and can describe, when she returns home, the dress of half the ladies

in the room, it is with an eye that seems to notice nothing. Her head has just been released from the hair-dresser, and every hair is elaborately adjusted. To the very holding of an enormous bouquet, "round as my shield," which of itself seems to forbid all thoughts of motion—every thing has been arranged and re-arranged. She sits like an alabaster figure; she speaks, it is true, and she smiles as she speaks; but evidently the smile and the speech have no natural connexion with one another; they co-exist, but they have both been quite separately studied, prepared, permitted. Well, the waltz strikes up, and at a word from that bowing gentleman, himself a piece of awful formality, this pale, slow, and graceful automaton has risen. Where is she now? She is gone—vanished—transformed. She is nowhere to be seen. But in her stead there is a breathless girl, with flushed cheeks, ringlets given to the wind, dress flying all abroad, spinning round the room, darting diagonally across it, whirling fast as her little feet can carry her—faster, faster—for it is her more powerful cavalier, who, holding her firmly by the waist, sustains and augments her speed.

Perhaps some ingenious mind may discover a profound philosophy in all this; perhaps, by retaining this authorised outlet for the mere rage of movement, the rest of civilised life is better protected against any disturbance of that quietude of deportment which it is so essential to maintain.

But if the waltz appeared to Mr Bloomfield like dancing gone mad, the quadrille which divided the evening with it, formed a sort of compensation by carrying matters to the opposite extreme. A fly in a glue-pot moves with about the same alacrity, and apparently the same amount of pleasure, as did the dancers this evening in their crowded quadrille. As no one, of course, could be permitted to stand with his back to royalty, they were arranged, not in squares, but in two long files as in a country-dance. The few couples that stood near their majesties were allowed a reasonable share of elbow-room, and could get through their evolutions with tolerable composure. But as the line receded from this point, the dancers stood closer and closer together, and at the other extremity of the room it became nothing less than a dense crowd; a crowd where people were making the most persevering and ingenious efforts to accomplish the most spiritless of movements—with a world of pains just crawling in and out again. The motions of this *dancing* crowd viewed from a proper elevation, would exactly resemble those slow

and mysterious evolutions one sees, on close examination, in the brown dust of a cheese, in that condition which some people call ripe, and others rotten.

As to Miss Bloomfield, she keeps her eyes, for the most part, on the king and queen. Having expected to see them rise and join the dance, she was somewhat disappointed to find them retain their seats, the king chatting to a lady at his right, the queen to a lady on her left. Assuredly, if there were any one in that assembly who had come there out of charity, it was their Majesties. Or rather, they were there in performance of one of the duties of royalty, perhaps not the least onerous, that of showing itself in public on certain occasions. When they rose, it was to take their leave, which they were doubtless very glad to do. Nor, indeed, were those who had been most attracted by the advertised presence of their Majesties sorry to witness their departure. They would carry many away with them—there would be more room for the dance—and the quadrille could reassume its legitimate form.

But Mildred—what was she doing or thinking all this time? To her the scene was entirely new; for though Mr and Miss Bloomfield probably attended county balls in their youth, they had not, for some years, so far deviated from the routine of their lives as to frequent any such assemblies. Besides, she had to encounter, what they certainly had not, the gaze of every eye as she passed, and the whispered exclamations of applause. But to have judged from her manner—from that delightful composure which always distinguished it, as free from insipidity as from trepidation or fluster, you would have thought her quite familiar with such scenes and such triumphs. Reflection supplied the place of experience. You saw that those clear blue eyes, from which she looked out with such a calm and keen inquiry, were by no means to be imposed on; that they detected at once the true meaning of the scene before her. She was solicited to dance, but neither the waltz nor the quadrille were at all enticing, and she contented herself with the part of spectator. Her chief amusement was derived from the novel physiognomies which the room presented; and indeed the assortment, comprising, as it did, a sprinkling of many nations—French and Belgian, English and German—was sufficiently varied. There were even two or three *lions* of the first magnitude, who (judging from the supreme *hauteur* with which they surveyed the scene) must have been imported from the patron capital of Paris. Lions, bearded magnificently—no mere luxuriance,

or timid overgrowth of hair, but the genuine full black glossy beard—faces that might have walked out of Titian's canvass. Mildred would have preferred them in the canvass; they were much too sublime for the occasion. Then there were two or three young English *exquisites*, gliding about with that published modesty that proclaimed indifference, which seeks notoriety by the very graceful manner in which it seems struggling to avoid it. You see a smile upon their lips as they disengage themselves from the crowd, as if they rallied themselves for taking any share in the bustle or excitement of the scene; but that smile, be it understood, is by no means intended to escape detection.

There were a greater number of fat and elderly gentlemen than Mildred would have expected, taking part in the dance, or circulating about the room with all or more than the vivacity of youth. How happy!—how supremely blest!—seems that rotund and bald-headed sire, who, standing on the edge of the dais, now forsaken by their Majesties, surveys the whole assembly, and invites the whole assembly to return the compliment. How beautifully the bland sympathy he feels for others mingles with and swells his sense of self-importance! How he dominates the whole scene! How fondly patronises! And then his smile!—why, his heart is dancing with them all; it is beating time to twice two hundred feet. An old friend approaches him—he is happy too—would shake him by the hand. The hand he gives; but he cannot withdraw his eye from the wide scene before him; he cannot possibly call in and limit his sympathies at that moment to one friend, however old and dear. And he who solicits his hand, he also is looking around him at the same time, courting the felicitations of the crowd, who will not fail to observe that he too is there, and there amongst friends.

In the female portion of the assembly there was not so much novelty. Mildred could only remark that there was a large proportion of *brunettes*, and that the glossy black hair was parted on the head and smoothed down on either side with singular neatness and precision. Two only out of this part of the community attracted her particular notice, and they were of the most opposite description. Near to her stood a lady who might have been either thirty, or forty, or fifty, for all that her sharp and lively features betrayed. She wore one of those small round hats, with the feather drooping round it, which formed, we believe, a part of the costume of Louis XV.; and that which drew the notice of Mildred was the strange resemblance she bore, in

appearance and manner, to the portraiture which some French memoirs had made familiar to her imagination. As she watched her in conversation with an officer in full regimentals, who stood by her side, her fancy was transported to Versailles or St Cloud. What a caustic pleasantry! What a malicious vivacity! It was impossible to doubt that the repartees which passed between her and her companion were such as to make the ears of the absent tingle. There were some reputations suffering there as the little anecdote was so trippingly narrated. Her physiognomy was redolent of pleasant scandal—

"Tolerably mild,
To make a wash she'd hardly stew a child;"

but to extract a jest, there was no question she would have distilled half the reputations in the room.

The other object of Mildred's curiosity, we pause a moment to describe, because she will cross our path again in the course of this narrative. Amongst all the costly and splendid dresses of her sex, there was a young girl in some simple striped stuff, the most unsophisticated gown imaginable, falling flat about her, with a scanty cape of the same material about her neck—the walking-dress, in short, of a school-girl. The only preparation for the ball-room consisted of a wreath imitative of daisies, just such a wreath as she might have picked up in passing through a Catholic cemetery. And the dress quite suited the person. There she stood with eyes and mouth wide open, as if she saw equally through both apertures, full of irrepressible wonder, and quite confounded with delight. She had been asked to dance by some very young gentleman, but as she elbowed her way through the quadrille, she was still staring right and left with unabated amazement. Mildred smiled to herself as she thought that with the exception of that string of white tufts round her head, no larger than beads, which was to pass for a wreath, she looked for all the world as if some spirit had suddenly snatched her up from the pavement of the High Street of Wimborne, and deposited her in the ball-room of Brussels. Little did Mildred imagine that, that crude little person, absurd, untutored, ridiculous as she was, would one day have it in her power to subdue, and torture, and triumph over her!

CHAPTER III.

Mildred was at this moment checked in her current of observation, and reduced to play something more than the part of spectator. Her ear caught a voice, heard only once before, but not forgotten; she turned, and saw the stranger who had surprised her when, in her girlish days, she was sitting in the minster tower. He immediately introduced himself by asking her to dance.

"I do not dance," she said, but in a manner which did not seem to refuse conversation. The stranger appeared very well satisfied with the compromise; and some pleasant allusion to the different nature of the scene in which they last met, put them at once upon an easy footing.

"You say you *do* not dance—that is, of course, you *will* not. I shall not believe," he continued, "even if you had just stepped from your high tower of wisdom, but that you can do any thing you please to do. Pardon so blunt a speech."

"Oh, I *can*, I think," she replied. "My uncle, I believe, would have taught me the broad-sword exercise, if any one had suggested its utility to him."

And saying this, she turned to her uncle, to give him an opportunity, if he pleased, of joining the conversation. It was an opportunity which Mr Bloomfield, who had heard a foreign language chattered in his ear all the evening, would have gladly taken; but the patience of that gentleman had been for some time nearly exhausted; he had taken his sister under his arm, and was just going to propose to Mildred to leave the room.

The stranger escorted them through the crowd, and saw the ladies into their carriage.

"Can we set you down any where?" said Mr Bloomfield, who, though impatient to be gone, was disposed to be very cordial towards his fellow-countryman. "We are at the *Hotel de l'Europe*."

"And I opposite at the *Hotel de Flandres*—I will willingly accept your offer;" and he took the vacant seat in their carriage.

"How do you like Brussels?" was on the lips of both gentlemen at the same time.

"Nay," said the younger, "I have been here, I think, the longest; the question is mine by right of priority of residence."

Mr Bloomfield was nothing loath to communicate his impression of all that he had seen, and especially to dilate upon a grievance which, it seemed, had sorely afflicted him.

"As to the town, old and new, and especially the Grande Place, with its Hotel de Ville, I have been highly interested by it; but, my dear sir, the torture of walking over its horrid pavement! Only conceive a quiet old bachelor, slightly addicted to the gout, accustomed to take his walk over his well-rolled paths, or on his own lawn, (if not too damp,) suddenly put down amongst these cruel stones, rough and sharp, and pitched together in mere confusion, to pick his way how he can, with the chance of being smashed by some cart or carriage, for one is turned out on the same road with the horses. I am stoned to death, with this only difference, that I fall upon the stones instead of the stones falling upon me. And when there is a pavement—a *trottoir*, as they call it—it is often so narrow and slanting, and always so slippery, and every now and then broken by some step put there purposely, it would seem, to overthrow you, that it is better to bear the penance at once of the sharp footing in the centre of the street. *Trottoirs*, indeed! I should like to see any one trot upon them without breaking his neck! A spider or a black beetle, or any other creature that crawls upon a multitude of legs, and has not far to fall if he stumbles, is the only animal that is safe upon them. I go moaning all the day about these jogged pointed stones, that pitch me from one to the other with all the malice of little devils; and, would you believe it? my niece there only smiles, and tells me to get thick shoes! They cannot hurt her; she walks somehow over the tops of them as if they were so many balls of Indian rubber, and has no compassion for her gouty uncle."

"Oh, my dear uncle"——

"No, none at all; indeed you are not overburdened with that sentiment at any time for your fellow-travellers. You bear all the afflictions of the road—your own and other people's—very calmly."

"Don't mind him, my dear," said Miss Bloomfield, "he has been exclaiming again and again what an excellent traveller you make; nothing puts you out."

"That is just what I say—nothing does put her out. In that she is a perfect Mephistophiles. You know the scene of confusion on board a steamer when

it arrives at Antwerp, and is moored in under the quay on a hot day, with its full complement of passengers. There you are baked by the sun and your own furnaces; stunned by the jabber around you, and the abominable roar over your head made by the escape of the steam; the deck strewn with baggage, which is then and there to be publicly examined—turned over by the revenue officers, who leave you to pack up your things in their original compass, if you can. Well, in all this scene of confusion, there sat my niece with her parasol over her little head, looking quite composedly at the great cathedral spires, as if we were not all of us in a sort of infernal region there."

"No, uncle, I looked every now and then at our baggage, too, and watched that interesting process you have described of its examination. And when the worthy officer was going to crush aunt's bonnet by putting your dressing-case on the top of it, I rose, and arrested him. I had my hand upon his arm. He thought I was going to take him prisoner of war, for he was about to put his hand to his sword; but a second look at his enemy reassured him."

"Oh, you did squeak when the bonnets were touched," cried the uncle, "I am glad of that: it shows that you have some human, at least some feminine, feeling in your composition."

"But *à propos* of the pavement," said the young stranger, who could not join the uncle in this banter on his niece, and was therefore glad to get back to some common ground. "I took up, in a reading-room, the other day, a little pamphlet on phrenology, by *M. Victor Idjiez, Fondateur du Musée Phrenologique* at Brussels. It might as well have been entitled, on animal magnetism, for he is one of those who set the whole man in motion—mind and body both—by electricity. Amongst other things, he has discovered that that singular strength which madmen often display in their fits, is merely a galvanic power which they draw (owing, I suppose, to the peculiar state of their nerves,) from the common reservoir the earth, and which, consequently, forsakes them when they are properly isolated. In confirmation of this theory, he gives a singular *fact* from a Brussels journal, showing that *asphalte pavement* will isolate the individual. A madman had contrived to make his escape from confinement, having first thrown all the furniture of his room out of the window, and knocked down and trampled upon his keeper. Off he ran, and no one would venture to stop him. A

corporal and four soldiers were brought up to the attack: he made nothing of them; after having beaten the four musketeers, he took the corporal by the leg and again ran off, dragging him after upon the ground. A crowd of work-people emerging from a factory met him in full career with the corporal behind him, and undertook his capture. All who approached him were immediately thrown down—scattered over the plain. But his triumph was suddenly checked; he lighted upon a piece of asphalte pavement. The moment he put his foot upon it, his strength deserted him, and he was seized and taken prisoner. The instant, however, he stepped off the pavement, his strength revived, and he threw his assailants from him with the same ease as before. And thus it continued: whenever he got off the pavement, his strength was restored to him; the moment he touched it, he was again captured with facility. The asphalte had completely isolated him."

"Ha! ha!" cried Mr Bloomfield; "the fellow, after all, was not quite so mad as not to know what he was about. A Brussels pavement, asphalte or not, is no place for a wrestling match. Isolated, indeed! Oh, doubtless, it would isolate you most completely—at least the soles of your feet—from all communication with the earth. But does Mr—what do you call him?—proceed to theorise upon such *facts* as these?"

"You shall have another of them. Speaking of animal magnetism or electricity, he says—"There are certain patients the iron nails of whose shoes will fly out if they are laid in a direction due north."^[41]

"But you are quoting from Baron Munchausen."

"Not precisely."

Miss Bloomfield, who had been watching her opportunity, here brought in her contribution. "Pray, sir, do you believe the story they tell of the architect of the Hotel de Ville—that he destroyed himself on finding, after he had built it, that the tower was not in the centre?"

"That the architect should not discover that till the building was finished, is indeed *too good a story to be true*."

"But, then, why make the man kill himself? Something must have happened; something must be true."

"Why, madam, there was, no doubt, a committee of taste in those days as in ours. They destroyed the plan of the architect by cutting short one of his

wings, or prolonging the other; and he, out of vexation, destroyed himself. This is the only explanation that occurs to me. A committee of taste is always, in one sense at least, the death of the artist."

"Yes, yes," said Mildred; "the artist can be no longer said to exist, if he is not allowed, in his own sphere, to be supreme."

This brought them to the door of the hotel. They separated.

The next morning, on returning from their walk, the ladies found a card upon their table which simply bore the name of "Alfred Winston." The gentleman who called with it, the waiter said, had left word that he regretted he was about to quit Brussels, that evening, for Paris.

Mildred read the name several times—Alfred Winston. And this was all she knew of him—the name upon this little card!

There were amongst the trio several discussions as to who or what Mr Alfred Winston might be. Miss Bloomfield pronounced him to be an artist, from his caustic observations on committees of taste, and their meddling propensities. Mr Bloomfield, on the contrary, surmised he was a literary man; for who but such a one would think of occupying himself in a reading-room with a pamphlet on phrenology, instead of the newspapers? And all ended in "wondering if they should fall upon him again?"

THE LAW AND ITS PUNISHMENTS.

It is no uncommon boast in the mouth of Englishmen, that the system of jurisprudence under which they have the happiness to live, is the most perfect the world has ever seen. Having its foundation in those cabalistic words, "Nullus liber homo," &c., engraved with an iron pen upon the tablets of the constitution by the barons of King John, the criminal law, in their estimation, has been steadily improved by the wisdom of successive ages, until, in the present day, it has reached a degree of excellence which it were rashness to suppose can by any human sagacity be surpassed. Under its protecting influence, society reposes in security; under its just, but merciful administration, the accused finds every facility for establishing his innocence, and is allowed the benefit of every doubt that ingenuity can suggest to rebut the probability of guilt; before its sacred tribunals, the weak and the powerful, the poor and the rich, stand in complete equality; under its impartial sentence, all who merit punishment are alike condemned, without respect of any antecedents of rank, wealth, or station. In such a system, no change can take place without injury, for it is (not to speak irreverently) a system of perfection.

This is the dream of many—for we must characterise it rather as a dream than a deliberate conviction. Reason, we fear, has but little to do with the opinions of those who hold that English jurisprudence has no need of reform.

The praises which are so lavishly bestowed upon our criminal law may be, to a great extent, just; but it is to be doubted whether they are altogether judicious. It is true, that in no other system of jurisprudence throughout the civilised world, or among the nations of antiquity, has there existed, or is there so tender a regard for the rights of the accused. In Germany, the wretch who falls under suspicion of the law is subjected to a tedious and inquisitorial examination, with a view to elicit from his own lips the proof, and even the confession of guilt. This mental torture, not to speak of the imprisonment of the body, may be protracted for years, and even for life. In France, the facts connected with an offence are published by authority, and

circulated throughout the country, to be greedily devoured by innumerable lovers of unwholesome excitement; and not the simple facts alone, but a thousand incidental circumstances connected with the transaction, together with the birth, parentage, and education, and all the previous life of the supposed offender, making in the whole a romance of considerable interest, and possessing an attraction beyond the ordinary tales which fill the *feuilleton* of a newspaper. In England, the position of the accused is widely different. We avoid the errors and the tyranny of our neighbours; but have we not fallen into the opposite extreme? Our magistrates scrupulously caution prisoners not to say any thing that may criminate themselves. Every thing that authority can effect by means of advice, which, under the circumstances, is equivalent to command, is carefully brought forward to prevent a confession. And if, in spite of checks, warnings, and commands, the accused, overcome by the pangs of conscience, and urged by an irresistible impulse to disburden his soul of guilt, should perchance confess, the testimony is sometimes rejected upon some technical point of law, which would seem to have been established for the express purpose of defeating the ends of justice. Indeed, the technicalities which surround our legal tribunals have been, until very lately, and are still, in too many instances, most strangely favourable to the escape of criminals. The idlest quibbles, most offensive to common sense, and utterly disgraceful in a court of criminal investigation, have at various times been allowed as valid pleas in defence of the most palpable crimes. Many a thief has escaped, on the ground of some slight and immaterial misdescription of the stolen article, such as a horse instead of a mare, a cow instead of an ox, a sheep for a ewe, and so on. True, these absurdities exist no longer; but others still remain, less ridiculous perhaps, but not less obstructive of the course of justice, and quite as pernicious in their example. Great and beneficial changes have been effected in the criminal code, and too much praise cannot be bestowed upon Sir Robert Peel for his exertions in this behalf. To her Majesty's commissioners, also, some thanks are due for the labour they have expended with a view to the consolidation and subsequent codification of the various statutes. Their labours, however, have not hitherto been very largely productive. The excellent object of simplifying our criminal laws still remains to be accomplished, and so long as it does so, so long will it be obnoxious to the censures which are not unsparingly heaped upon it.

But if our jurisprudence be in one respect too favourable to the criminal, in another, as it appears to us, the balance is more than restored to its equilibrium. If, in the process of investigation, justice leans too much to the side of mercy, the inquiry once over, she quickly repents of her excessive leniency, and is careful to justify her ways by a rigorous severity. The accused, if he is not lucky enough to avail himself of the thousand avenues of escape that are open during the progress of his trial, must abandon all hope of further consideration, and look to undergo a punishment, of which the full extent cannot be estimated by any human sagacity. Once condemned, he ceases to be an object of care or solicitude, except so far as these are necessary to preserve his life and restrain his liberty. Through crime he has forfeited all claim upon the fostering care of the state. He is an alien and an outcast, and has no pretence for expecting any thing but misery.

Surely there is something vindictive in all this—something not quite consistent with the calm and unimpassioned administration of justice. The first impressions of any man of ordinary humanity must be very much against a system which fosters and encourages such a state of things. We believe that those first impressions would be confirmed by inquiry; and it is our purpose in the present article briefly to state the reasons for our belief.

The treatment of criminals under sentence of imprisonment must now be well known to the public. Repeated discussion and innumerable writings have rendered it familiar to every body. A man is condemned to undergo, let us say, three years' incarceration in a jail. A portion of the time is to be spent in hard labour. He commences his imprisonment with no other earthly object than to get through it with the least possible amount of suffering. Employment, which might, under better circumstances, be a pleasant resource, is distasteful to him because it is compulsory, and because it is productive of no benefit to himself. The hours that are unemployed are passed in company with others as bad as, or worse than, himself. They amuse themselves by recounting the history of their lives, their hairbreadth escapes, their successful villanies. Each profits by the experience of the whole number, and stores it in his memory for future guidance. Every good impulse is checked, and every better feeling stifled in the birth. There is no room in a jail for the growth of virtue; the atmosphere is not congenial to its development. The prisoner, however well disposed, cannot choose but listen

to the debasing talk of those with whom he is compelled to associate. Should he resist the wicked influence for a while, he can hardly do so long. The poison will work. By little and little it insinuates itself into the mind, and vitiates all the springs of good. In the end, he yields to the irresistible force of continued bad example, and becomes as bad as the worst.

But let us believe, for an instant, that one prisoner has resisted the ill effects of wicked association—let us suppose him to have escaped the contamination of a jail, to have received no moral hurt from bad example, to be untainted by the corrupting atmosphere of congregated vice—in short, to return into the world at the end of his imprisonment a better man than he was at its commencement. Let us suppose all this, although the supposition, it must be confessed, is unsupported by experience, and directly in the teeth of probability. He sallies forth from his prison, full of good resolutions, and determined to win the character of an honest man. Perhaps he has a small sum of money, which helps him to reach a part of the country most distant from the scene of his disgrace. He seeks for work, and is fortunate enough to obtain it. For a short time, all goes well with him. He is industrious and sober, and gains the good-will of his employer. He is confirmed in his good intentions, and fancies that his hopes of regaining his position in society are about to be realised. Vain hopes! Rumour is busy with his name. His fellow-labourers begin to look coldly on him. The master does not long remain in ignorance. The discharged convict is taxed with his former degradation, and made to suffer again the consequences of a crime he has well and fully expiated. His brief hour of prosperity is over. He is cast forth again upon the world, denied the means of gaining an honest livelihood, with nothing before him but starvation or a jail. What wonder should he choose the latter! Goaded by despair, or stimulated by hunger, he yields to the first temptation, and commits a crime which places him again within prison walls. It is his second conviction. He is a marked man. He were more than mortal if he escaped the deteriorating effects of repeated association with the hardened and the vicious. His future career is certain. He falls from bad to worse, and ends his life upon the scaffold.

We have imagined, for the sake of argument, a case which, in one of its features, is unfortunately of very rare occurrence. Criminals seldom, perhaps never, leave a jail with the slightest inclination to a course of honesty. Their downward progress, when they have once been exposed to

the contamination of a prison life, may be calculated almost with certainty. No sooner is the term of their imprisonment expired, than they step forth into the world, eager to recommence the old career of systematic villany. Good intentions, and the desire of doing well, are almost always strangers to their breasts. But should they, perchance, be alive to better things, and be moved by wholesome impulses, what an awful responsibility rests upon those who, by individual acts, or by a pernicious system, check and render abortive the efforts of a dawning virtue! In the case we have supposed, there is doubtless much that must be laid to the score of human nature. Men will not easily be persuaded, that he who has once made a grievous lapse from the path of honesty, will not be ever prone to repeat the offence. None but the truly charitable (an infinitesimal portion of every community) will expose themselves to the risk of employing a discharged convict. But whilst this much evil is justly attributed to the selfish cruelty of society, a much larger share of blame attaches to the system which affords too plausible a pretext for such uncharitable conduct. It is not merely because a man has offended against the laws, and been guilty of what, in legal parlance, may be a simple misdemeanour, that he is regarded with suspicion and treated with ignominy; but much more, because he has been confined in a jail, and exposed to all the pernicious influences which are known to be rife within its walls. It is deemed a thing incredible, that a man can issue from a hot-bed of corruption, and not be himself corrupt. To have undergone a term of imprisonment, is very generally thought to be equivalent to taking a degree in infamy. On the system, therefore, rests much of the blame which would otherwise attach to the world's cold charity; to its account must be charged every subject who might have been saved, and who, through despair, is lost to the service of the state.

The evils we have described are patent and notorious; the only question, therefore, that arises is, whether they are inevitable and inherent in the nature of things, or whether they may be avoided by greater care and an improved system. Before entering upon this question, it may be well to notice briefly the various opinions that are entertained concerning the proper end and aim of criminal punishment. We take for granted, that in every community, under whatever political constitution it may exist and be associated, the sole object of criminal *law* is the peace and security of society. With regard to the means by which this object may be best attained, or, in other words, with regard to the whole system of jurisprudence, from a

preventive police down to the discipline of jails and the machinery of the scaffold, a great diversity of sentiment must naturally be expected. The pure theorist and the subtle disciple of Paley, maintain that the proper, nay, the sole object of punishment should be the prevention of crime. The philanthropic enthusiast, and the man of strict religious feeling, reject all other motives save only that of reforming the criminal. The dispassionate inquirer, the practical man, and he who has learned his lessons in the school of experience, take a middle course, though inclining a little to the theory of Paley. They hold that, whilst the amount, and to some extent the quality, of punishment should be settled and defined chiefly with a view to prevent the increase of crime by the deterring effect of fear, yet the details ought, if possible, to be so managed as in the end to bring about the reformation of the prisoner. We have no hesitation in avowing, that this last opinion is our own. There is an argument in its favour, which the most rigid disciple of the pure "prevention" theory must recognise immediately as one of his own most valued weapons. The "peace and security of society" are his watchwords. They are ours also. But whilst, in his opinion, the only way to produce the desired result is by a system of terrorism, such as will deter from the perpetration of crime, we believe that a careful solicitude concerning the moral conduct of the criminal during his imprisonment, and an anxious endeavour to instruct and improve his mind, by enforcing good habits, and taking away bad example, would be found equally powerful in their operation upon the well-being of society. For although it is a lamentable fact, that the number of our criminals is always being kept up to its full complement, by the addition of juvenile offenders, so that it would be vain to indulge a hope, without cutting off the feeding-springs, of materially diminishing our criminal population; yet it is equally true that the most desperate and dangerous offenders are they who have served their apprenticeship in jails, and there accomplished themselves in all the various devices of ingenious wickedness. It is these who give the deepest shade to the calendar of crime, and work incalculable mischief both in and out of prison, by instructing the tyros in all the most subtle varieties of villany. To reform such men may seem an arduous, perhaps an impossible task; but it is far less arduous, and certainly not impossible, to prevent their becoming the hardened ruffians which we have, without exaggeration, described them.

The truth must be told. The system of secondary punishments (as they are called, though why we know not) is radically wrong. There is something

radically wrong in the discipline and regulations of our jails. The details of imprisonment are faulty and imperfect. Surely this is proved, when it is shown that men are invariably rendered worse, instead of better, by confinement in a jail. Even though it be admitted, for the sake of argument, that the state lies under no obligation to attempt the reformation of its criminals, the admission serves no whit to support a system under which criminals are confirmed and hardened in their vicious courses. The state may refuse to succour, but it has no right to injure. This, as it seems to us, is the strong point against our present system. It does not so much punish the body as injure the mind of the criminal; and, in so doing, it eventually endangers rather than secures the peace of society.

Many remedies have been proposed, but all, with an exception that will presently be mentioned, are rather palliative than corrective. Solitary confinement, for instance, is an undoubted cure for the diseases engendered by bad example and evil communications; but it breeds a host of other diseases, peculiar to itself, and in many cases worse than those it cures. Not to speak of the indulgence which so much idleness allows for vicious thoughts and recollections, the chief objection to solitary confinement is, that, if continued for any length of time, it unfits a man wholly for subsequent intercourse with the world. He leaves his prison with a mind prostrated to imbecility, and a body reduced to utter helplessness; yet he retains, perhaps, the cunning of the idiot, and just sufficient use of his limbs to serve him for a bad purpose. On these painful considerations, however, it is unnecessary to dwell at length. Solitary confinement, without occupation and without intervals of society, was an experiment upon the human animal. It has been tried in this country and elsewhere, and has signally failed. At this moment, we believe, it has few or no supporters.

The plan which has most largely and most deservedly attracted public attention, is that of Captain Maconochie, known by the name of the "Mark System." Captain Maconochie was superintendent of the penal establishment at Norfolk Island, where he had constantly about 2000 prisoners under his command. This office he held for eight years, and had, consequently, the most favourable opportunity of observing the practical working of the old system. Finding it to be defective, and injurious in every particular, he tried, with certain unavoidable modifications, a plan of his own, which, as he asserts, succeeded beyond his expectation. Having thus

proved its practicability in Norfolk Island, and satisfied himself of its advantages, he wishes now to introduce it into England; and, with a view of obtaining a favourable hearing and efficient support, he has procured it to be referred to a committee of the "Society for Promoting the Amendment of the Law." The committee have reported in its favour; and their report, which is said to have been drawn up by the learned Recorder of Birmingham, contains so concise and clear a statement of the Captain's plan, that we take leave to extract a portion of it:—

"Captain Maconochie's plan," says Mr M. D. Hill, "had its origin in his experience of the evil tendency of sentences for a time certain, and of fixed gratuitous jail rations of food. These he practically found opposed to the reformation of the criminal. A man under a time-sentence looks exclusively to the means of beguiling that time. He is thereby led to evade labour, and to seek opportunities of personal gratification, obtained, in extreme cases, even in ways most horrible. His powers of deception are sharpened for the purpose; and even, when unable to offend in act, he seeks in fancy a gratification, by gloating over impure images. At the best, his life stagnates, no proper object of pursuit being presented to his thoughts. And the allotment of fixed gratuitous rations, irrespective of conduct or exertion, further aggravates the evil, by removing even the minor stimulus to action, furnished by the necessity of procuring food, and by thus directly fostering those habits of improvidence which, perhaps even more than determined vice, lead to crime.

"In lieu of sentences to imprisonment or transportation, measured thus by months or years, Captain Maconochie recommends sentences to an amount of labour, measured by a given number of marks, to be placed to the debit of the convict, in books to be kept for the purpose. This debit to be from time to time increased by charges made in the same currency, for all supplies of food and clothing, and by any fines that may be imposed for misconduct. The duration of his sentence will thus be made to depend on three circumstances. *First*, The gravity of the original offence, or the estimate made by the judge of the amount of discipline which the criminal ought to undergo before he is restored to liberty. This regulates the amount of the original debit. *Second*, The zeal, industry, and effectiveness of his labour in the works allotted to him, which furnish him with the means of payment, or of adding from time to time to the credit side of his account.

And, *Third*, His conduct in confinement. If well conducted, he will avoid fines; and if economical in food, and such other gratifications as he is permitted to purchase with his marks, he will keep down the amount of his debits.

"By these means, Captain Maconochie contends, that a term of imprisonment may be brought to bear a close resemblance to adversity in ordinary life, which, being deeply felt, is carefully shunned; but which, nevertheless, when encountered in a manful spirit, improves and elevates the character. All the objects of punishment will be thus attained. There will be continued destitution, unless relief is sought by exertion, and hence there will be labour and suffering; but, with exertion, there will be not only the hope, but the certainty of recovery—whence there will be improvement in good habits, and right thinking. And the motives put into operation to produce effort and economy, being also of the same character with those in ordinary life, will advantageously prepare the prisoner for their wholesome action on him after his discharge.

"The only other very distinctive feature in Captain Maconochie's system is, his proposal that, after the prisoner has passed through a term of probation, to be measured not by lapse of time, but by his conduct as indicated by the state of his account, he shall be advanced from separate confinement into a social state. For this purpose, he shall become a member of a small class of six or eight, these classes being capable of being separated from each other, just as individuals are separated from individuals during the earlier stage, the members of each class to have a common interest, the marks earned or lost by each to count to the gain or loss of his party, not of himself exclusively. By this means, Captain Maconochie thinks prisoners will be rescued from the simply gregarious state of existence, which is, in truth, a selfish one, now incident to imprisonment in those jails to which the separate system is not applied, and will be raised into a social existence. Captain Maconochie is convinced, by experience, that much good feeling will be elicited among them in consequence of this change. Indolence and vice, which either prevent the prisoner from earning, or compel him to forfeit his marks, will become unpopular in the community; and industry and good conduct, as enabling him to acquire and preserve them, will, on the contrary, obtain for him its approbation. On much experience, he asserts that no portion of his *modus operandi* is more

effective than this, by which, even in the depraved community of Norfolk Island, he succeeded, in a wonderfully short time, in giving an upward direction to the public opinion of the class of prisoners themselves."

This brief outline of the Mark System undoubtedly presents to view one of the boldest projects of reform that ever proceeded from a private individual. It seeks to root up and utterly annihilate the whole system of secondary punishments, and necessarily involves a radical change in the criminal law. To a plan of so sweeping a character, a thousand objections will of course be made. Some will deny the necessity of so fundamental a change. Many will be startled by the magnitude of the innovation alone, and refuse at the very outset to accept a proposition which, whatever be its intrinsic merits, presents itself to their imagination surrounded with incalculable perils. Others will shake their heads, and doubt the possibility of working out a problem, which, from the beginning of time, has baffled the ingenuity of man. A few there may be, who will regard the new system with a favourable eye, albeit on no other ground than because it offers a prospect of escape from evils which exist, and are increasing, and which can hardly be exchanged for worse. For want of better companions, we shall take our position in the last-mentioned class; confessing that there is much in Captain Maconochie's system which seems at present Utopian, and savours too strongly of an enthusiasm which can see none but its own colours, but deeply impressed, at the same time, with the plausibility of his general theory. It is vain to hope that the unaided efforts of the chaplain will ever reform the inmates of a jail. No man was ever yet preached into good habits, except by a miracle. It is vain to hope that a discipline (if such it can be called) which enforces sometimes idleness, and sometimes useless labour, providing at the same time for all the wants of the body, with an abundance never enjoyed beyond the prison walls, will ever make men industrious, or frugal, or any thing else than dissolute and idle. In short, it is vain to hope, in the present state of things, that the criminal population of these kingdoms will ever be diminished, or even checked in its steady tendency to increase. If, then, all these hopes, which are exactly such as a philanthropist may reasonably indulge, be vain and futile, no man would be open to a charge of folly, should he embrace any, even the wildest proposition that holds out the prospect of improvement.

Captain Maconochie's system may be divided into two distinct and very different parts; namely, the general principles and the details. Concerning the latter, we are unwilling to hazard an opinion, deeming them peculiarly a matter of experiment, and incapable of proof or refutation by any other test than experience. But principles are universal, and, if true, may always be supported by argument, and strengthened by discussion; those of the Mark System, we think, will bear the application of both. No one possessed of the smallest experience of the human mind, will deny that it is utterly impossible to inculcate and fix good habits by a process which is continually distasteful to the patient. With regard to labour, which is compulsory and unproductive, the labourer, so far from becoming habituated to it, loathes it the more the longer he is obliged to continue it. Such labour, moreover, has no good effect upon the mind; it produces nothing but disgust and discontent. A similar result is produced upon the body under similar circumstances. Exercise is only beneficial when taken with a good will, and enjoyed with a zest: a man who should walk but two or three miles, grumbling all the way, would be as tired at the end as though he had walked twenty in a more contented mood. What, then, will some one say, are prisoners not to be punished at all? Is every thing to be made easy to them, and ingenuity taxed for devices to render their sentences agreeable, and to take the sting from imprisonment? The answer is ready. The law is not vindictive, and does not pretend to inflict suffering beyond what is necessary for the security of society. The thief and the homicide cannot be allowed to go at large. They must either be sent out of the country, or shut up within it. By some means or other, they must be deprived of the power of inflicting further injury upon their fellow-creatures. But how long are they to be cut off from the world? For a time fixed and irrevocable, and irrespective of subsequent good conduct, or reformation of character, or any other consideration than only the magnitude of the original offence? Surely neither reason nor humanity can approve such a doctrine; for does it not, in fact, involve the very principle which our law repudiates, namely, the principle that its punishments are vindictive? If a man who steals a horse, and is condemned to three years' imprisonment, be compelled to undergo the whole sentence, without reference to his conduct under confinement, this surely is vengeance, and not, what it assumes to be, a punishment proportioned to the necessity of the case. It is, no doubt, proper that a criminal should be condemned to suffer some loss of liberty, more or less,

according to the nature of his delinquency, and a minimum should always be fixed; but it seems equally proper, and consistent with acknowledged principles, that a power should reside somewhere of diminishing the maximum, and where more advantageously than in the criminal himself? If the motives which govern the world at large, and operate upon men in ordinary life, to make them frugal and industrious, and to keep them honest, can be brought to bear upon the isolated community of a jail, why should they not? The object is humane; not injurious, but, on the contrary, highly beneficial to society; and not opposed to any established rule of law or general policy. We can conceive no possible argument against it, save that which we have already noticed, and, we trust, satisfactorily.

It is worthy of notice, as being calculated to satisfy the scruples of those who may be alarmed at the introduction of what they imagine a novel principle into our criminal jurisprudence, that this, the main feature of the Mark System, is not new. It is sanctioned by long usage in our penal settlements. In the Australian colonies, a man under sentence of transportation for years or for life may, by his own conduct, both shorten the duration and mitigate the severity of his punishment. By industry, by a peaceable demeanour, by the exercise of skill and ingenuity acquired in better times, he may obtain advantages which are not accorded to others. By a steady continuance in such behaviour, he may acquire the privilege of working for himself, and enjoying the produce of his labour. In the end, he may even be rewarded by a free pardon. If all these things may be done in Australia, why not also in England? Surely there is more to be said on behalf of convicts sentenced to imprisonment than for those sentenced to transportation. If our sympathy, or, to speak more correctly, our mercy, is to be inversely to the enormity of the offence, then the English prisoner is most entitled to our regard. It is possible that the transportation system may be wrong, but, at least, let us be consistent.

It is not necessary that Captain Maconochie's plan should be adopted *in extenso*, to the immediate and active subversion of the ancient system. We may feel our way. There is no reason why a single prison should not be set apart, or, if necessary, specially constructed, for the purpose of applying the test of practice to the new theory. A short act might be passed, empowering the judges to inflict labour instead of time-sentences—of course, within a certain limit as to number. Captain Maconochie himself might be entrusted

with the superintendence of the experiment, in order to avoid the possibility of a suspicion that it had not received a fair trial. If, with every reasonable advantage, the scheme should eventually prove impracticable, then, of course, it will sink into oblivion, and be consigned to the limbo of impossible theories. The country will have sustained no loss, save the insignificant expense of the model machinery.

Considering the whole subject—its importance, its difficulty, the novelty of the proposed amendments, and their magnitude—we are disposed to agree with the learned Recorder of Birmingham, that "the plan is highly deserving of notice." Objections, of course, might be made in abundance, over and above those we have thought proper to notice. These, however, may be all reduced to one, namely, that the scheme is impracticable. That it may prove so, we do not deny; nor could any one, with a grain of prudence, venture to deny it, seeing how many promising projects are daily failing, not through their own intrinsic defects, but through miscalculation of opposing forces. The test of the Mark System, we repeat, must be experience. All that we seek to establish in its favour is the soundness of its principles. Of these we do not hesitate to avow a perfect approval; and, in doing so, we do not fear being classed among the disciples of the new school of pseudo-philanthropy, whose academy is Exeter Hall, and whose teachers are such men as Lord Nugent and Mr Fox. It is quite possible to feel compassion for the guilty, and a solicitude for their temporal as well as eternal welfare, without elevating them into the dignity of martyrs, and fixing one's attention upon them, to the neglect of their more honest and less protected neighbours. It is no uncommon thing to hear comparisons drawn between the conditions of the prisoner and the pauper—between the abundant nourishing food of the former, and the scanty meagre rations of the latter! There is no doubt that better fare is provided in a jail than in a workhouse. Good reasons, perhaps, may be given for the distinction, but in appearance it is horribly unjust. No system which proposed to encourage it would ever receive our approbation. The Mark System is adverse to the pampering of criminals. It seeks to enforce temperance and frugality, both by positive rewards, and by punishing gluttony and indulgence. Its object is the improvement, not of the physical, but the moral condition of the prisoner. His mind, not his body, is its especial care—a prudent, humane, we will even say, a pious care! Visionary it may be, though we think not—absurd it can never be, except in the eyes of those to whom the well-being

of their fellow-creatures is matter of indifference, and who, too frivolous to reflect, or too shallow to penetrate the depths of things, seek to disguise their ignorance and folly under cover of ridicule. To such we make no appeal. But to the many really humane and sensible persons who are alive to the importance of the subject, we recommend a deliberate examination of the Mark System.

M.

LAYS AND LEGENDS OF THE THAMES.

Never was there such a summer on this side of the Tropics. How is it possible to exist, with the thermometer up to boiling point! London a vast caldron—the few people left in its habitable parts strongly resembling stewed fish—the aristocratic portion of the world flying in all directions, though there are three horticultural fetes to come—the attachés to all the foreign embassies sending in their resignations, rather than be roasted alive—the ambassadors all on leave, in the direction of the North Pole—the new governor of Canada congratulated, for the first time in national history, on his banishment to a land where he has nine months winter;—and a contract just entered into with the Wenham Lake Company for ten thousand tons of ice, to rescue the metropolis from a general conflagration.

—Went to dine with the new East India Director, in his Putney paradise. Sir Charles gives dinners worthy of the Mogul, and he wants nothing of the pomps and pleasures of the East but a harem. But, in the mean time, he gathers round him a sort of human menagerie; and every race of man, from the Hottentot to the Highlander, is to be found feeding in his Louis Quatorze saloons.

This certainly variegate the scene considerably, and relieves us of the intolerable topics, of Parliament, taxes, the last attempt on Louis Philippe, the last adventure of Queen Christina, or the last good thing of the last great bore of Belgrave Square; with the other desperate expedients to avoid the inevitable yawn. We had an Esquimaux chief, who, however, dwelt too long on the luxury of porpoise steaks; a little plump Mandarin, who indulged us with the tricks of the tea trade; the sheik Ben Hassan Ben Ali, who had narrowly escaped hanging by the hands of the French; and a New Zealand chief, strongly suspected of habits inconsistent with the European *cuisine*, yet who restricted himself on this occasion to every thing at the table.

At length, in a pause of the conversation, somebody asked where somebody else was going, for the dog-days. The question engaged us all. But, on comparing notes, every Englishman of the party had been everywhere already—Cairo, Constantinople, Calcutta, Cape Horn. There

was not a corner of the world, where they had not drunk tea, smoked cigars, and anathematised the country, the climate, and the constitution. Every thing was *usé*—every soul was *blasé*. There was no hope of novelty, except by an Artesian perforation to the centre, or a voyage to the moon.

At last a curious old personage, with a nondescript visage, and who might, from the jargon of his tongue and the mystery of his costume, have been a lineal descendant of the Wandering Jew, asked, had any one at table seen the Thames?

The question struck us all at once. It was a grand discovery; it was a flash of light; it was the birth of a new idea; it was an influx of brilliant inquiry. It was ascertained, that though we had all steamed up and down the Thames times without number, not one of us had seen the river. Some had always steamed it in their sleep; some had plunged at once into the cabin, to avoid the passengers on deck; some had escaped the vision by the clouds of a cigar; some by a French novel and an English dinner. But not one could recollect any thing more of it than it flowed through banks more or less miry; that it was, to the best of their recollection, something larger than the Regent's Canal; and some thought that they had seen occasional masts and smoke flying by them.

My mind was made up on the spot. Novelty is my original passion—the spring of all my virtues and vices—the stimulant of all my desires, disasters, and distinctions. In short, I determined to see the Thames.

Rose at daybreak—the sky blue, the wind fragrant, Putney throwing up its first faint smokes; the villa all asleep. Leaving a billet for Sir Charles, I ordered my cab, and set off for the Thames. "How little," says Jonathan Swift, "does one-half of the world know what the other is doing." I had left Putney the abode of silence, a solitary policeman standing here and there, like the stork which our modern painters regularly put into the corner of their landscapes to express the sublime of solitude—no slipshod housemaid peeping from her window; no sight or sound of life to be seen through the rows of the flower-pots, or the lattices of the suburb gardens.

But, once in London, what a contrast. From the foot of London bridge what a rush of life; what an incursion of cabs; what a rattle of waggons; what a surge of population; what a chaos of clamour; what volcanic volumes of everlasting smoke rolling up against the unhappy face of the Adelaide hotel; what rushing of porters, and trundling of trunks; what cries of every species, utterable by that extraordinary machine the throat of man; what solicitations to trust myself, for instant conveyance to the remotest shore of the terraqueous globe!—"For Calais, sir? Boat off in half-an-hour."—"For Constantinople? in a quarter."—"For Alexandria? in five minutes."—"For the Cape? bell just going to ring." In this confusion of tongues it was a thousand to one that I had not jumped into the boat for the Niger, and before I recovered my senses, been far on my way to Timbuctoo.

In a feeling little short of desperation, or of that perplexity in which one labours to decypher the possible purport of a maiden speech, I flung myself into the first steamer which I could reach, and, to my genuine self-congratulation, found that I was under no compulsion to be carried beyond the mouth of the Thames.

I had now leisure to look round me. The bell had not yet chimed: passengers were dropping in. Carriages were still rolling down to the landing-place, laden with mothers and daughters, lapdogs and bandboxes, innumerable. The surrounding scenery came, as the describers say, "in all its power on my eyes."—St Magnus, built by Sir Christopher Wren, as dingy and massive as if it had been built by Roderic the Goth; St Olave's, rising from its ruins, as fresh as a fairy palace of gingerbread; the Shades, where men drink wine, as Bacchus did, from the bunghole; the Bridge of Bridges, clambered over and crowded with spectators as thick as hiving bees!

But—prose was never made for such things. I must be Pindaric.

LONDON BRIDGE.

"My native land, good-night!"

Adieu, adieu, thou huge, high bridge
 A long and glad adieu!
I see above thy stony ridge
 A most ill-favour'd crew.
The earth displays no dingier sight;
I bid the whole—Good-night, good-night!

There, hang between me and the sky
 She who doth oysters sell,
The youth who parboil'd shrimps doth cry,
 The shoeless beau and belle,
Blue-apron'd butchers, bakers white,
Creation's lords!—Good-night, good-night!

Some climb along the slippery wall,
 Through balustrades some stare,
One wonders what has perch'd them all
 Five hundred feet in air.
The Thames below flows, ready quite
To break their fall.—Good-night, good-night!

What visions fill my parting eyes!
 St Magnus, thy grim tower,
Almost as black as London skies!
 The Shades, which are no bower;
St Olave's, on its new-built site,
In flaming brick.—Good-night, good-night!

The rope's thrown off, the paddles move,
 We leave the bridge behind;
Beat tide below, and cloud above;—
 Asylums for the blind,
Schools, storehouses, fly left and right;
Docks, locks, and blocks—Good-night, good-night!

In distance fifty steeples dance.
 St Catherine's dashes by,

The Customhouse scarce gets a glance,
 The sounds of Bowbell die.
With charger's speed, or arrow's flight,
We steam along.—Good-night, good-night!

The Tower seems whirling in a waltz,
 As on we rush and roar.
Where impious man makes Cheltenham salts,
 We shave the sullen shore;
Putting the wherries all in fright,
Swamping a few.—Good-night, good-night!

We brave the perils of the Pool;
 Pass colliers chain'd in rows;
See coalheavers, as black and cool
 As negroes without clothes,
Each bouncing, like an opera sprite,
Stript to the skin.—Good-night, good-night!

And now I glance along the deck
 Our own live-stock to view—
Some matrons, much in fear of wreck;
 Some lovers, two by two;
Some sharpers, come the clowns to bite;
Some plump John Bulls.—Good-night, good-night!

A shoal of spinsters, book'd for France,
 (All talking of Cheapside;)
An old she-scribbler of romance,
 All authorship and pride;
A diner-out, (timeworn and trite,)
A *gobe-mouche* group.—Good-night, good-night!

A strolling actor and his wife,
 Both going to "make hay;"
An Alderman, at fork and knife,
 The wonder of his day!
Three Earls, without an appetite,

Gazing, in spleen.—Good-night, good-night!

Ye dear, delicious memories!

That to our midriffs cling
As children to their Christmas pies,
(So, all the New-School sing;
In collars loose, and waistcoats white,)
All, all farewell!—Good-night, good-night!

The charming author of that most charming of all brochures, *Le Voyage autour de ma Chambre*, says, that the less a man has to write about, the better he writes. But this charming author was a Frenchman; he was born in the land where three dinners can be made of one potato, and where moonshine is a substantial part of every thing. He performed his voyage, standing on a waxed floor, and making a circuit of his shelves; the titles of his books had been his facts, and the titillations of his snuff the food of his fancy. But John Bull is of another style of thinking. His appetite requires solid realities, and I give him docks, wharfs, steam-engines, and manufactures, for his powerful mastication.—But, what scents are these, rising with such potentiality upon the morning breeze? What sounds, "by distance made more sweet?" What a multitude of black, brown, bustling beings are crushing up that narrow avenue, from these open boats, like a new invasion of the pirate squadrons from the north of old. Oh, Billingsgate!—I scent thee—

——"As when to them who sail
Beyond the Cape of Hope, and now are past
Mozambic, far at sea the north winds blow
Sabæan odours from the spicy shore
Of Araby the Blest. With such delay
Well-pleased, they slack their course, and many a league,
Cheer'd with the grateful smell, old Ocean smiles."

The effect was not equally rapturous in the Thames; but on we flew, passing groups of buildings which would have overtopped all the castles on the Rhine, had they but been on fair ground; depots of wealth, which would have purchased half the provinces beyond the girdle of the Black Forest;

and huge steamers, which would have towed a captive Armada to the Tower.

The TOWER! what memories are called up by the name! How frowning are those black battlements, how strong those rugged walls, how massive those iron-spiked gates! Every stone is historical, and every era of its existence has been marked by the mightiest changes of men, monarchs, and times; then I see the fortress, the palace and the prison of kings!

But, let me people those resounding arches, dim passages, and solemn subterraneans, with the past. Here, two thousand years ago, Julius Cæsar kept his military court, with Quæstors, Prefects, and Tribunes, for his secretaries of state; Centurions for his chamberlains; and Augurs for his bishops. On this bank of the stately river, on which no hovel had encroached, but which covered with its unpolluted stream half the landscape, and rolled in quiet majesty to meet the ocean; often stood the man, who was destined to teach the Republican rabble of Rome that they had a master. I leave antiquarians to settle the spot trodden by his iron sandal. I disdain the minute meddling of the men of *fibulæ* and *frustums* of pitchers. But I can see—"in my mind's eye, Horatio"—the stately Roman casting many an eager glance eastward, and asking himself, with an involuntary grasp of his hilt, and an unconscious curl of his lip, how long he was to suffer the haranguers of the populace, the pilferers of the public, the hirelings of Cinna and Sylla, and of every man who would hire them, the whole miry mass of reformers, leaguers, and cheap-bread men, to clap their wings like a flight of crows over the bleeding majesty of Rome.

Then the chance sound of a trumpet, or the tread of a cohort along the distant rampart, would make him turn back his glance, and think of the twenty thousand first-rate soldiers whom a wave of his finger would move across the Channel, send through Gaul, sacking Lutetia, darting through the defiles of the Alps, and bringing him in triumph through the Janiculum, up to the temple of the Capitoline Jove. Glorious dreams, and gloriously realised! How vexatious is it that we cannot see the past, that we cannot fly back from the bustle of this blacksmith world, from the jargon of public life, and the tameness of private toil; into those majestic ages, when the world was as magnificent as a theatre; when nations were swallowed up in the shifting of a scene; when all were fifth acts, and when every catastrophe broke down an empire!

But, what sounds are these? The steamer had shot along during my reverie, and was now passing a long line of low-built strong vessels, moored in the centre of the river. I looked round, and here was more than a dream of the past; here was the past itself—here was man in his primitive state, as he had issued from the forest, before a profane axe had cropped its brushwood. Here I saw perhaps five hundred of my fellow-beings, no more indebted to the frippery of civilisation than the court of Caractacus.—Bold figures, daring brows, Herculean shapes, naked to the waist, and with skins of the deepest bronze. Cast in metal, and fixed in a gallery, they would have made an incomparable rank and file of gladiatorial statues.

The captain of the steamer explained the phenomenon. They were individuals, who, for want of a clear perception of the line to be drawn between *meum* and *tuum*, had been sent on this half-marine half-terrestrial service, to reinforce their morals. They were now serving their country, by digging sand and deepening the channel of the river. The scene of their patriotism was called the "hulks," and the patriots themselves were technically designated felons.

Before I could give another glance, we had shot along; and, to my surprise, I heard a chorus of their voices in the distance. I again applied to my Cicerone, who told me that all other efforts having failed to rectify their moral faculties; a missionary singing-master had been sent down among them, and was reported to be making great progress in their conversion.

I listened to the sounds, as they followed on the breeze. I am not romantic; but I shall say no more. The novelty of this style of reformation struck me. I regarded it as one of the evidences of national advance.—My thoughts instinctively flowed into poetry.

SONG FOR THE MILLION.
"Mirth, admit me of thy crew."

Song, admit me of thy crew!
Minstrels, without shirt or shoe,
Geniuses with naked throats,
Bare of pence, yet full of *notes*.
Bards, before they've learn'd to write,
Issuing their notes at *sight*;

Notes, to tens of thousands mounting,
Careless of the Bank's discounting.
Leaving all the world behind,
England, in thy march of Mind.

Now, the carter drives his cart,
Whistling, as he goes, Mozart.
Now, a shilling to a guinea,
Dolly cook, *sol-fas* Rossini.
While the high-soul'd housemaid, Betty,
Twirls her mop to Donizetti.
Or, the scullion scrubs her oven
To thy Runic hymns, Beethoven.
All the servants' hall combined,
England, in thy march of Mind.

Now, may maidens of all ages
Look unharm'd on pretty *pages*.
Now, may paupers "*raise the wind*,"
Now, may *score* the great undined.
Now, unblamed, may tender pairs
Give themselves the tenderest *airs*.
Now, may half-pay sons of Mars
Look in freedom through their *bars*,
Though upon a *Bench* reclined,
England, in thy march of Mind.

Soon we'll hear our "London cries"
Dulcified to harmonies;
Mackerel sold in canzonets,
Milkmen "calling," in duets.
Postmen's bells no more shall bore us,
When their clappers ring in chorus.
Ears no more shall start at, Dust O!
When the thing is done with *gusto*.
E'en policemen grow refined,
England, in thy march of Mind.

Song shall settle Church and State,
Song shall supersede debate.
Owlet Joe no more shall screech,
We shall make him sing his speech.
Even the Iron Duke's "sic volo"
Shall be soften'd to a *solo*.
Discords then shall be disgrace,
Statesmen shall play *thorough base*;
Whigs and Tories intertwined,
England, in thy march of Mind.

Sailors, under canvass stiff,
Now no more shall dread a *cliff*.
From Bombay to Coromandel,
The Faqueers shall chorus Handel.
Arab sheik, and Persian maiden,
Simping serenades from Haydn.
Crossing then the hemisphere,
Jonathan shall chant Auber,
All his love of pelf resign'd,
England, to thy march of Mind.

—Still moving on, still passing multitudinous agglomerations of brick, mortar, stone, and iron, rather than houses.—Docks crowded with masts, thicker than they ever grew in a pine forest, and echoing with the sounds of hammers, cranes, forges and enginery, making anchors for all the ships of ocean, rails for all the roads of earth, and chain-cables for a dozen generations to come. In front of one of those enormous forges, which, with its crowd of brawny hammerers glaring in the illumination of the furnace, gave me as complete a representation of the Cyclops and their cave, as any thing that can be seen short of the bowels of Ætna; stood a growing church, growing of iron; the walls were already half-way grown up. I saw them already pullulating into windows, a half-budded pulpit stood in the centre, and a Gothic arch was already beginning to spread like the foliage of a huge tree over the aisle. It was intended for one of the colonies, ten thousand miles off.

As the steamer is not suffered in this part of the river to run down boats at the rate of more than five miles an hour; I had leisure to see the operation. While I gazed, the roof had *leaved*; and my parting glance showed me the whole on the point of flourishing among the handsomest specimens of civic architecture.

In front of another forge stood a lighthouse; it was consigned to the West Indies. Three of its stone predecessors had been engulfed by earthquakes, a fourth had been swept off by a hurricane. This was of iron, and was to defy all the chances of time and the elements, by contract, for the next thousand years. It was an elegant structure, built on the plan of the "Tower of the Winds." Every square inch of its fabric, from the threshold to the vane, was iron! "What will mankind come to," said George Canning, "in fifty years hence? The present age is impudent enough, but I foresee that the next will be all *Irony* and *Raillery*."

But all here is a scene of miracle. In our perverseness we laugh at our "Lady of Loretto," and pretend to doubt her house being carried from Jerusalem on the backs of angels. But what right have I to doubt, where so many millions are ready to take their oaths to the fact? What is it to us how many angels might be required for the operation? or how much their backs may have been galled in the carriage? The result is every thing. But here we have before our sceptical eyes the very same result. We have St Catherine's hospital, fifty times the size, transported half-a-dozen miles, and deposited in the Regent's Park. The Virgin came alone. The hospital came, with all its fellows, their matrons, and their master. The virgin-house left only a solitary excavation in a hillside. The hospital left a mighty dock, filled with a fleet that would have astonished Tyre and Sidon, buildings worthy of Babylon, and a population that would have sacked Persepolis.

But, what is this strangely shaped vessel, which lies anchored stem and stern in the centre of the stream, and bearing a flag covered over with characters which as we pass look like hieroglyphics? The barge which marks the Tunnel. We are now moving above the World's Wonder! A thousand men, women, and children, have marched under that barge's keel since morning; lamps are burning fifty feet under water, human beings are breathing, where nothing but the bones of a mammoth ever lay before, and check-takers are rattling pence, where the sound of coin was never heard since the days of the original Chaos.

What a field for theory! What a subject for a fashionable Lecturer! What a topic for the gossipry of itinerant science, telling us (on its own infallible authority) how the globe has been patched up for us, the degenerated and late-born sons of Adam! How glowingly might their fancy lucubrate on the history of the prior and primitive races which may now be perforating the interior strata of the globe—working by their own gas-light, manufacturing their own metals, and, from their want of the Davy-lamp, (and of an Act of Parliament, to make it burn,) producing those explosions which we call earthquakes, while our volcanoes are merely the tops of their chimneys!

I gave the Tunnel a parting aspiration—

THE TUNNEL.

Genii of the Diving-bell!
Sing Sir Is-mb-rt Br-n-l,
Whether ye parboil in steam,
Whether float in lightning's beam,
Whether in the Champs Elysées
Dance ye, like Carlotta Grisi.
Take your trumps, the fame to swell,
Of Sir Is-mb-rt Br-n-l.

Phantoms of the fiery crown!
Plunged ten thousand fathoms down
In the deep Pacific's wave,
In the Ocean's central cave,
Where the infant earthquakes sleep,
Where the young tornadoes creep.
Chant the praise, where'er ye dwell,
Of Sir Is-mb-rt Br-n-l.

What, if Green's Nassau balloon
(Ere its voyage to the moon)
'Twixt Vauxhall and Stepney plies,
Straining London's million eyes,
Dropping on the breezes bland,
(Good for gazers,) bags of sand;
Green's a blacksmith to a belle,

To Sir Is-mb-rt Br-n-l.

Great magician of the Tunnel!
Earth bows down before thy funnel,
Darting on through swamp and crag,
Faster than a Gaul can brag;
All Newmarket's tip-top speed,
To thy stud is broken-knee'd;
Zephyr spavin'd, lightning slow,
To thy fiery rush below.

Ships no more shall trust to sails,
Boats no more be swamp'd by whales,
Sailors sink no more in barks,
(Built by contract with the sharks,)
Though the tempest o'er us roar;
Flying through thy Tunnel's bore,
What care we for mount or main,
What can stop the Monster-Train?

There let Murchison and Lyell
Of our Tunnel make the trial.
We shall make them cross the Line,
Fifty miles below the brine—
Leaving blockheads to discuss
Paving-stones with Swiss or Russ,
Or in some Cathedral stall,
Still to play their cup and ball.

What, if rushes the Great Western
Rapid as a racer's pastern,
At each paddle's thundering stroke,
Blackening hemispheres with smoke,
Bouncing like a soda-cork;
Raising consols in New York,
E'er the lie has time to cool,
Forged in bustling Liverpool.

Yet, a river to a runnel,
To the steamer is the Tunnel;
Screw and sail alike shall lag,
To the "Rumour" in thy bag.
While *she* puffs to make the land,
Thou shalt have the Stock in hand,
Smashing bill-broker and banker
Days, before she drops her anchor.

Then, if England has a foe,
We shall rout him from below.
Through our Ocean tunnel's arch,
Shall the bold battalions march,
Piled upon our flying waggons,
Spouting fire and smoke like dragons;
Sweeping on, like shooting-stars,
Guardsmen, rifles, and hussars.

We shall *tunnelize* the Poles,
Bringing down the cost of coals;
Making Yankees sell their ice
At a Christian sort of price;
Making China's long-tail'd Khan
Sell his Congo as he can,
In our world of fire and shade,
Carrying on earth's grand "Free Trade."

We shall bore the broad Atlantic,
Making every grampus frantic;
Killing Jonathan with spite,
As the Train shoots up to light.
Mexico her hands shall clap,
Tahiti throw up her cap,
Till the globe one shout shall swell
To Sir Is-mb-rt Br-n-l.

But this scene is memorable for more ancient recollections. It was in this spot, that once, every master of a merchant ship took off his hat in

reverence to the *genius loci*; but never dared to drop his anchor. It was named the Pool, from the multitude of wrecks which had occurred there in the most mysterious manner; until it was ascertained that it was the chief resort of the mermen and mermaids, who originally haunted the depths of the sylvan Thamesis.

There annually, from ages long before the Olympiads, the youths and maidens came, to fling garlands into the stream, and inquire the time proper for matrimony. It was from one of their chants, that John Milton borrowed his pretty hymn to the presiding nymph—

"Listen, where thou art sitting,
Under the glassy, cool, translucent wave,
In twisted braids of lilies knitting
The loose trains of thy amber-dropping hair.
Listen, for dear honour's sake,
Goddess of the Silver Lake,
Listen and save!"

On the coast of Norway there is another Pool, entitled the Maelstrom, where ships used to disappear, no one knew why. But the manner was different; they no sooner touched the edge of the prohibited spot than they were swept with the fury of a hurricane into the centre, where they no sooner arrived than they were pulled down, shattered into a thousand fragments, and never heard of more. This was evidently the work of the mermen, who however, being of Northern breed, had, like the usual generation of that wild and winterly region, tempers of indigenous ferocity. But the tenants of the Thames, inheriting the softer temper of their clime, were gentler in their style of administering justice, which they administered effectually, notwithstanding. Every unlucky vessel which stopped upon the exclusive spot, quietly sank. The operation regularly took place in the night. By morning the only remnant of its existence was discoverable among the huts along the shore, exhibiting foreign silks, Dutch drams, French brandy, and other forbidden articles, which, somehow or other, had escaped from the bosom of the deep.

The legend goes on to say, that from those fatalities the place was cautiously avoided, until, about a hundred and fifty years ago, one fine

evening in May, a large merchantman came in full sail up the river, and dropped her anchor exactly in the spot of peril. All the people of the shore were astounded at this act of presumption, and numberless boats put off to acquaint the skipper with his danger. But, as the legend tells, "he was a bold vain man, with a huge swaggering sword at his side, a purse in his girdle, and a pipe in his mouth. Upon hearing of the aforesaid tale, he scoffed greatly, saying, in most wicked and daring language, that he had came from the East Indian possessions of the Dutch republic, where he had seen jugglers and necromancers of all kinds; but he defied them all, and cared not the lighting of his meerscham for all the mermaids under the salt seas." Upon the hearing of which desperate speech all the bystanders took to their boats, fearing that the good ship would be plucked to the bottom of the river without delay.

But at morning dawn the good ship still was there, to the surprise of all. However, the captain was to have a warning. As he was looking over the stern, and laughing at the story, the steersman saw him suddenly turn pale and fix his eyes upon the water, then running by at the rate of about five knots. The crew hurried forward, and lo and behold! there arose close to the ship a merman, a very respectable-looking person, in Sunday clothes and with his hair powdered, who desired the captain to carry his vessel from the place, because "his anchor had dropt exactly against his hall door, and prevented his family from going to church."

The whole history is well known at Deptford, Rotherhithe, and places adjacent; and it finishes, by saying, that the captain, scoffing at the request, the merman took his leave with an angry expression on his countenance, a storm came on in the night, and nothing of captain, crew, or ship, as ever heard of more.

But the spot is boundless in legendary lore. A prediction which had for centuries puzzled all the readers of Mother Shipton, was delivered by her in the small dwelling whose ruins are still visible on the Wapping shore. The prophecy was as follows:—

Eighteene hundred thirty-five,
Which of us shall be alive?
Many a king shall ende his reign;
Many a knave his ende shall gain;

Many a statesman be in trouble;
Many a scheme the worlde shall bubble;
Many a man shall selle his vote;
Many a man shall turne his coat.
Righte be wronge, and wronge be righte,
By Westminster's candle-lighte.
But, when from the top of Bow
Shall the dragon stoop full low.
When from church of holy Paul
Shall come down both crosse and ball.
When all men shall see them meete
On the land, yet by the Fleet.
When below the Thamys bed
Shall be seen the furnace red;
When its bottom shall drop out,
Making hundreds swim about,
Where a fishe had never swum,
Then shall doleful tidings come.
Flood and famine, woe and taxe,
Melting England's strength like waxe;
Till she fights both France and Spain,
Then shall all be well again!

I shall have an infinite respect for Mother Shipton in future. All was amply verified. The repairs of St Paul's, in the year stated, required that the cross and ball should be taken down, which was done accordingly. Bow Church, whose bells are supposed to thrill the *intima præcordia* of every Londoner's memory in every part of the globe, happening to be in the same condition, the dragon on the spire was also taken down, and cross, ball, and dragon, were sent to a coppersmith's, in Ludgate Hill, beside the Fleet prison, where they were to be seen by all the wondering population, lying together. The third feature of the wisdom of Mother Shipton was fulfilled with equal exactitude. The Thames Tunnel had been pushed to the middle of the river's bed, when, coming to a loose portion of the clay, the roof fell in; the Thames burst through its own bottom, the Tunnel was instantly filled, and the workmen were forced to swim for their lives. The remainder of the oracle, partly present, is undeniable while we have an income tax,

and the *finale* may be equally relied on, to the honour of the English Pythonness.



RECENT ROYAL MARRIAGES.

At this dull season, the long vacation of legislators, when French deputies and English members, weary of bills and debates, motions and amendments, take their autumnal ramble, or range their well-stocked preserves, and when newspapers are at their wits' end for subjects of discussion, a topic like the Spanish marriages, intrinsically so important, in arrival so opportune, has naturally monopolised the attention of the daily press. For some time previously, the English public had paid little attention to Spanish affairs. Men were weary of watching the constant changes, the shameless corruption, the scandalous intrigues, from which that unfortunate country and its unquiet population have so long suffered; they had ceased in great measure to follow the thread of Peninsular politics. The arbitrary and unconstitutional influences employed at the last elections, and the tyranny exercised towards the press, deprived foreigners of the most important data whence to judge the real state of public feeling and opinion south of the Pyrenees. The debates of Cortes elected under circumstances of flagrant intimidation, and whose members, almost to a man, were creatures of a *Camarilla*, were no guide to the sentiments of a nation: journalists, sorely persecuted, writing in terror of bayonets, in peril of ruinous fine and arbitrary imprisonment, dared not speak the voice of truth, and feared to echo the wishes and indignation of the vast but soldier-ridden majority of their countrymen. Thus, without free papers or fair debates to guide them, foreigners could attain but an imperfect perception of the state of Spanish affairs. The view obtained was vague—the outline faint and broken—details were wanting. Hence the Spanish marriages, although so much has been written about them, have in England been but partially understood. Much indignation and censure have been expended upon those who achieved them; many conjectures have been hazarded as to their proximate and remote consequences; but one very curious point has barely been glanced at. Scarcely an attempt has been made to investigate the singular state of parties, and strange concurrence of circumstances, that have enabled a few score persons to overbalance the will of a nation. How is it that a people, once so great and powerful, still so easy to rouse, and jealous

of its independence, has suffered itself to be fooled by an abandoned Italian woman, and a wily and unscrupulous foreign potentate—by a corrupt *Camarilla*, and a party that is but a name? How is it that Spain has thus unresistingly beheld the consummation of an alliance so odious to her children, and against which, from Portugal to the Mediterranean, from Gibraltar's straits to Cantabria's coast, but one opinion is held, but one voice heard—a voice of reprobation and aggrieved nationality?

Yes, within the last few weeks, wondering Europe has witnessed a strange spectacle. A queen and her sister, children in years and understanding, have been wedded—the former completely against her inclinations, the latter in direct opposition to the wishes and interests of her country, and in defiance of stern remonstrance and angry protest from allied and powerful states—to most unsuitable bridegrooms. The queen, Isabella of Spain, has, it is true, a Spaniard for her husband; and him, therefore, her jealous and suspicious subjects tolerate, though they cannot approve. Feeble and undecided of character, unstable in his political opinions—if, indeed, political opinions he have other than are supplied to him, ready formed, by insidious and unworthy advisers—Don Francisco de Assis is the last man to sit on the right hand of a youthful queen, governing an unsettled country and a restless people, to inspire her with energy and assist her with wise counsels. It redounds little to the honour of the name of Bourbon, that if it was essential the Queen should marry a member of that house, her present husband was, with perhaps one exception, as eligible a candidate as could be selected. That marriage decided upon, however, it became doubly important to secure for the Infanta Luisa—the future Queen of Spain should her sister die without issue—a husband in all respects desirable; and, above all, one agreeable to the Spanish nation. Has this been done? What advantages does the husband of the girl of fourteen, of the heir-presumptive to the Spanish crown, bring to Spain, in exchange for the rich dowry of his child-bride—for the chance, not to say the probability, of being a queen's husband—and for an immense accession of influence to his dynasty in the country where that dynasty most covets it? The advantages are all of a negative kind. By that marriage, Spain, delivered over to French intrigues, exposed to the machinations and vampire-like endearments of an ancient and hereditary foe, becomes *de facto* a vassal to her puissant neighbour.

The question of the Queen of Spain's marriage was first mooted within a very few days after her birth. In the spring of 1830, Queen Christina found herself with child for the first time; and her husband, Ferdinand VII., amongst whose many bad and unkingly qualities want of foresight could not be reckoned, published the Pragmatic Sanction that secured the crown to his offspring should it prove a girl. A girl it was; and scarcely had the infant been baptised, when her father began to think of a husband for her. "She shall be married," he said, "to a son of my brother Francisco." By and by Christina bore a second daughter, and then the King said—"They shall be married to the two eldest sons of my brother Francisco."

Ferdinand died; and, as he had often predicted—comparing himself to the cork of a bottle of beer, which restrains the fermented liquor—at his death civil war broke out. Isabella was still an infant; the first thing to be done was to secure her the crown; and for the time, naturally enough, few thought about her marriage. Queen Christina was an exception. She apparently remembered and respected her husband's wishes; and in her conversations and correspondence with her sister, Luisa Carlota, wife of the Infante Don Francisco de Paulo, she frequently referred to them, and expressed a strong desire for their fulfilment. In the month of June of the present year, a Madrid newspaper, the *Clamor Publico*, published a letter of hers, written most strongly in that sense. It bears date the 23d of January 1836, and is the reply to one from Doña Luisa Carlota, in which reference was made to conversations between the two sisters and Ferdinand, respecting the marriage of his daughters to the sons of Don Francisco. "The idea has always flattered my heart," Christina wrote, "and I would fain see its realisation near at hand; for it was the wish and will of the beloved Ferdinand, which I will ever strive to fulfil in all that depends on me. * * * Besides which, I believe that the national representation, far from opposing, will approve these marriages, as advantageous not only to our family, but to the nation itself, your sons being Spanish princes. I will not fail to propose it when the moment arrives." Notwithstanding these fair promises, and her respect for the wishes of Ferdinand the well-beloved, we find Christina, less than two years later, negotiating for her royal daughter a very different alliance. Irritated, on the one hand, against the Liberal party, to whose demands she had been compelled to yield; and alarmed, upon the other, at the progress of the Carlist armies, which were marching upon Madrid, then defended only by the national guards, she treated with Don Carlos for a

marriage between the Queen and his eldest son. The Carlists were driven back to their mountain strongholds, and, the pressing danger over—although the war still continued with great fury—that project of alliance was shelved, and another, a very important one, broached. It was proposed to marry the Queen of Spain to an archduke of Austria, who should command the Spanish army, and to whom Christina expressed herself willing to give a share of the Regency, or even to yield it entirely. This was the motive of the mission of Zea Bermudez to Vienna. That envoy stipulated, as an indispensable condition of the success of his negotiations, that they should be kept a profound secret from the King of the French. The condition was not observed. Christina herself, it is said, unable to keep any thing from her dear uncle, told him all, and Bermudez had to leave Vienna almost before the matter in hand had been entered upon. Thereupon the queen-mother reverted to the marriage with a son of Don Carlos. The Conde de Toreno, for a moment weak enough to enter into her views, endeavoured to prepare the public for their disclosure, by announcing in the Cortes, that wars like the one then devastating Spain could only be terminated by a compromise—meaning a marriage. The Cortes thought differently, and, by other means, the war was brought to a close.

The year 1840 witnessed the expulsion of Christina from Spain, and the appointment of Espartero to the Regency. During his three years' sway, that general refused to make or meddle in any way with the Queen's marriage. He said, that as she was not to marry till her majority, and as he should then no longer be Regent, his government had no occasion to busy itself with the matter. The friends of Spain have reason to wish that the Duke de la Victoria had shown himself less unassuming and reserved with respect to that most important question. Whilst it was thus temporarily lost sight of at Madrid, the queen-mother, in her retirement at Paris, took counsel with the most wily and far-sighted sovereign of Europe, and from that time must doubtless be dated the plans which Christina and Louis Philippe have at last so victoriously carried out. They had each their own interests in view—their own objects to accomplish—and it so chanced that those interests and objects were easily made to coincide. Concerning those of Christina, we shall presently speak at some length; those of the French king are now so notorious, that it is unnecessary to do more than glance at them. His first plan—a bold one, certainly—was to marry the Queen of Spain to the Duke d'Aumale. To this, Christina did not object. Her affection for her daughter—

since then grievously diminished—prompted her to approve the match. The duke was a fine young man, and very rich. To a tender mother—which she claimed to be—the temptation was great. Doubtless, also, she received from Louis Philippe, as price of her concurrence, an assurance that certain private views and arrangements of her own should not to be interfered with—certain guardianship accounts and unworthy peculations not too curiously investigated. Of this, more hereafter. The result of the intrigues and negotiations between the Tuileries and the Hotel de Courcelles, was the diplomatic mission of M. Pageot, who was sent to London and to the principal continental courts, to announce, on the part of the King of the French, that, considering himself the chief of the Bourbon family, he felt called upon to declare that, according to the spirit of the treaty of Utrecht, the Queen of Spain could marry none but a Bourbon prince. The success of this first move, intended as a feeler to see how far he could venture to put forward a son of his own, was not such as to flatter the wishes of the French monarch. The reply of the British government was, that, according to the constitution of Spain, the Cortes must decide who was to be the Queen's husband and that he whom the Cortes should select, would, for England, be the legitimate aspirant. Without being so liberal in tone, the answers given by the cabinets of Vienna and Berlin were not more satisfactory; and the spleen of the French king manifested itself by the mouth of M. Guizot, who, with less than his usual prudence, went so far as to menace Spain with a war, if the Queen married any but a Bourbon. This occurred in March 1843.

In the following June, Espartero, in his turn, was driven from power and from his country. Well known as it was, that French manœuvres and French gold had, by deluding the nation, and corrupting the army, powerfully contributed to the overthrow of the only conscientious and constitutional ruler with whom Spain had for a long period been blessed, it was expected that Christina and her friends would do their utmost to bring about the immediate marriage of the Queen and the Duke d'Aumale. Then occurred the long projected and much talked of visit of Queen Victoria to the castle of Eu, where the question of Isabella's marriage was made the subject of a conference between the sovereigns of France and England, assisted by their ministers for foreign affairs, M. Guizot and Lord Aberdeen. It was shortly afterwards known that the King of the French had given the most satisfactory pledges, which were communicated to the principal foreign courts, that he not only would not strive to effect a marriage between the

Queen of Spain and a son of his, but that he would positively refuse his consent to any such union. Further that if a marriage should be arranged between the Duke of Montpensier and the Infanta Luisa, it should not take place till Isabella was married and had issue. As an equivalent to these concessions, the English minister for foreign affairs had to declare, that without entering into an examination of the Treaty of Utrecht, or recognising any right contrary to the complete independence of the Spanish nation, it was desirable that the Queen should wed a descendant of Philip the Fifth, provided always such marriage was brought about conformably with the rules prescribed by the constitution of Spain.

Compelled to abandon the design of marrying Isabella to a French prince, Louis Philippe, like a wary and prudent general, applied himself to improve the next best position, to which he had fallen back, and where he determined to maintain himself. Aumale could not have the Queen, but Montpensier should have the Infanta; and the aim must now be to increase the value of prize No. 2, by throwing prize No. 1 into the least worthy hands possible. In other words, the Queen must be married to the most incapable and uninfluential blockhead, who, being of Bourbon blood, could possibly be foisted upon her and the Spanish nation. To this end Count Trapani was pitched upon; and the first Narvaez ministry—including Señor Pedal and other birds of the same disreputable feather—which succeeded the one presided over by that indecent charlatan Gonzales Bravo, did all in its power to forward the pretensions of the Neapolitan prince, and accomplish his marriage with the Queen. To this end it was absolutely necessary to dispense with the approbation of the Cortes, required by the constitution. For although those Cortes had been chosen without the concurrence of the Progresista party—whose chiefs were all in exile, in prison, or prevented by the grossest intimidation from voting at the elections—on the question of the Trapani marriage they were found indocile. This profound contempt and marked antipathy with which Spaniards view whatever comes from Naples, and the offence given to the national dignity by the evident fact, that this candidate was imposed upon the country by the French government, convinced the latter, and that of Spain, which was its instrument, that even the Cortes they themselves had picked and chosen, lacked baseness or courage to consent to the Trapani alliance. Then was resolved upon and effected the constitutional REFORM, suppressing the article that required the approbation of the Cortes, and

replacing it by another, which only rendered it compulsory to *announce* to them the husband chosen by the Queen. But the manœuvres of France were too clumsy and palpable. It was known that Christina had promised the hand of the Infanta to the Duke of Montpensier; Louis Philippe's object in backing Trapani was easily seen through; and so furious was the excitement of the public mind throughout Spain, so alarming the indications of popular exasperation, that the unlucky Neapolitan candidate was finally thrown overboard.

Here we must retrace our steps, and consider Queen Christina's motives in sacrificing what remained to her of prestige and popularity in her adopted country, to assist, through thick and thin, by deceit, subterfuge, and treachery, the ambitious and encroaching views of her French uncle. There was a time—it is now long past—when no name was more loved and respected by the whole Spanish nation, excluding of course the Carlist party, than that of Maria Christina de Borbon. She so frankly identified herself with the country in which marriage fixed her lot, that in becoming a Spanish queen she had apparently become a Spanish woman; and, in spite of her Neapolitan birth, she speedily conquered the good-will of her subjects. Thousands of political exiles, restored to home and family by amnesties of her promotion, invoked blessings on her head: the great majority of the nation, anxious to see Spain governed mildly and constitutionally, not despotically and tyrannically, hailed in her the good genius who was to accord them their desires. Her real character was not yet seen through; with true Bourbon dissimulation she knew how to veil her vices. She had the credit also of being a tender and unselfish parent, ever ready to sacrifice herself to the interests of her children. Her egotism was as yet unsuspected, her avarice dormant, her sensuality unrevealed; and none then dreamed that a day would come, when, impelled by the meanest and most selfish motives, she would urge her weeping daughter into the arms of a detested and incompetent bridegroom.

By her *liaison* with Muñoz, the first blow was given to Christina's character and popularity. This scandalous amour with the son of a cigar-seller at Tarançon, a coarse and ignorant man, whose sole recommendations were physical, and who, when first noticed by the queen, occupied the humble post of a private garde-de-corps, commenced, in the belief of many, previously to the death of Ferdinand. Be that true or not, it is certain that

towards the close of the king's life, when he was helpless and worn out by disease, the result of his reckless debaucheries, she sought the society of the stalwart lifeguardsman, and distinguished him by marks of favour. It was said to be through her interest that he was promoted to the rank of cadet in the body-guard, which gave him that of captain in the army. Ferdinand died, and her intrigue was speedily manifest, to the disgust and grief of her subjects. In time of peace her degrading devotion to a low-born paramour would doubtless have called forth strong marks of popular indignation; but the anxieties and horrors of a sanguinary civil war engrossed the public attention, and secured her a partial impunity. As it was, her misconduct was sufficiently detrimental to her daughter's cause. The Carlists taunted their opponents with serving under the banner of a wanton; and the Liberals, on their part, could not but feel that their infant queen was in no good school or safe keeping.

The private fortune of Ferdinand the Seventh was well known to be prodigious. Its sources were not difficult to trace. An absolute monarch, without a civil list, when he wished for money he had but to draw upon the public revenue for any funds the treasury might contain. Of this power he made no sparing use. Then there was the immense income derived from the *Patrimonia Real*, or Royal Patrimony, vast possessions which descend from one King of Spain to another, for their use and benefit so long as they occupy the throne. The whole of the town of Aranjuez, the estates attached to the Pardo, La Granja, the Escorial, and other palaces, form only a portion of this magnificent property, yielding an enormous annual sum. Add to these sources of wealth, property obtained by inheritance, his gains in a nefariously conducted lottery, and other underhand and illicit profits, and it is easy to comprehend that Ferdinand died the richest capitalist in Europe. The amount of his savings could but be guessed at. By some they were estimated at the incredibly large sum of eight millions sterling. But no one could tell exactly, owing to the manner in which the money was invested. It was dispersed in the hands of various European bankers; also in those of certain American ones, by whose failure great loss was sustained. No trifling sum was represented by diamonds and jewels. It was hardly to be supposed that the prudent owner of all this wealth would die intestate, and there is scarcely a doubt that he left a will. To the universal astonishment, however, upon his decease, none was forthcoming, and his whole property was declared at sixty millions of francs, which, according to the Spanish

law, was divided between his daughters. No one was at a loss to conjecture what became of the large residue there unquestionably was. It was well understood, and her subsequent conduct confirmed the belief, that the lion's share of the royal spoils was appropriated by the young widow, whose grief for the loss of the beloved Ferdinand was not so violent and engrossing as to make her lose sight of the main chance. After so glorious a haul, it might have been expected that she would hold her hand, and rest contented with the pleasing consciousness, that should she ever be induced or compelled to leave Spain, she had wherewithal to live in queenly splendour and luxury. But her thirst of wealth is not of those that can be assuaged even by rivers of gold. Though the bed of the Manzanares were of the yellow metal, and she had the monopoly of its sands, the mine would be all insufficient to satiate her avarice. After appropriating her children's inheritance, she applied herself to increase her store by a systematic pillage of the Queen of Spain's revenues. As Isabella's guardian, the income derived from the Patrimonio Real passed through her hands, to which the gold adhered like steel-dust to a loadstone. Whilst the nation strained each nerve, and submitted to the severest sacrifices, to meet the expenses of a costly war—whilst the army was barefoot and hungered, but still stanch in defence of the throne of Isabella—Christina, with her mouth full of patriotism and love of Spain, remitted to foreign capitalists the rich fruits of her peculations, provision for the rainy day which came sooner than she anticipated, future fortunes for Muñoz's children. The natural effect of her disreputable intrigue or second marriage, whichever it at that time was to be called, was to weaken her affection for her royal daughters, especially when she found a second and numerous family springing up around her. To her anxiety for this second family, and to the influence of Muñoz, may be traced her adherence to the King of the French, and the cruel and unmotherly part she has recently acted towards the Queen of Spain.

Previously to Christina's expulsion from the Regency in the year 1840, little was seen or known of her children by Muñoz. During her three years' residence at Paris, a similar silence and mystery was observed respecting them, and they lived retired in a country-house near Vevay, upon the Lake of Geneva, whither those born in the French capital were also dispatched. This prudent reserve is now at an end, and the grandchildren of the Tarançon tobaccoist sit around, almost on a level with, the throne of the Spanish Queen. Titles are showered upon them, cringing courtiers wait

upon their nod, and the once proud and powerful grandees of Spain, descendants of the haughty warriors who drove the Saracens from Iberian soil, and stood covered in the presence of the Fifth Charles, adulate the illegitimate progeny of a Muñoz and a Christina. Subtile have been the calculations, countless the intrigues, shameful the misdeeds that have led to this result, so much desired by parents of the ennobled bastards, so undesirable for the honour and dignity of Spain. It is obvious that, with the immense wealth, whose acquisition has been already explained, Christina would have had no difficulty in portioning off her half-score children, and enabling them to live rich and independent in a foreign county. But this arrangement did not suit her views; still less did it accord with those of the Duke of Rianzares. He founded his objections upon a patriotic pretext. He wished his children, he said, to be Spanish citizens, not aliens—to hold property in their own country—to live respected in Spain, and not as exiles in a foreign land. It may be supposed there was no obstacle to their so doing, and that in Spain, as elsewhere, they could reckon at least upon that amount of ease and consideration which money can give. But here came the sticking-point, the grand difficulty, only to be got over by grand means and great ingenuity. Christina had been the guardian of the Queen and Infanta during their long minority: guardians, upon the expiration of their trust, are expected to render accounts; and this the mother of Isabel was wholly unprepared to do, in such a manner as would enable her to retain the plunder accumulated during the period of her guardianship. She had certainly the option of declining to render any—of taking herself and her wealth, her husband and her children, out of Spain, and of living luxuriously elsewhere. But it has already been seen, that neither she nor Muñoz liked the prospect of such banishment, however magnificent and numerous the appliances brought by wealth to render it endurable. What, then, was to be done? It was quite positive that the husbands of the Queen and Infanta would demand accounts of their wives' fortune and of its management during their minority. How were their demands to be met—how such difficulties got over? It was hard to say. The position resembled what the Yankees call a "fix." The cruel choice lay between a compulsory disgorgement of an amount of ill-gotten gold, such as no moral emetic could ever have induced Christina to render up, and the abandonment of Muñoz's darling project of making himself and his children lords of the soil in their native land. The only chance of an exit from this circle of

difficulties, was to be obtained by uniting the Queen and her sister to men so weak and imbecile, or so under the dominion and influence of Christina, that they would let bygones be bygones, take what they could get and be grateful, without troubling themselves about accounts, or claiming arrears. To find two such men, who should also possess the various qualifications essential to the husbands of a Queen and Infanta of Spain, certainly appeared no easy matter—to say nothing of the odious selfishness and sin of thus sacrificing two defenceless and inexperienced children. But Christina's scruples were few; and, as to difficulties, her resolution rose as they increased. Had she not also a wise and willing counsellor in the most cunning man in Europe? Was not her dear uncle and gossip at hand to quiet her qualms of conscience, if by such she was tormented, and to demonstrate the feasibility—nay, more, the propriety of her schemes? To him she resorted in her hour of need, and with him she soon came to an understanding. He met her half-way, with a bland smile and words of promise. "Marry one of your daughters," was his sage and disinterested advice, "to a son of mine, and be sure that my boys are too well bred to pry into your little economics. We should prefer the Queen; but, if it cannot be managed, we will take the Infanta. Isabella shall be given to some good quiet fellow, not over clever, who will respect you far too much to dream of asking for accounts. Of time we have plenty; be stanch to me, and all shall go well." What wonder if from the day this happy understanding, this real *entente cordiale*, was come to, Christina was the docile agent, the obedient tool, of her venerable confederate! No general in the jaws of a defile, with foes in front and rear, was ever more thankful to the guide who led him by stealthy paths from his pressing peril, than was the daughter of Naples to her wary adviser and potent ally. And how charming was the union of interest—how touching the unanimity of feeling—how beautifully did the one's ambition and the other's avarice dovetail and coincide! The King's gain was the Queen's profit: it was the slaughter with one pebble of two much-coveted birds, fat and savoury mouthfuls for the royal and politic fowlers.

In the secret conclave at the Tuileries, "all now went merry as a marriage bell." In the ears of niece and uncle resounded, by anticipation, the joyous chimes that should usher in the Montpensier marriage, proclaim their triumph, drown the cries of rage of the Spanish nation, and the indignant murmurs of Europe;—not that the goal was so near, the prize so certain and

easy of attainment. Much yet remained to do; a false step might be ruinous—over-precipitation ensure defeat. The King of the French was not the man to make the one, or be guilty of the other. With "slow and sure" for his motto, he patiently waited his opportunity. In due season, and greatly aided by French machinations, the downfall of the impracticable and incorruptible Espartero was effected. But the government of Spain was still in the hands of the Progresistas. For it will be remembered that the immediate cause of Espartero's fall was the opposition of a section of his own party, which, united now in their adversity, unfortunately fortunately knew not, in the days of their power, how to abstain from internal dissensions. The Lopez ministry held the reins of government. It was essential to oust it. As a first step, a *Camarilla* was organised, composed of the brutal and violent Narvaez, the daring and disreputable Marchioness of Santa Cruz, and a few others of the same stamp, all ultra-Moderados in politics, and fervent partisans of Christina. So successfully did they use their backstairs influence, and wield their weapons of corruption and intrigue, that, within four months, and immediately after the accelerated declaration of the Queen's majority, Lopez and his colleagues resigned. Olozaga succeeded them; but he, too, was a Progresista and an upholder of Spanish nationality; there was no hope of his giving in to the plans of Christina the Afrancesada. Moreover, he was hated by the *Camarilla*, and especially detested by the Queen-mother, whose expulsion from Paris he had demanded when ambassador there from Espartero's government. She determined on a signal vengeance. The Palace Farce, that strange episode in the history of modern Spanish courts, must be fresh in every one's memory. An accusation, as malignant as absurd, was trumped up against Olozaga, of having used force, unmanly and disloyal violence, to compel Isabella to sign a decree for the dissolution of the Cortes. No one really believed the ridiculous tale, or that Salustiano de Olozaga, the high-bred gentleman, the uniformly respectful subject, could have afforded by his conduct the shadow of a ground for the base charge. Subsequently, in the Cortes, he nobly faced his foes, and, with nervous and irresistible eloquence, hurled back the calumny in their teeth. But it had already served their turn. To beat a dog any stick will do; and the only care of the *Camarilla* was to select the one that would inflict the most poignant wound. Olozaga was hunted from the ministry, and sought, in flight, safety from the assassin's dagger. Those best informed entertained no doubt that his expulsion was intimately connected with the marriage

question. With him the last of the Progresistas were got rid of, and all obstacles being removed, the Queen-mother returned to Madrid.

Were the last crowning proof insufficient to carry conviction, it would be easy to adduce innumerable minor ones of Christina's heartless selfishness—of her disregard to the happiness, and even to the commonest comforts, of her royal daughter. We read in history of a child of France, the widow of an English king, who, when a refugee in the capital of her ancestors, lacked fuel in a French palace, and was fain to seek in bed the warmth of which the parsimony of a griping Italian minister denied her the fitting means. It is less generally known, that only six years ago, the inheritress of the throne of Ferdinand and Isabella was despoiled of the commonest necessities of life by her own mother, a countrywoman of the miserly cardinal at whose hands Henrietta of England experienced such shameful neglect. When Christina quitted Spain in 1840, she not only carried off an enormous amount of national property, including the crown jewels, but also her daughter's own ornaments; and, at the same time, even the wardrobe of the poor child was mysteriously, but not unaccountably, abstracted: Isabella was left literally short of linen. As to jewels, it was necessary immediately to buy her a set of diamonds, in order that she might make a proper appearance at her own court. Such was the considerate and self-denying conduct of the affectionate mother, who, in the winter of 1843, resumed her place in the palace and counsels of the Queen of Spain. In her natural protector, the youthful sovereign found her worst enemy.

Persons only superficially acquainted with Spanish politics commonly fall into two errors. They are apt to believe, first, that the two great parties which, with the exception of the minor factions of Carlists and Republicans, divide Spain between them, are nearly equally balanced and national; secondly, that Moderados and Progresistas in Spain are equivalent to Conservatives and Radicals in other countries. Blunders both. Eccentric in its politics, as in most respects, Spain cannot be measured with the line and compass employed to estimate its neighbours. It is impossible to conceal the fact, that to-day the numerous and the national party in Spain is that of the Progresistas. The tyranny of Narvaez, the misconduct of Christina, and, above all, the French marriage, have greatly strengthened their ranks and increased their popularity. Their principles are not subversive, nor their demands exorbitant: they aim at no monopoly of power. Three things they

earnestly desire and vehemently claim: the freedom of election guaranteed by the existing constitution of Spain, but which has been so infamously trampled upon by recent Spanish rulers, liberty of the press, and the preservation of Spain from foreign influence and domination.

Let us examine the composition and conduct of the party called Moderado. This party, now dominant, is unquestionably the most split up and divided of any that flourish upon Spanish soil. It is not deficient in men of capacity, but upon none of the grave questions that agitate the country can these agree. When the Cortes sit, this is manifest in their debates. Although purged of Progresistas, the legislative chambers exhibit perpetual disagreement and wrangling. At other times, the dissensions of the Moderados are made evident by their organs of the press. In some of these appear articles which would not sound discordant in the mouths of Progresistas; in others are found doctrines and arguments worthy of the apostles of absolutism. Between Narvaez and Pacheco the interval is wider than between Pacheco and the Progresistas. The first, in order to govern, sought support from the Absolutists; the second could not rule without calling the Liberals to his aid. Subdivided into fractions, this party, whose nomenclature is now complicated, relies for existence less upon itself than upon extraneous circumstances, foreign support, and the equilibrium of the elements opposed to it. The anarchy to which it is a prey, has been especially manifest upon the marriage question. Whilst one of its organs shamelessly supported Trapani, others cried out for a Coburg; and, again, others insisted that a Spanish prince was the only proper candidate—thus coinciding with the Progresistas. In fact, the Moderados, afraid, perhaps, of compromising their precarious existence had no candidate of their own; and in their fluctuations between foreign influence and interior exigencies, between court and people, between their wish to remain in power and the difficulty of retaining it, they left, in great measure, to chance, the election in which they dared not openly meddle. This will sound strange to the many who, as we have already observed, imagine the Moderado party to be the Conservative one of England or France; but not to those aware of the fact, that it is a collection of unities, brought together rather by accidental circumstances than by homogeneity of principles, united for the exclusion of others, and for their own interests, not by conformity of doctrines and a sincere wish for their country's good.

Such was the party, unstable and unpatriotic, during whose ascendancy Christina and her royal confederate resolved to carry out their dishonest projects. The Queen-mother well knew that the mass of the nation would be opposed to their realisation; but she reckoned on means sufficiently powerful to render indignation impotent, and frustrate revolt. She trusted to the adherence of an army, purposely caressed, pampered, and corrupted; she felt strong in the support of a monarch, whose interest in the affair was at least equal to her own; she observed with satisfaction the indifferent attitude assumed by the British government with respect to Spanish affairs. A Progresista demonstration in Galicia, although shared in by seven battalions of the army—an ugly symptom—was promptly suppressed, owing to want of organisation, and to the treachery or incapacity of its leader. The scaffold and the galleys, prison and exile, disposed of a large proportion of the discontented and dangerous. Arbitrary dismissals, of which, for the most part, little was heard out of Spain, purified the army from the more honest and independent of its officers, suspected of disaffection to the existing government, or deemed capable of exerting themselves to oppose an injurious or discreditable alliance. Time wore on; the decisive moment approached. Each day it became more evident that the Queen's marriage could not with propriety be much longer deferred. Setting aside other considerations, she had already fully attained the precocious womanhood of her country; and it was neither safe nor fitting that she should continue to inhale the corrupt atmosphere of the Madrid court without the protection of a husband. At last the hour came; the plot was ripe, and nothing remained but to secure the concurrence of the victim. One short night, a night of tears and repugnance on the one hand, of flatteries, of menaces and intimidation, on the other decided the fate of Isabella. With her sister less trouble was requisite. It needed no great persuasive art to induce a child of fourteen to accept a husband, as willingly as she would have done a doll. It might have been thought necessary to consult the will of the Spanish nation, fairly represented in freely elected Cortes. Such, at least, was the course pointed out by the constitution of the country. It would also have been but decorous to seek the approval and concurrence of foreign and friendly states, to establish beyond dispute, that the proposed marriages were in contravention of no existing treaties; for, with respect to one of them, this doubt might fairly be raised. But all such considerations were waived; decency and courtesy alike forgotten. The double marriage was effected in the manner of

a surprise; and, if creditable to the skill, it most assuredly was dishonourable to the character of its contriver. Availing himself of the moment when the legislative chambers of England, France, and Spain, had suspended their sittings; although, as regards those of the latter country, this mattered little, composed, as they are, of venal hirelings—the French King achieved his grand stroke of policy, the project on which, there can be little doubt, his eyes had for years been fixed. His load of promises and pledges, whether contracted at Eu or elsewhere, encumbered him little. They were a fragile commodity, a brittle merchandise, more for show than use, easily hurled down and broken. Striding over their shivered fragments, the Napoleon of Peace bore his last unmarried son to the goal long marked out by the paternal ambition. The consequences of the successful race troubled him little. What cared he for offending a powerful ally and personal friend? The arch-schemer made light of the fury of Spain, of the discontent of England, of the opinion of Europe. He paused not to reflect how far his Machiavelian policy would degrade him in the eyes of the many with whom he had previously passed for wise and good, as well as shrewd and far-sighted. Paramount to these considerations was the gratification of his dynastic ambition. For that he broke his plighted word, and sacrificed the good understanding between the governments of two great countries. The monarch of the barricades, the *Roi Populaire*, the chosen sovereign of the men of July, at last plainly showed, what some had already suspected, that the aggrandisement of his family, not the welfare of France, was the object he chiefly coveted. Conviction may later come to him, perhaps it has already come, that *le jeu ne valoit pas la chandelle*, the game was not worth the wax-lights consumed in playing it, and that his present bloodless victory must sooner or later have sanguinary results. That this may not be the case, we ardently desire; that it will be, we cannot doubt. The peace of Europe may not be disturbed—pity that it should in such a quarrel; but for poor Spain we foresee in the Montpensier alliance a gloomy perspective of foreign domination and still recurring revolution.

A word or two respecting the King-consort of Spain, Don Francisco de Assis. We have already intimated that, as a Spanish Bourbon, he may pass muster. 'Tis saying very little. A more pitiful race than these same Bourbons of Spain, surely the sun never shone upon. In vain does one seek amongst them a name worthy of respect. What a list to cull from! The feeble and imbecile Charles the Fourth; Ferdinand, the cruel and treacherous, the

tyrannical and profligate; Carlos, the bigot and the hypocrite; Francisco, the incapable. Nor is the rising generation an improvement upon the declining one. How should it be, with only the Neapolitan cross to improve the breed? Certainly Don Francisco de Assis is no favourable specimen, either physically or morally, of the young Bourbon blood. For the sake of the country whose queen is his wife, we would gladly think well of him, gladly recognise in him qualities worthy the descendant of a line of kings. It is impossible to do so. The evidence is too strong the other way. If it be true, and we have reason to believe it is, that he came forward with reluctance as a candidate for Isabella's hand, chiefly through unwillingness to stand in the light of his brother Don Enrique, partly perhaps through consciousness of his own unfitness for the elevated station of king-consort, this at least shows some good feeling and good sense. Unfortunately, it is the only indication he has given of the latter quality. His objections to a marriage with his royal cousin were overruled in a manner that says little for his strength of character. When it was found that his dislike to interfere with his brother's pretensions was the chief stumbling-block, those interested in getting over it set the priests at him. To their influence his weak and bigoted mind was peculiarly accessible. Their task was to persuade him that Don Enrique was no better than an atheist, and that his marriage with the Queen would be ruinous to the cause of religion in Spain. This was a mere fabrication. Enrique had never shown any particularly pious dispositions, but there was no ground for accusing him of irreligion, no reason to believe that, as the Queen's husband, he would be found negligent of the church's forms, or setting a bad example to the Spanish nation. The case, however, was made out to the satisfaction of the feeble Francisco, whose credulity and irresolution are only to be equalled in absurdity by the piping treble of the voice with which, as a colonel of cavalry, he endeavoured to convey orders to his squadrons. Sacrificing, as he thought, fraternal affection to the good of his country, he accepted the hand reluctantly placed in his, became a king by title, but remained, what he ever must be, in reality a zero.

It was during the intrigues put in practice to force the Trapani alliance upon Spain, that the Spanish people turned their eyes to Don Francisco de Paulo's second son, who lived away from the court, following with much zeal his profession of a sailor. Not only the Progresistas, but that section of the Moderados whose principles were most assimilated to theirs, looked upon Don Enrique as the candidate to be preferred before all others. For this

there were many reasons. As a Spaniard he was naturally more pleasing to them than a foreigner; in energy and decision of character he was far superior to his brother. Little or nothing was known of his political tendencies; but he had been brought up in a ship and not in a palace, had lived apart from *Camarillas* and their evil influences, and might be expected to govern the country constitutionally, by majorities in the Cortes, and not by the aid and according to the wishes of a pet party. The general belief was, that his marriage with Isabella would give increased popularity to the throne, destroy illegitimate influences, and rid the Queen of those interested and pernicious counsellors who so largely abused her inexperience. These very reasons, which induced the great mass of the nation to view Don Enrique with favour, drew upon him the hatred of Christina and her friends. He was banished from Spain, and became the object of vexatious persecutions. This increased his popularity; and at one time, if his name had been taken as a rallying cry, a flame might have been lighted up in the Peninsula which years would not have extinguished. The opportunity was inviting; but, to their honour be it said, those who would have benefited by embracing it, resisted the temptation. It is no secret that the means and appliances of a successful insurrection were not wanting; that money wherewith to buy the army was liberally forthcoming; that assistance of all kinds was offered them; and that their influence in Spain was great; for in the eyes of the nation they had expiated their errors, errors of judgment only, by a long and painful exile. But, nevertheless, they would not avail themselves of the favourable moment. So long as a hope remained of obtaining their just desires by peaceable means, by the force of reason and the *puissante propagande de la parole*, they refused again to ensanguine their native soil, and to re-enter Spain on the smoking ruins of its towns, over the lifeless bodies of their mistaken countrymen.

By public prints of weight and information, it has been estimated, that during Don Enrique's brief stay at Paris, he indignantly rejected certain friendly overtures made to him by the King of the French. The nature of these overtures can, of course, only be conjectured. Perhaps, indeed, they were but a stratagem, employed by the wily monarch to detain his young cousin at Paris, that the apparent good understanding between them might damp the courage of the national party in Spain, and win the wavering to look with favour upon the French marriage. There can be little question that in the eyes of Louis Philippe, as well as of Christina, Don Francisco is a far

more eligible husband for the Queen than his brother would have been, even had the latter given his adhesion to the project of the Montpensier alliance. Rumour—often, it is true, a lying jade—maintained that at Paris he firmly refused to do so. She now whispers that at Brussels he has been found more pliant, and that, within a brief delay, the happy family at Madrid will be gratified by the return of that truant and mutinous mariner, Don Enrique de Borbon, who, after he has been duly scolded and kissed, will doubtless be made Lord High Admiral, or rewarded in some equally appropriate way for his tardy docility. We vouch not for the truth of this report; but shall be noway surprised if events speedily prove it well founded. Men there are with whom the love of country is so intense, that they would rather live despised in their own land than respected in a foreign one. And when, to such flimsy Will-o'-the-wisp considerations as the esteem and love of a nation, are opposed rank, money, and decorations, a palace to live in, sumptuous fare, and a well-filled purse, and perhaps, ere long, a wealthy bride, who would hesitate? If any would, seek them not amongst the Bourbons. Loath indeed should we be to pledge ourselves for the consistency and patriotism of a man whose uncle and grandfather betrayed their country to a foreign usurper. The fruit of a corrupt and rotten stem must ever be looked upon with suspicion. It is the more prized when perchance it proves sound and wholesome.

Of the Duke of Montpensier, previously to his marriage, little was heard, and still, little is generally known of him, except that his exterior is agreeable, and that he had been rapidly pushed through the various military grades to that of general of artillery. That any natural talents he may be endowed with, have been improved to the utmost by careful education, is sufficiently guaranteed by the fact of his being a son of Louis Philippe. We are able to supply a few further details. The Infanta's husband is a youth of good capacity, possessing a liberal share of that mixture of sense, judgment, and wit, defined in his native tongue by the one expressive word *esprit*. His manners are pleasant and affable; he is a man with whom his inferiors in rank can converse, argue, even dispute—not a stilted Spanish Bourbon, puffed up with imaginary merit, inflated with etiquette, and looking down, from the height of his splendid insignificance and inane pride, upon better men than himself. He is one, in short, who rapidly makes friends and partisans. Doubtless, during his late brief visit to Spain, he secured some; hereafter he will have opportunities of increasing their number; and the

probabilities are, that in course of time he will acquire a dangerous influence in the Peninsula. The lukewarm and the vacillating, even of the Progresista party, will be not unlikely, if he shows or affects liberalism in his political opinions, to take him into favour, and give him the weight of their adherence; forgetting that by so doing they cherish an anti-national influence, and twine more securely the toils of France round the recumbent Spanish lion. On the other hand, there will always be a powerful Spanish party, comprising a vast majority of the nation, and by far the largest share of its energy and talent, distinguished by its inveterate dislike of French interlopers, repulsing the duke and his advances by every means in their power, and branding his favourers with the odious name of AFRANCESADOS. To go into this subject, and enlarge upon the probable and possible results of the marriage, would lead us too far. Our object in the present article has rather been to supply FACTS than indulge in speculations. For the present, therefore, we shall merely remind our readers, that jealousy of foreign interference is a distinguishing political characteristic of Spaniards; and that, independently of this, the flame of hatred to France and Frenchmen still burns brightly in many a Spanish bosom. Spain has not yet forgiven, far less forgotten, the countless injuries inflicted on her by her northern neighbours: she still bears in mind the insolent aggressions of Napoleon—the barbarous cruelties of his French and Polish legions—the officious interference in '23. These and other wrongs still rankle in her memory. And if the effacing finger of Time had begun to obliterate their traces, the last bitter insult of the forced marriage has renewed these in all their pristine freshness.

We remember to have encountered, in a neglected foreign gallery, an ancient picture of a criminal in the hands of torturers. The subject was a painful one, and yet the painting provoked a smile. Some wandering brother of the brush, some mischievous and idly-industrious TINTO, had beguiled his leisure by transmogrifying the costumes both of victim and executioners, converting the ancient Spanish garb into the stiff and unpicturesque apparel of the present day. The vault in which the cruel scene was enacted, remains in all its gloomy severity of massive pillars, rusty shackles, and cobwebbed walls; the grim unshapely instruments of torture were there; the uncouth visages of the executioners, the agonised countenance of the sufferer, were unaltered. But, contrasting with the antique aspect and time-darkened tints of these details, were the vivid colouring and modern fashions of Parisian

paletots, trim pantaloons, and ball-room waistcoats. We have been irresistibly reminded of this defaced picture by the recent events in Spain. They appear to us like a page from the history of the middle ages transported into our own times. The daring and unprincipled intrigue whose *dénoûment* has just been witnessed, is surely out of place in the nineteenth century, and belongs more properly to the days of the Medicis and the Guise. A review of its circumstances affords the elements of some romantic history of three hundred years ago. At night, in a palace, we see a dissolute Italian dowager and a crafty French ambassador coercing a sovereign of sixteen into a detested alliance. The day breaks on the child's tearful consent; the ambassador, the paleness of his vigil chased from his cheek by the flush of triumph, emerges from the royal dwelling. Quick! to horse!—and a courier starts to tell the diplomat's master that the glorious victory is won. A few days—a very few—of astonishment to Europe and consternation to Spain, and a French prince, with gay and gallant retinue, stands on the Bidassoa's bank and gazes wistfully south-wards. Why does he tarry; whence this delay? He waits an escort. Strange rumours are abroad of ambuscade and assassination; of vows made by fierce guerillas that the Infanta's destined husband shall never see Madrid. At last the escort comes. Enclosed in serried lines of bayonets and lances, dragoons in van, artillery in rear, the happy bridegroom prosecutes his journey. What is his welcome? Do the bright-eyed Basque maidens scatter flowers in his path and Biscay's brave sons strain their stout arms to ring peals in his honour? Do the poor and hardy peasantry of Castile line the highway and shout *vivas* as he passes? Not so. If bells are rung and flowers strewn, it is by salaried ringers and by women hired, not to wail at a funeral, but to celebrate a marriage scarcely more auspicious. If hurrahs, few and faint, are heard, those who utter are paid for them. Sullen looks and lowering glances greet the Frenchman, as, guarded by two thousand men-at-arms, he hurries to the capital where his bride awaits him. In all haste, amidst the murmurs of a deeply offended people, the knot is tied. Not a moment must be lost, lest something should yet occur to mar the marriage feast. And now for the rewards, shamefully showered upon the venal abettors of this unpopular union. A dukedom and grandeeship of Spain for the ambassador's infant son; titles to mercenary ministers; high and time-honoured decorations, once reserved as the premium for exalted valour and chivalrous deeds—to corrupt deputies; diamond snuff-boxes, jewels and gold, to the infamous

writers of prostituted journals; Christina rejoices; her *Camarilla* are in ecstasies; Bresson rubs his hands in irrepressible exultation; in his distant capital the French monarch heaves a sigh of relief and satisfaction as his telegraph informs him of the *fait accompli*. Then come splendid bullfights and monster *pucheros*, to dazzle the eyes and stop the mouths of the multitude. *Pan y toros—panisac circenses*—to the many-headed beast. And in all haste the prince hurries back to Paris with his bride, to receive the paternal benediction, the fraternal embrace, and the congratulations of the few score individuals, who alone, in all France, feel real pleasure and profit in his marriage. And thus, by foreign intrigue and domestic treachery, has the independence of Spain been virtually bought and sold.

ST MAGNUS', KIRKWALL.

See yonder, on Pomona's isle—
Where winter storms delight to roam;
But beaming now with summer's smile—
The Sainted Martyr's sacred dome!

Conspicuous o'er the deep afar
It sheds a soft and saving ray,
A landmark sure, a leading star,
To guide the wanderer on his way.

It tells the seaman how to steer
Through swelling seas his labouring bark
It helps the mourner's heart to cheer,
And speeds him to his heavenly mark.

With joy of old this northern sky
Saw holy men the fabric found,
To lift the Christian Cross on high,
And spread the Healer's influence round.

By beauty's power they sought to raise
Rude eyes and ruder hearts to Heaven:
They sought to speak their Maker's praise
With all the skill His grace had given.

And now, where passions dark and wild
Were foster'd once at Odin's shrine,
A people peaceful, just, and mild,
Live happy in that light divine.

Preserved through many a stormy age,
Let pious zeal the relic guard:
Nor Time with slow insidious rage

Destroy what fiercer foes have spared.



THE GAME LAWS.

From our youth upwards we have entertained a deep feeling of affection for the respectable fraternity of the Quakers. Our love, probably, had its date and origin from very early contemplation of a print, which represented an elderly pot-bellied individual, with a broad-brimmed hat and drab terminations, in the act of concluding a treaty with several squatting Indians, only redeemed from a state of nature by a slight garniture of scalps and wampum. Underneath was engraved a legend which our grand-aunt besought us to treasure in our memory as a sublime moral lesson. It ran thus:—THE BLOODLESS TRIUMPH, OR PENN'S TREATY WITH THE CHIEFS; and we were told that the fact thereby commemorated was one of the most honourable achievements to be found in the pages of general history. With infantine facility we believed in the words of the matron. No blood or rapine—no human carcasses or smoking wigwams, deformed the march of the Quaker conqueror. Beneath a mighty tree, in the great Indian wilderness, was the patriarchal council held; and the fee-simple of a territory, a good deal larger than an average kingdom, surrendered, with all its pendicles of lake, prairie, and hunting-ground, to the knowing philanthropist, in exchange for some bales of broad-cloth, a little cutlery, a liberal allowance of beads, and a very great quantity, indeed, of adulterated rum and tobacco. Never, we believe, since Esau sold his birth-right, was a tract of country acquired upon terms so cheap and easy. Some faint idea of this kind appears to have struck us at the time; for, in answer to some question touching the nature of the goods supposed to be contained in several bales and casks which were prominently represented in the picture, our relative hastily remarked, that she did not care for the nature of the bargain—the principle was the great consideration. And so it is. William Penn unquestionably acted both wisely and well: he brought his merchandise to a first-rate market, and left a valuable legacy of acuteness to his children and faithful followers. Our grand-aunt—rest her soul!—died in the full belief of ultimate Pennsylvanian solvency. She could not persuade herself, that the representatives of the man who had acquired a principality at the expense of a ship-load of rubbish, would prove in any way untrue to

their bonds; and by her last will and testament, whereof we are the sole executor, she promoted us to the agreeable rank of a creditor on the Pennsylvanian government. If any gentleman is desirous to be placed in a similar position, with a right to the new stock which has been recently issued in lieu of a monetary dividend, he may hear of an excellent investment by an early application to our brokers. We also are most firm believers in the fact of American credit, and we shall not change our opinion—at least until we effect the sale.

All this, however, is a deviation from our primary purpose, which was to laud and magnify the Brotherhood. We repeat that we loved them early, and also that we loved them long. It is true that some years ago a slight estrangement—the shadow of a summer cloud—disturbed the harmony which had previously existed between Maga and the Society of Friends. A gentleman of that persuasion had been lost somewhere upon the skirts of Helvellyn, and our guide and father, Christopher, in one of those sublime prose-pœans which have entranced and electrified the world, commemorated that apotheosis so touchingly, that the whole of Christendom was in tears. Unfortunately, some passing allusion to the garments of the defunct Obadiah, grated uncomfortably on the jealous ear of Darlington. An affecting picture of some ravens, digging their way through the folds of the double-milled kerseymere, was supposed to convey an occult imputation upon the cloth, and never, since then, have we stood quite clear in the eyes of the offended Conventicle. Still, that unhappy misunderstanding has by no means cooled our attachment. We honour and revere the Friends; and it was with sincere pleasure that we saw the excellent Joseph Pease take his seat and lift up his voice within the walls of Parliament. Had Pease stood alone, we should not now, in all human probability, have been writing on the subject of the game laws.

We are, however, much afraid that a great change has taken place in the temper and disposition of the Society. Formerly a Quaker was considered most essentially a man of peace. He was reputed to abhor all strife and vain disputation—to be laconic and sparing in his speech—and to be absolutely crapulous with humanity. We would as soon have believed in the wrath of doves as in the existence of a cruel Quaker; nor would we, during the earlier portion of our life, have entrusted one of that denomination with the drowning of a superfluous kitten. Barring a little absurd punctilio in the

matter of payment of their taxes—at all times, we allow, a remarkably unpleasant ceremony—the public conduct of our Friends was blameless. They seldom made their voices heard except in the honourable cause of the suffering or the oppressed; and with external politics they meddled not at all, seeing that their fundamental ideas of a social system differed radically from those entertained by the founders of the British constitution. Such, and so harmless, were the lives of our venerated Friends, until the demon of discord tempted them by a vision of the baleful hustings.

Since then we have remarked, with pain, a striking alteration in their manner. They are bold, turbulent, and disputatious to an almost incredible extent. If there is any row going on in the parish, you are sure to find that a Quaker is at the bottom of it. Is there to be a reform in the Police board—some broad-brimmed apostle takes the chair. Are tithes obnoxious to a Chamber of Commerce—the spokesman of the agitators is Obadiah. Indeed, we are beginning to feel as shy of a quarrel with men of drab as we formerly were with the militant individuals in scarlet. We are not quite so confident as we used to be in their reliance upon moral force, and sometimes fear the latent power which lurks in the physical arm.

Of these champions, by far the most remarkable is Mr John Bright, who, in the British House of Commons, represents the town of Durham. The tenets of his peaceful and affirmative creed, are, to say the least of it, in total antagonism to his character. Ever since he made his first appearance in public, he has kept himself, and every one around him, in perpetual hot-water. In the capacity of Mr Cobden's bottle-holder, he has displayed considerable pluck, for which we honour him; and he is not altogether unworthy to have been included in that famous eulogy which was passed by the late Premier—no doubt to the cordial satisfaction of his friends—upon the Apostle of cotton and free-trade. The name of John is nearly as conspicuous as that of Richard in the loyal annals of the League; and we are pleased to observe, that, like his great generalissimo, Mr Bright has preferred his claim for popular payment, and has, in fact, managed to secure a few thousands in return for the vast quantity of eloquence which he has poured into the pages of Hansard. We are not of that old-fashioned school who object to the remuneration of our reformers. On the contrary, we think that patriotism, like every other trade, should be paid for; and with such notable examples, as O'Connell in Ireland, and the Gamaliel of Sir Robert

in the south, we doubt not that the principle hereafter will be acted upon in every case. The man who shall be fortunate enough to lead a successful crusade against the established churches, and to sweep away from these kingdoms all vestiges both of the mitre and the Geneva gown, will doubtless, after sufficient laudation by the then premier, of the talent and perseverance which he has exhibited throughout the contest, receive from his liberated country something of an adequate douceur. What precise pension is due to him who shall deliver us from the thralldom of the hereditary peerage, is a question which must be left to future political arithmetic. In the mean time, there are several minor abuses which may be swept away on more moderate scavenger wages; and one of these which we fully expect to hear discussed in the ensuing session of Parliament, is the existence of the Game laws.

Mr Bright, warned by former experience, has selected a grievance for himself, and started early in his expedition against it. The part of jackal may be played once, but it is not a profitable one; and we can understand the disappointed feelings of the smaller animal, when he is forced to stand by an-hungered, and behold the gluttonous lion gorging himself with the choicest morsels of the chase. It must be a sore thing for a patriot to see his brother agitator pouching his tens and hundreds of thousands; whilst he, who likewise has shouted in the cause, and bestowed as much of his sweet breath as would have served to supply a furnace, must perforce be contented with some stray pittances, doled hesitatingly out, and not altogether given without grudging. No independent and thoroughgoing citizen will consent, for a second time, to play so very subsidiary a part; therefore he is right in breaking fresh ground, and becoming the leader of a new movement. It may be that his old monopolising ally shall become too plethoric for a second contest. Like the desperate soldier who took a castle and was rewarded for it, he may be inclined to rest beneath his laurels, count his pay, and leave the future capture of fortalices to others who have less to lose. A hundred thousand pounds carry along with them a sensation of ease as well as dignity. After such a surfeit of Mammon, most men are unwilling to work. They unbutton their waistcoats, eschew agitation, eat, drink, are merry, and become fat.

Your lean Cassius, on the contrary, has all the pugnacity of a terrier. He yelps at every body and every thing, is at perpetual warfare with the whole

of animated nature, and will not be quieted even by dint of much kicking. The only chance you have of relieving yourself from his everlasting yammering and impertinence, is to throw him an unpicked bone, wherewith he will retreat in double-quick time to the kennel. And of a truth the number of excellent bones which are sacrificed to the terriers of this world, is absolutely amazing. Society in general will do a great deal for peace; and much money is doled out, far less for the sake of charity, than as the price of a stipulated repose.

It remains, however, to be seen whether Mr Bright, under any circumstances, will be quiet. We almost doubt it. In the course of his stentorial and senatorial career, he has more than once, to borrow a phrase from *Boxiana*, had his head put into chancery; and some of his opponents, Mr Ferrand for example, have fists that smite like sledge-hammers. But Friend John is a glutton in punishment; and though with blackened eyes and battered lips, is nevertheless at his post in time. The best pugilists in England do not know what to make of him. He never will admit that he is beaten, nor does he seem to know when he has enough. It is true that at every round he goes down before some tremendous facer or cross-buttock, or haply performs the part of Antæus in consequence of the Cornish hug. No matter—up he starts, and though rather unsteady on his pins, and generally groggy in his demeanour, he squares away at his antagonist, until night terminates the battle, and the drab flag, still flaunting defiance, is visible beneath the glimpses of the maiden moon.

At present, Mr Bright's senatorial exertions appear to be directed towards the abolition of the Game laws. Early in 1845, and before the remarkable era of conversion which must ever render that year a notorious one in the history of political consistency, he moved for and obtained a select committee of the House to inquire into the operation of these laws. Mr Bright's speech upon that occasion was, in some respects, a sensible one. We have no wish to withhold from him his proper meed of praise; and we shall add, that the subject which he thus virtually undertook to expiscate, was one in every way deserving of the attention of the legislature. Of all the rights of property which are recognised by the English law, that of the proprietor or occupier of the land to the *feræ naturæ* or game upon it, is the least generally understood, and the worst defined. It is fenced by, and founded upon, statutes which, in the course of time, have undergone

considerable modification and revision; and the penalties attached to the infringement of it are, in our candid opinion, unnecessarily harsh and severe. Further, there can be no doubt, that in England the vice of poaching, next to that of habitual drinking, has contributed most largely to fill the country prisons. Instances are constantly occurring of ferocious assault, and even murder, arising from the affrays between gamekeepers and poachers; nor does it appear that the statutory penalties have had the effect of deterring many of the lower orders from their violent and predatory practices. On these points, we think an inquiry, with a view to the settlement of the law on a humane and equitable footing, was highly proper and commendable; nor should we have said a single word in depreciation of the labours of Mr Bright, had he confined himself within proper limits. Such, however, is not the case.

An abridgement of, or rather extracts from, the voluminous evidence which was taken before that select committee, has been published by a certain Richard Griffiths Welford, Esq., barrister at law, and member of the Royal Agricultural Society of England. With this gentleman hitherto, it is our misfortune or our fault that we have had no practical acquaintance; and judging from the tone, humour, and temper of the text remarks which are scattered throughout the volume, and the taste of the foot-notes appended, we do not see any reason to covet exuberant intimacy for the future. The volume is prefaced by a letter from Mr John Bright to the Tenant Farmers of Great Britain, which is of so remarkable a nature that it justly challenges some comment. The following extract is the commencement of that address:—"I am invited by my friend Mr Welford, the compiler of the abstract of the evidence given before the committee on the Game laws, to write a short address to you on the important question which is treated of in this volume. I feel that an apology is scarcely necessary for the liberty I am taking; the deep interest I have long felt in the subject of the Game laws, my strong conviction of its great importance to you as a class, and the extensive correspondence in reference to it which I have maintained with many of your respected body in almost every county of England and Scotland, seem to entitle me to say a few words to you on this occasion.

"From the perusal of this evidence—and it is but a small portion of that which was offered to the committee—you will perceive that, as capitalists and employers of labour, *you are neither asserting your just rights, nor*

occupying your proper position. By long-continued custom, which has now obtained almost the force of law, when you became tenants of a farm, you were not permitted to enjoy the advantages which pertain to it so fully as is the case with the occupiers of almost every other description of property. A farmer becomes the tenant of certain lands, which are to be the basis of his future operations, and the foundation of that degree of prosperity to which he may attain. To secure success, it is needful that capital should be invested, and industry and skill exercised; and in proportion as these are largely employed, in order to develop to the utmost extent the resources of the soil, will be the amount of prosperity that will be secured. The capital, skill, and industry, will depend upon the capacity of the farmer; but the reward for their employment will depend in no small degree upon the free and unfettered possession of the land—of its capabilities, of all that it produces, and of all that is sustained upon its surface. There is a mixture of feudalism and of commercial principles in your mode of taking and occupying land, which is in almost all cases obstructive, and in not a few utterly subversive, of improvement. You take a farm on a yearly tenantry, or on a lease, with an understanding, or a specific agreement, that the game shall be reserved to the owner; that is, you grant to the landlord the right to stock the farm—for which you are to pay him rent for permission to cultivate, and for the full possession of its produce—with pheasants, partridges, hares, and rabbits, to any extent that may suit his caprice. There may be little game when you enter upon the farm; but in general you reserve to yourselves no power to prevent its increase, and it may and often does increase so, as to destroy the possibility of profit in the cultivation of the farm. You plough, and sow, and watch the growing crops with anxiety and hope; you rise early, and eat the bread of carefulness; rent-day comes twice a-year with its inexorable demand; and yet you are doomed too frequently to see the fertility which Providence bestows and your industry would secure, blighted and destroyed *by creatures which would be deemed vermin*, but for the sanction which the law and your customs give to their preservation, and which exist for no advantage to you, and for no good to the public, but solely to afford a few day's amusement in the year to the proprietors of the soil. The seed you sow is eaten by the pheasants; your young growing grain is bitten down by the hares and rabbits; and your ripening crops are trampled and injured by a live stock which yields you no return, and which you cannot kill and take to market. No other class of

capitalists are subjected to these disadvantages—no other intelligent and independent class of your countrymen are burdened with such impositions."

We pity the intelligence of the reader who does not behold in these introductory paragraphs the symbol of the cloven foot. The sole object of the volume, for which Mr Bright has the assurance to stand as sponsor, is to sow the seeds of discord between the landowners and the tenants of England, by representing the former to the latter in the light of selfish monopolists, who, for the sake of some little sport or yearly battue, or, it may be, from absolute caprice, make havoc throughout the year, by proxy, of the farmers' property, and increase their stock of game whenever they have an opportunity, at his expense, and sometimes to his actual ruin. Such is the tendency of this book, which is compiled for general circulation; and which, we think, in many respects is calculated to do a deal of harm. As a real treatise or commentary upon the Game laws, it is worthless; as an attack upon the landed gentry, it will doubtless be read in many quarters with extreme complacency. Already, we observe, a portion of the press have made it a text-book for strong political diatribes; and the influence of it will no doubt be brought to bear upon the next general election. As we ourselves happen to entertain what are called very liberal opinions upon this subject of the Game laws, and as we maintain the principle that in this, as in every other matter, the great interests and rights of the community must be consulted, without reference to class distinctions—as we wish to see the property of the rich and the liberties of the poor respected—as we consider the union and cordial co-operation between landlord and tenant the chief guarantee which this country yet possesses against revolution, and the triumph of insolent demagogues—our remarks upon the present subject may not be ill-timed, or unworthy of the regard of those who think with us, that, in spite of recent events, there yet may be something to preserve.

But, first, let us consider who this gentleman is that comes forward, unsolicited, to tender his advice, and to preach agitation to the tenantry of Great Britain. He is one of those persons who rose with the League—one of those unscrupulous and ubiquitous orators who founded and reared their reputation upon an avowed hostility to the agricultural interests of the country. Upon this point there can be no mistake. John Bright, member for Durham, is a child of the corn, or rather the potato revolution, as surely as Anacharsis Clootz was the *enfant trouvé* of the Reign of Terror. With the

abstract merits of that question we have nothing to do at present. It is quite sufficient for us to note the fact, that he, in so far as his opportunities and his talents went, was amongst the most clamorous of the opponents to the protection of British agriculture; and that fact is a fair and legitimate ground for suspicion of his motives, when we find him appearing in the new part of an agricultural champion and agitator. It is not without considerable mistrust that we behold this slippery personage in the garb and character of Triptolemus. He does not act it well. The effects of the billy-roller are still conspicuous upon his gait—he walks ill on hobnails—and is clearly more conversant with devil's-dust and remnants than with tares. Some faint suspicion of this appears at times to haunt even his own complacent imagination. He is not quite sure that the farmers—or, in the elegant phraseology of the League, the hawbucks and chawbacons—whom he used to denounce as a race of beings immeasurably inferior in intellectual capacity to the rickety victims of the factories, will believe all at once in the cordiality and disinterestedness of their adviser; and therefore he throws out for their edification a specious bit of pleading, which, no doubt, will be read with conflicting feelings by some of those who participated in the late conversion. "You have been taught to consider me, and those with whom I have acted, as your enemies. You will admit that we have never deceived you—that we have never TAMELY SURRENDERED that which we have taught you to rely upon as the basis of your prosperity—that we have not pledged ourselves to a policy you approved, and then abandoned it; and as you have found me persevering in the promotion of measures, which many of you deemed almost fatal to your interests, but which I thought essential to the public good, so you will find me as resolute in the defence of those rights, which your own or your country's interests alike require that you should possess."

All this profession, however, we hope, will fail to persuade the farmers that their late enemy has become their sudden friend; and they will doubtless look with some suspicion upon the apocryphal catalogue of grievances which Mr Bright has raked together, and, with the aid of his associate, promulgated in the present volume. It is not our intention at present to extract or go over the evidence at large. We have read it minutely, and weighed it well. A great part of it is utterly irrelevant, as bearing upon questions of property and contract with which the legislature of no country could interfere, and which even Mr Bright, though not over scrupulous in

his ideas of parliamentary appropriation, has disregarded in framing the conclusions of the rejected report which he proposed for the adoption of the committee. That portion, however, we shall not pass over in silence. It is but right that the country at large should see that this volume has been issued, not so much for the purpose of obtaining a revision of the law, as of sowing discord amongst the agriculturists themselves; and it is very remarkable that Mr Bright, throughout the whole of his inflammatory address, *takes no notice whatever of the Game laws*, or their prejudicial effect, or their possible remedy by legislative enactment, but confines himself to denunciation of the landlords as a class antagonistic to the tenantry, and advice to the latter to combine against the game-preserving habits of the gentry.

Now this question between landlord and tenant has nothing to do with the Game laws. The man who purchases an estate, purchases it with every thing upon it. He has, strictly speaking, as much right to every wild animal which is bred or even lodges there—if he can only catch or kill them—as he has to the trees, or the turf, or any other natural produce. The law protects him in this right, in so far, that by complying with certain statutory regulations—one of which relates to revenue, and requires from him a qualification to sport, and another prescribes a period or rotation for shooting—he may, within his own boundaries, take every animal which he meets with, and may also prevent any stranger from interfering with or encroaching upon that privilege. We do not now speak of penalties for which the intruder may be liable. That is a separate question; at present we confine ourselves to the abstract question of right.

But neither game nor natural produce constitute that thing called RENT, without which, since the days of forays have gone by, a landowner cannot live. Accordingly, he proposes to let a certain portion of his domains to a farmer, whose business is to cultivate the soil, and to make it profitable. He does so; and unless a distinct reservation is made to the contrary, the right to take the game upon the farm so let, passes to the tenant, and can be exercised by him irrespective of the wish of the landlord. If, on the contrary, the landlord refuses to part with that right which is primarily vested in his person, and which, of course, he is at full liberty either to reserve or surrender, the proposing tenant must take that circumstance into consideration in his offer of rent for the farm. The game then becomes as

much a matter of calculation as the nature of the soil, the necessity of drainage, or the peculiar climate of the farm. The tenant must be guided by the principles of ordinary prudence, and make such a deduction from his offer as he considers will compensate him for the loss which his crop may sustain through the agency of the game. If he neglects to do this, he has no reasonable ground for murmuring—if he does it, he is perfectly safe. Such is the plain simple nature of the case, from which one would think it difficult to extract any clamant grievance, at least between the landlord and the tenant. No doubt the tenantry of the country individually and generally may, if they please, insist in all cases on a complete surrender of the game; and if they do, it is far more than possible that their desire will be universally complied with. But, then, they will have to pay higher rents. The landlord is no gainer in respect of game, nay, he is a direct loser; for the fact of his preservation and reserval of it reduces the amount of rent which he otherwise would receive, and, besides this, he is at much expense in preserving. Game is his hobby which he insists upon retaining: he does so, and he actually pays for it. Therefore, when a tenant states that he has lost so much in a particular year in consequence of the game upon his farm, that statement must be understood with a qualification. His crop may indeed have suffered to a certain extent; but then he has been paid for that deterioration already, the payment being the difference of rent, fixed between him and the landlord for the occupation of a game farm, less than what he would have offered for it had there been no game there, or had the right to kill it been conceded.

"O but," says Mr Bright, or some other of the *soi-disant* friends of the farmer, "there is an immense competition for land, and the farmers will not make bargains!" And whose fault is that? We recollect certain apothegms rather popular a short while ago, about buying in the cheapest and selling in the dearest market, and so forth, and we have always understood that the real price of an article is determined by the demand for it. If any farm is put up to auction under certain conditions, there is no hardship whatever in exacting the rent from the highest successful competitor. The reservation of the right to kill game is as competent to the proprietor as the fixing the rotation of the crops, or the conditions against scourging the soil. The landlord, when he lets a farm, does not by any means, as Mr Bright and his legal coadjutor appear to suppose, abandon it altogether to the free use of the tenant. He must of necessity make conditions, because he still retains

his primary interest in the soil; and if these were not made, the land would in all probability be returned to him after the expiry of the lease, utterly unprofitable and exhausted, it being the clear interest of the tenant to take as much out of it as possible during the currency of his occupation. Now all these conditions are perfectly well known to the competing farmer, and if he is not inclined to assent to them, he need not make an offer for the land. Does Mr Bright mean to assert that the competition for land is so great, that the tenant-farmers are absolutely offering more than the subjects which they lease are worth? If so, the most gullible person on the face of this very gullible earth would not believe him. To aver that any body of men in this country, are wilfully and avowedly carrying on a trade or profession at a certain loss, is to utter an absurdity so gross as to be utterly unworth a refutation. And if Mr Bright does not mean this, we shall thank him to explain how the competition for land is a practical grievance to the farmer.

Nevertheless, we are far from maintaining that the system of strict game preservation is either wise or creditable, and we shall state our arguments to the contrary hereafter. At present let us proceed with Mr Welford.

About one-half, or even more, of this volume, is occupied with evidence to prove that the preservation of game upon an estate is more or less detrimental to the crops. Who denies it? Pheasants, though they may feed a great deal upon wild seeds and insects, are unquestionably fond of corn—so are partridges; and hares and rabbits have too good taste to avoid a field of clover or of turnips. And shall this—says Mr Bright, having recourse to a late rhetoric—shall this be permitted in a Christian or a civilised country? Are there not thousands of poor to whom that grain, wasted upon mere vermin, would be precious? Are our aristocracy so selfish as to prefer the encouragement of brute animals to the lives of their fellow men? &c. &c; to all of which eloquent bursts the pious Mr Welford subjoins his ditto and Amen. For our own part, we can see no reason why hares, and pheasants, and partridges, should not be fed as well as Quakers. While living they are undoubtedly more graceful creatures, when dead they are infinitely more valuable. When removed from this scene of transitory trouble, Mr Bright, except in an Owhyhean market, would fetch a less price than an ordinary rabbit. Our taste may be peculiar, but we would far rather see half-a-dozen pretty leverets at play in a pasture field of an evening, than as many hulking members of the Anti-Corn-Law League performing a ponderous saraband.

Vermin indeed! Did Mr Bright ever see a Red-deer? We shrewdly suspect not; and if, peradventure, he were to fall in with the monarch of the wilderness in the rutting season, somewhere about the back of Schehallion or the skirts of the moor of Rannoch, there would be a yell loud enough to startle the cattle on a thousand hills, and a rapid disparition of the drab-coloured integuments into the bosom of a treacherous peat-bog. But a Red-deer, too, will eat corn, and often of a moonlight night his antlers may be seen waving in the crofts of the upland tenant; therefore, according to Mr Bright, he too is vermin, and must be exterminated accordingly.

And this brings us to Mr Welford's grand remedy, which is abundantly apparent from the notes and commentaries interspersed throughout the volume. This gentleman, in the plenitude of his consideration for the well-being of his country, is deliberately of opinion that game should be exterminated altogether! Here is a bloody-minded fellow for you with a vengeance!

"What! all my pretty chickens and their dam!
Did you say all?"

What! shall not a single hare, or pheasant, or partridge, or plover, or even a solitary grouse, be spared from the swoop of this destroying kite? Not one. Richard Griffiths Welford, Esquire, Barrister-at-law, has undertaken to rouse the nation from its deadly trance. Yet a few years, and no more shall the crow of the gorcock be heard on the purple heath, or the belling of the deer in the forest, or the call of the landrail in the field. No longer shall we watch at evening the roe gliding from the thicket, or the hare dancing across the lawn. They have committed a crime in a free-tradeland—battened incontinently upon corn and turnips—and, therefore, they must all die! Grain, although our ports are to be opened, has now become a sacred thing, and is henceforward to be dedicated to the use of man alone. Therefore we are not without apprehension that the sparrows must die too, and the thrushes and blackbirds—for they make sad havoc in our dear utilitarian's garden—and the larks, and the rooks, and the pigeons. Voiceless now must be our groves in the green livery of spring. There shall be no more chirping, or twittering, or philandering among the branches—no cooing or amorous dalliance, or pairing on the once happy eve of St Valentine. All the *fauna* of Britain—all the melodists of the woods—must die! In one vast pie must

they be baked, covered in with a monumental crust of triumphant flour, through which their little claws may appear supplicantly peering upwards, as if to implore some mercy for the surviving stragglers of their race. But stragglers there cannot be many. Timber, according to our patriotic Welford, is, "next to game, the farmer's chief enemy!" What miserable idiots our infatuated ancestors must have been! They thought that by planting they were conferring a boon upon their country; and in Scotland in particular they strove most anxiously to redeem the national reproach. But they were utterly wrong: Welford has said it. Timber is a nuisance—a sort of vegetable vermin, we suppose—so down must go Dodona and her oaks; and the pride of the forests be laid for ever low. Nothing in all broad England—and we fear also with us—must hereafter overtop the fields of wheat except the hedgerows! Timber is inimical to the farmer; therefore, free be the winds to blow from the German ocean to the Atlantic, without encountering the resistance of a single forest—no more tossing of the branches or swaying of the stems—or any thing save the steeples, fast falling in an age of reason into decay, the bulk of some monstrous workhouse, as dingy and cheerless as a prison, and the pert myriads of chimney-stalks of the League belching forth, in the face of heaven, their columns of smoke and of pollution! Happy England, when these things shall come to pass, and not a tree or a bush be left as a shelter for the universal vermin! No—not quite universal, for a respite will doubtless be given to the persecuted races of the badger, the hedgehog, the polecat, the weasel, and the stoat. All these are egg-eaters or game-consumers, and so long as they keep to the hedgerows and assist in the work of extermination, they will not only be spared but encouraged. Let them, however, beware. So soon as the last egg of the last English partridge is sucked, and the last of the rabbits turned over in convulsive throes, with the teeth of a fierce little devil inextricably fastened in its jugular—so soon as the rage of hunger drives the present Pariahs of the preserve to the hen-roost—human forbearance is at an end, and their fate also is sealed. The hen-harrier and the sparrowhawk, so long as they quarter the fields, pounce upon the imprudent robin, or strike down the lark while caroling upon the verge of the cloud, will be considered in our new state of society, as sacred animals as the Ibis. But let them, after having fulfilled their mission, deviate from the integrity of their ways, and come down upon a single ginger-pile, peeping his dirty way over the shards of a midden, towards his scraunching and be-draggled mother—and the race will be instantly proscribed. A few

years more, and, according to the system of Messrs Bright and Welford, not a single wild animal—could we not also get rid of the insects?—will be found within the confines of Great Britain, except the gulls who live principally upon fish; and possibly, should there be a scarcity of herring, it may be advisable to exterminate them also.

Here is a pretty state of matters! First, there is to be no more sporting. That, of course, in the eyes of Messrs Bright and Welford, who know as much about shooting as they do of trigonometry, is a very minor consideration; but even there we take leave to dissent. Gouty and frail as we are, we have yet a strong natural appetite for the moors, and we shall wrestle to the last for our privilege with the sturdiest broadbrim in Quakerdom. Our boys shall be bred as we were, with their foot upon the heather, in the manliest and most exhilarating of all pastimes; and that because we wish to see them brought up as Christians and gentlemen, not as puzzle-pated sceptics or narrow-minded utilitarian theorists. We desire to see them attain their full development, both of mind and body—to acquire a kindly and a keen relish for nature—to love their sovereign and their country—to despise all chicanery and deceit—and to know and respect the high-minded peasantry and poor of their native land. We have no idea that they shall be confined in their exercise or their sports to the public highway. We do not look upon this earth or island as made solely to produce corn for the supply of Mr Bright and his forced population. We wish that the youth of our country should be taught that God has created other beings besides the master and the mechanic—that the beasts of the field and the fowls of the air have a value in their Maker's eye, and that man has a commission to use them, but not to exterminate and destroy. "My opinion is," says Mr Bright, speaking with a slight disregard to grammar, of the sporting propensities of the landed gentry—"my opinion is, that there are other pursuits which it will better become them to follow, and which it will be a thousand times better for the country if they turn their attention to them." For Mr Bright's opinion, we have not the smallest shadow of respect. We can well believe that, personally, he has not the slightest inclination to participate in the sports of the field. We cannot for a moment imagine him in connexion with a hunting-field, or toiling over moor or mountain in pursuit of his game, or up to his waist in a roaring river with a twenty-pound salmon on his line, making its direct way for the cataract. In all and each of these situations we are convinced that he would be utterly

misplaced. We can conceive him, and no doubt he is, much at home in the superintendence of the gloomy factory—in the centre of a hecatomb of pale human beings, who toil on day and night in that close and stifling atmosphere, as ceaselessly and almost as mechanically as the wheels which drone and whistle and clank above and around them—in the midst of his stores of calico, and cotton, and corduroy—in the midnight councils of the grasping League, or the front of a degraded hustings. But from none of these situations whatever, has he any right to dictate to the gentlemen of Britain what they should do, or what they should leave undone. He has neither an eye for nature, nor a heart to participate in rural amusements. And a very nice place an English manor-house would be under his peculiar superintendence and the operation of the new regime! In the morning we should meet, ladies and gentlemen, in the breakfast-room, all devoutly intent upon the active demolition of the muffins. Tea and coffee there are in abundance—but not good, for the first has the flavour of the hedges, and the second reminds us villanously of Hunt's roasted corn. There are eggs, however, and on the sideboard rest a large round of beef, with a thick margin of rancid yellow fat, and a ham which is literal hog's-lard. There are no fish. The trouting stream has been turned from its natural course to move machinery, and now rolls to the shrinking sea, not in native silver, but in alternate currents of indigo, ochre, or cochineal, according to the hue most in request for the moment at the neighbouring dye-work. In vain you look about for grouse-pie, cold partridge, snipe, or pheasant. You might as well ask for a limb of the ichthyosaurus as for a wing of these perished animals. Deuce a creature is there in the room except bipeds, and they are all of the manufacturing breed. You recollect the days of old, when your entry into the breakfast-room used to be affectionately welcomed by terrier, setter, and spaniel, and you wonder what has become of these ancient inmates of the family. On inquiry you are informed, that—being non-productive animals, and mere consumers of food which ought to be reserved for the use of man alone—they have one and all of them been put to death: and your host points rather complacently to the effigy of old Ponto, who has been stuffed by way of a specimen of an extinct species, and who now glares at you with glassy eyes from beneath the shelter of the mahogany sideboard. Tired of the conversation, which is principally directed towards the working of the new tariff, the last improvement in printed calicoes, and the prices of some kind of stock which appears to fluctuate as unaccountably as the barometer,

you rise from table and move towards the window in hopes of a pleasant prospect. You have it. The old park, which used to contain some of the finest trees in Britain—oaks of the Boscobel order, and elms that were the boast of the country—is now as bare as the palm of your hand, and broken up into potato allotments. The shrubbery and flower parterres, with their elegant terrace vases and light wire fences, have disappeared. There is not a bush beyond a few barberries, evidently intended for detestable jam, nor a flower, except some chamomiles, which may be infused into a medicinal beverage, and a dozen great stringy coarse-looking rhubarbs, enough to give you the dyspepsia, if you merely imagine them in a tart. At the bottom of the slope lies the stream whereof we have spoken already, not sinuous or fringed with alders as of yore; but straight as an arrow, and fashioned into the semblance of a canal. It is spanned on the part which is directly in front of the windows, by a bridge on the skew principle, the property of a railway company; and at the moment you are gazing on the landscape in a sort of admiring trance, an enormous train of coal and coke waggons comes rushing by, and a great blast of smoke and steam rolling past the house, obscures for a moment the utilitarian beauty of the scene. That dissipated, you observe on the other side of the canal several staring red brick buildings, with huge chimney-stalks stinking in the fresh, frosty morning air. These are the factories of your host, the source of his enviable wealth; and yonder dirty village which you see about half a mile to the right, with its squab Unitarian lecture room, is the abode of his honest artisans. Nevertheless, you see nobody stirring about. How should you? The whole population is comfortably housed, for the next twelve hours at least, within brick, and assisting the machinery to do its work. No idleness now in England. Had you, indeed, risen about five or six in the morning, when the clatter of a sullen bell roused you from your dreams of Jemima, you might have seen some scores of lanterns meandering like glow-worms along the miry road which leads from the village to the factories, until absorbed within their early jaws. That is the appointed time for the daily emigration, and until all the taskwork is done, no straggling whatever is permitted. The furthest object in view is a parallelogram Bastile on the summit of a hill, once wooded to the top, and well known to the rustics as the place where the fullest nuts and the richest May-flowers might be gathered, but now in turnips, and you are told that the edifice is the Union Workhouse.

Breakfast over, you begin to consider how you shall fill up the dreary vacuum which still yawns between you and dinner. Of course you cannot shoot, unless you are inclined to take a day at the ducks and geese, which would be rather an expensive amusement. You covet a ride, and propose a scamper across the country. Our dear sir, it is as much as your life is worth! What with canals and viaducts, and railways and hedgerows, you could not get over a mile without either being plunged into water, or knocked down by tow ropes, or run into by locomotives, or pitched from embankments, or impaled alive, or slain by a stroke of electricity from some telegraphic conductor! Recollect that we are not now living in the days of steeple-chasing. Then as to horses, are you not aware that our host keeps only two—and fine sleek, sturdy Flanders brutes they are—for the purpose of conveying Mrs Bobbins and her progeny to the meeting-house? There is no earthly occasion for any more expensive stud. The railway station is just a quarter of a mile from the door, and Eclipse himself could never match our new locomotives for speed. But you may have a drive if you please, and welcome. Where shall we go to? There used to be a fine waterfall at an easy distance, with rocks, and turf, and wildflowers, and all that sort of thing; and though the season is a little advanced, we might still make shift under the hazels and the hollies; could we not invite the ladies to accompany us, and extemporise a pic-nic? Our excellent friend! that waterfall exists no longer. It was a mere useless waste; has been blown up with gun-cotton; and the glen below it turned into a reservoir for the supply of a manufacturing town. The hazels are all down, and the hollies pounded into birdlime. And that fine old baronial residence, where there were such exquisite Claudes and Ruysdaels? Oh! that estate was bought by Mr Smalt the eminent dyer, from the trustees of the late Lord—the old mansion has been pulled down, a cottage *ornée* built in its place, and the pictures were long ago transferred to the National Gallery. And is there nothing at all worth seeing in the county? Oh yes! There is Tweel's new process for making silk out of sow's ears, and Bottomson's clothing mills, where you see raw wool put into one end of the machinery, and issue from the other in the shape of ready-made breeches. Then a Socialist lecture on the sin and consequences of matrimony will be delivered in the market-town at two o'clock precisely, by Miss Lewdlaw—quite a lady, I assure you—whom you will afterwards meet at dinner. Or you may, if you please, attend the meeting of the Society for the Propagation of a Natural Religion, at which

the Rev. Mr Scampson will preside; or you may go down to the factories, or any where else you please, except the village, for there is a great deal of typhus fever in it, and we are a little apprehensive for the children! You decline these tempting offers, and resolve to spend the morning in the house. Is there a billiard room? How can you possibly suppose it? Time, sir, is money; and money is not to be made by knocking about ivory balls. But there is the library if you should like to study, and plenty material within it. Delighted at the prospect of passing some congenial though solitary hours, you enter the apartment, and, disregarding the models upon the table, which are intended to elucidate the silk and sow's-ear process, you ransack the book-shelves for some of your ancient favourites. But in vain you will search either for Shakspeare or Scott, Milton or Fielding, Jeremy Taylor or Blackwood's Edinburgh Magazine: all these are proscribed antiquities. Instead of these you will find Essays by Hampden, junior, and Ethics by Thistlewood, senior, Paine's Age of Reason, Jeremy Bentham's Treatises, Infanticide Vindicated, by Herod Virginius Cackell, Esq., Member of the Literary Institute of Owenstown, Cobden's Speeches, Wheal's Exposition of the Billy-roller, Grubb's Practical Deist, Welford's Influences of the Game Laws, and much more such profitable reading. What would you not give for a volume by Willison Glass! Disgusted with this literary miscellany, you chuck the Practical Deist into the fire, and walk up-stairs to rejoin the ladies. You find them in the drawing-room hard at work upon cross-stitch and pincushions for the great Bazar which is shortly to be opened under the auspices of the Anti-Christian League, and you feel for a moment like an intruder. But Emily Bobbins, a nice girl, who will have thirty thousand pounds when her venerated sire is conveyed to the Mausoleum of the Bobbinses, and who has at this present moment a very pretty face, trips up and asks you for a contribution to her yearly album. Yearly?—the phrase is an odd one, and you crave explanation. The blooming virgin informs you that she edits an annual volume, popular in certain circles, for the Society for the Abolition of all Criminal Punishment, she being a corresponding Member; and she presents you with last year's compilation. You open the work, and find some literary *bijouterie* by the disciples of the earnest school, poems on the go-a-head principle, and tales under such captivating titles as the Virtuous Poacher, Theresa, or the Heroine of the Workhouse, and Walter Truck, an Easy Way with the Mechanic. There are also sundry political fragments by the deep-thinkers of the age, from which you

discover that Regicide is the simplest cure for "Flunkeyism, Baseness, and Unveracity," and that the soundest philosophers of the world are two gentlemen, rejoicing in the exotic names of Sauerteig and Teufelsdröckh. You, being a believer in the Book of Common Prayer, decline to add your contribution to the Miscellany, and make the best of your way from the house for a stroll upon the public highway. For some hours you meander through the mud, between rows of stiff hedges; not a stage-coach, nor even a buggy is to be seen. You sigh for the old green lanes and shady places which have now disappeared for ever, and you begin to doubt whether, after all, regenerated England is the happiest country of the universe. It appears an absolute desert. At a turn of a road you come in sight of a solitary venerable crow—the sole surviving specimen of his race still extant in the county—whose life is rendered bitter by a system of unceasing persecution. He mistakes you for Mr Richard Griffiths Welford, and, with a caw of terror, takes flight across a Zahara of Swedish turnips. On your way home you meet with three miserable children who are picking the few unwithered leaves from the hedges. You cross-question them, and ascertain that they receive a salary of twopence a-day from the owner of the truck-shop at the factory, in return for their botanical collections. You think of China, with a strong conviction of the propriety of becoming a Mandarin.

At dinner you are seated betwixt Miss Lewdlaw and the Rev. Mr Scampson. The appearance of the lady convinces you that she has excellent reasons for her deep-rooted hatred of matrimony—for what serpent (in his senses) would have tempted that dropsical Eve? The gentleman is a bold, sensual-lipped, pimply individual, attired in a rusty suit of black, the very picture of a brutal Boanerges. He snorts during his repast, clutches with his huge red fingers, whereof the nails are absolute ebony, at every dish within his reach, and is constantly shouting for a dram. The dinner is a plentiful one, but ill-cooked and worse served; and the wines are simply execrable. Very drearily lags the time until the ladies rise to retire, a movement which is greeted by Mr Scampson with a coarse joke and a vulgar chuckle. Then begin the sweets of the evening. Old Bobbins draws your especial attention to his curious old free-trade port, at eighteen shillings the dozen; and very curious, upon practical examination, you will find it. After three glasses, you begin to suspect that you have swallowed a live crab unawares, and you gladly second Mr Scampson in his motion for something hot. The conversation then becomes political, and, to a certain extent, religious.

Bobbins, who has a brother in Parliament, is vehement in his support of the Twenty Hours' Labour Bill, and insists upon the necessity of a measure for effectually coercing apprentices. Bugsley, his opposite neighbour, can talk of nothing but stock and yarn. But Scampson, in right of his calling, takes the lion's share of the conversation. He denounces the Church, not yet dis-established—hopes to see the day when every Bishop upon the Bench shall be brought to the block—and stigmatises the Universities as the nests of bigotry and intolerance. With many oaths, he declares his conviction that Robespierre was a sensible fellow—and as he waxes more furious over each successive tumbler, you wisely think that there may be some danger in contradicting so virulent a champion, and steal from the room at the first convenient opportunity. In the drawing-room you find Miss Lewdlaw descanting upon her favourite theories. She is expounding to Emily Bobbins her rights as a socialist and a woman, and illustrating her lecture by some quotations from the works of Aurora Dudevant. The sweet girl, evidently under the magnetic influence of her preceptress, regards you with a humid eye and flushed cheek as you enter; but having no fancy to approach the charmed circle of the Lewdlaw, you keep at the other end of the room, and amuse yourself with an illustrated copy of Jack Sheppard. In a short time, Bobbins, Bugsley, and Scampson, the last partially inebriated, make their appearance; and an animated erotic dialogue ensues between the gentleman in dubious orders, and the disciple of Mary Wolstonecraft. You begin to feel uncomfortable, and as Bugsley is now snoring, and Bobbins attempting to convince his helpmate of the propriety of more brandy and water, you desert the drawing-room, bolt up-stairs, pack your portmanteau, and go to bed with a firm resolution to start next morning by the earliest train; and as soon as possible to ascertain whether Jemima will consent to accompany you to Canada or Australia, or some other uncivilised part of the world where trees grow, waters run, and animals exist as nature has decreed, and where the creed of the socialist and jargon of the factory are fortunately detested or unknown.

Such, gentle reader, is the England which the patriots of the Bright school are desirous to behold; and such it may become if we meekly and basely yield to revolutionary innovations, and conciliate every demagogue by adopting his favourite nostrum. We have certainly been digressing a good deal further than is our wont; but we trust you will not altogether disapprove of our expedition to the new Utopia. We hope that your present,

and a great many future Christmasses may be spent more pleasantly; and that, in your day at least, peace may never be effected at the expense of a virtual solitude. Let us now consider what alterations may properly and humanely be made upon the present existing Game laws.

On the whole, we are inclined to agree with the resolutions adopted by the committee. These appear to recognise the principle of a qualified right of property in game, and that this property is now vested in the *occupier* of the soil. By this rule which may if necessary be declared by enactment, the tenant has at all times the power to secure the game to himself, unless he chooses to part with that right by special bargain. It is of course inconsistent with this qualified right of property, that any person should kill game upon lands which he is not privileged to enter; and the committee are therefore of opinion, that the violation of that right should still continue to be visited with legal penalties. But they think—and in this we most cordially agree with them—that considerable alteration should be made in the present penal code, and that, in particular, cumulative penalties for poaching should be abolished. It is monstrous that such penalties, to which the poorer classes in this country are most peculiarly liable, should be any longer allowed to exist, while the offence which these are intended to punish is in every proper sense a single one. We are inclined to get rid of every difficulty on this head by an immediate discontinuance of the certificates. The amount of revenue drawn from these is really insignificant, and in many cases it must stand in the way of a fair exercise of his privilege by the humbler occupant of the soil. If a poor upland crofter, who rents an acre or two from a humane landlord, and who has laid out part of it in a garden, should chance to see, of a clear frosty night, a hare insinuate herself through the fence, and demolish his winter greens—it is absolute tyranny to maintain, that he may not reach down the old rusty fowling-piece from the chimney, take a steady vizzy at puss, and tumble her over in the very act of her delinquency, without having previously paid over for the use of her gracious Majesty some four pounds odds; or otherwise to be liable in a penalty of twenty pounds, with the pleasant alternative of six months' imprisonment! In such a case as this the man is not sporting; he is merely protecting his own, is fairly entitled to convert his enemy into wholesome soup, and should be allowed to do so with a conscience void of offence towards God or man. We must have no state restrictions or qualifications to a right of property which may be enjoyed by the smallest cotter, and no protective laws to debar him

from the exercise of his principle. And therefore it is that we advocate the immediate abolition of the certificate.

What the remaining penalty should be is matter for serious consideration. It appears evident that the common law of redress is not sufficient. Game is at best but a qualified property; for your interest in it ceases the moment that it leaves your land; but still you *have* an interest, may be a considerable pecuniary loser by its infringement, and therefore you are entitled to demand an adequate protection. But then it is hardly possible, when we consider what human nature with all its powerful instincts is, to look upon poaching in precisely the same light with theft. By no process of mental ratiocination can you make a sheep out of a hare. You did not buy the creature, it is doubtful whether you bred it, and in five minutes more it may be your neighbour's property, and that of its own accord. You cannot even reclaim it, though born in your private hutch. Now this is obviously a very slippery kind of property; and the poor man—who knows these facts quite as well as the rich, and who is moreover cursed with a craving stomach, a large family, and a strong appetite for roast—is by no means to be considered, morally or equitably, in the same light with the ruffian who commits a burglary for the sake of your money, or carries away your sheep from the fold. It ought to be, if it is not, a principle in British law, that the temptation should be considered before adjudging upon the particular offence. The schoolboy—whose natural propensity for fruit has been roused by the sight of some far too tempting pippins, and who, in consequence, has undertaken the hazard of a midnight foray—is, if detected in the act, subjected to no further penalty than a pecuniary mulct or a thrashing, especially if his parents belong to the more respectable classes of society. And yet this is a theft as decided and more inexcusable, than if the nameless progeny of a vagrant should, hunger-urged, filch a turnip or two from a field, and be pounced upon by some heartless farmer, who considers that he is discharging every heavenly and earthly duty if he pays his rent and taxes with unscrupulous punctuality. It is a crying injustice that any trifling piccadillo on the part of the poor or their children, should be treated with greater severity than is used in the case of the rich. This is neither an equitable nor a Christian rule. We have no right to subject the lowest of the human family to a contamination from which we would shrink to expose the highest; and the true sense of justice and of charity, which, after all, we believe to be deeply implanted in the British heart, will, we trust, before

long, spare us the continual repetition of class Pariahs of infant years brought forward in small courts of justice for no other apparent reason than to prove, that our laws care more leniently for the rich than they do for the offspring of the poor.

While, therefore, we consider it just that game should be protected otherwise than by the law of trespass, we would not have the penalty made, in isolated cases, a harsh one. A trespass in pursuit of game should, we think, be punished in the first instance by a fine, not so high as to leave the labourer no other alternative than the jail, or so low as to make the payment of it a matter of no importance. Let Giles, who has intromitted with a pheasant, be mulcted in a week's wages, and let him, at the same time, distinctly understand the nature and the end of the career in which he has made the incipient step. Show him that an offence, however venial, becomes materially aggravated by repetition; for it then assumes the character of a daring and wilful defiance of the laws of the realm. For the second offence mulct him still, but higher, and let the warning be more solemnly repeated. These penalties might be inflicted by a single justice of the peace. But if Giles offends a third time, his case becomes far more serious, and he should be remitted to a higher tribunal. It is now almost clear that he has become a confirmed poacher, and determined breaker of the laws—it is more than likely that money is his object. Leniency has been tried without success, and it is now necessary to show him that the law will not be braved with impunity. Three months' imprisonment, with hard labour, should be inflicted for the purpose of reclaiming him; and if, after emerging from prison, he should again offend, let him forthwith be removed from the country.

Some squeamish people may object to our last proposal as severe. We do not think it so. The original nature of the offence has become entirely changed; for it must be allowed on all hands, that habitual breach of the laws is a very different thing from a casual effraction. It would be cruelty to transport an urchin for the first handkerchief he has stolen; but after his fourth offence, that punishment becomes an actual mercy. Nor should the moral effect produced by the residence of a determined poacher in any neighbourhood be overlooked. A poacher can rarely carry on his illicit trade without assistance: he entices boys by offering them a share in his gains, introduces them to the beer and the gin shop, and thus they are corrupted for

life. It is sheer nonsense to say that poaching does not lead to other crimes. It leads in the first instance to idleness, which we know to be the parent of all crime; and it rapidly wears away all finer sense of the distinction between *meum* and *tuum*. From poacher the transition to smuggler is rapid and easy, and your smuggler is usually a desperado. With all deference to Mr Welford, his conclusion, that poaching should be prevented by the entire extermination of game, is a most pitiable instance of calm imperturbable imbecility. He might just as well say that the only means of preventing theft is the total destruction of property, and the true remedy for murder the annihilation of the human race.

We agree also with the committee, that some distinction must be made between cases of simple poaching, and those which are perpetrated by armed and daring gangs. To these banditti almost every instance of assault and murder connected with poaching is traceable, and the sooner such fellows are shipped off to hunt kangaroos in Australia the better. But we think that such penalties as we have indicated above, would in most cases act as a practical detention from this offence, and would certainly remove all ground for complaint against the unnecessary severity of the law.

With regard to the destruction of crops by game, especially when caused by the preserves of a neighbouring proprietor, the committee seems to have been rather at a loss to deal. And there is certainly a good deal of difficulty in the matter. For on the one hand, the game, while committing the depredation, is clearly not the property of the preserver, and may of course be killed by the party to whose ground it passes: on the other hand, it usually returns to the preserve after all the damage has been done. This seems to be one of the few instances in which the law can afford no remedy. The neighbouring farmer may indeed either shoot in person, or let the right of shooting to another; and in most cases he has the power to do so—for if his own landlord is also a preserver, it is not likely that the damage will be aggravated—and he has taken his farm in the full knowledge of the consequences of game preservation. Still there must always remain an evil, however partial, and this leads us to address a few words to the general body of the game-preservers.

Gentlemen, some of you are not altogether without fault in this matter. You have given a handle to accusations, which your enemies—and they are the enemies also of the true interests of the country—have been eager and

zealous in using. You have pushed your privileges too far, and, if you do not take care, you will raise a storm which it may be very difficult to allay. What, in the name of common sense, is the use of this excessive preserving? You are not blamed, nor are you blamable, for reserving the right of sporting in your own properties to yourselves; but why make your game such utterly sacred animals? Why encourage their over-increase to such a degree as must naturally injure yourselves by curtailing your rent; and which, undoubtedly, whatever be his bargain, must irritate the farmer, and lessen that harmony and good-will which ought to exist betwixt you both? Is it for sport you do these things? If so, your definition of sport must be naturally different from ours. The natural instinct of the hunter, which is implanted in the heart of man, is in some respects a noble one. He does not, even in a savage state, pursue his game, like a wild beast of prey, merely for the sake of his appetite—he has a joy in the strong excitement and varied incidents of the chase. The wild Indian and the Norman disciple of St Hubert, alike considered it a science; and so it is even now to us who follow our pastime upon the mountains, and who must learn to be as wary and alert as the creatures which we seek to kill. The mere skill of the marksman has little to do with the real enjoyment of sport. That may be as well exhibited upon a target as upon a living object, and surely there is no pleasure at all in the mere wanton destruction of life. The true sportsman takes delight in the sagacity and steadiness of his dogs—in seeking for the different wild animals each in its peculiar haunt—and his relish is all the keener for the difficulty and uncertainty of his pursuit. Such at least is our idea of sport, and we should know something about it, having carried a gun almost as long as we can remember. But it is possible we may be getting antiquated in our notions. Two months ago we took occasion to make some remarks upon the modern murders on the moors, and we are glad to observe that our humane doctrine has been received with almost general acquiescence. We must now look to the doings at the Manor House, at which, Heaven be praised, we never have assisted; but the bruit thereof has gone abroad, and we believe the tidings to be true.

We have heard of game preserved over many thousands of acres, not waste, but yellow corn-land, with many an intervening belt of noble wood and copse, until the ground seems actually alive with the number of its animal occupants. The large, squat, sleek hares lie couched in every furrow; each thistle-tuft has its lurking rabbit; and ceaseless at evening is the crow

of the purple-necked pheasant from the gorse. The crops ripen, and are gathered in, not so plentifully as the richness of the land would warrant, but still strong and heavy. The partridges are now seen running in the stubble-fields, or sunning themselves on some pleasant bank, so secure that they hardly will take the trouble to fly away as you approach, but generally slip through a hedge, and lie down upon the other side. And no wonder; for not only has no gun been fired over the whole extensive domain, though the autumn is now well advanced; but a cordon of gamekeepers extends along the whole skirts of the estate, and neither lurcher nor poacher can manage to effect an entrance. Within ten minutes after they had set foot within the guarded territory, the first would be sprawling upon his back in the agonies of death, and the second on his way to the nearest justice of peace, with two pairs of knuckles uncomfortably lodged within the innermost folds of his neckcloth. The proprietor, a middle-aged gentleman of sedentary habits, does not, in all probability, care much about sporting. If he does, he rents a moor in Scotland, where he amuses himself until well on in October, and then feels less disposed for a tamer and a heavier sport. But in November he expects, after his ancient hospitable fashion, to have a select party at the manor-house, and he is desirous of affording them amusement. They arrive, to the number, perhaps, of a dozen males, some of then persons of an elevated rank, or of high political connexion. There is considerable commotion on the estate. The staff of upper and under keepers assemble with a large train of beaters before the baronial gateway. They bring with them neither pointers nor setters—these old companions of the sportsman are useless in a battue; but there are some retrievers in the leash, and a few well-broken spaniels. It is quite a scene for Landseer—that antique portico, with the group before it, and the gay and sloping uplands illuminated by a clear winter's sun. The guests sally forth, all mirth and spirits, and the whole party proceed to an appointed cover. Then begins the massacre. There is a shouting and rustling of beaters: at every step the gorgeous pheasant whirs from the bush, or the partridge glances slopingly through the trees, or the woodcock wings his way on scared and noiseless pinion. Rabbits by the hundred are scudding distractedly from one pile of brushwood to another. Loud cries of "Mark!" are heard on every side, and at each shout there is the explosion of a fowling-piece. No time now to stop and load. The keeper behind you is always ready with a spare gun. How he manages to cram in the powder and shot so quickly is an absolute matter of marvel; for you let

fly at every thing, and have lost all regard to the ordinary calculations of distance. You had better take care of yourself, however, for you are getting into a thicket, and neither Sir Robert, who is on your right, nor the Marquis, who is your left-hand neighbour, are remarkable for extra caution, and the Baronet, in particular, is short-sighted. We don't quite like the appearance of that hare which is doubling back. You had better try to stop her before she reaches that vista in the wood. Bang!—you miss, and, at the same moment, a charge of number five, from the weapon of the Vavasour, takes effect upon the corduroys of your thigh, and, though the wound is but skin-deep, makes you dance an extempore fandango.

And so you go on from cover to cover, for five successive hours, through this rural poultry-yard, slaying, and, what is worse, wounding without slaying, beyond all ordinary calculation. You have had a good day's amusement, have you? Our dear sir, in the estimation of any sensible man or thorough sportsman, you might as well have been amusing yourself with a ride in the heart of Falkirk Tryst, or assisting at one of those German Jagds, where the deer are driven into inclosures, and shot down to the music of lute, harp, cymbal, dulcimer, sackbut, and psaltery. In fact, between ourselves, it is not a thing to boast of, and the amusement is, to say the least of it, an expensive one. For the sake of giving you, and the Marquis, and Sir Robert, and a few more, two or three days' sport, your host has sacrificed a great part of the legitimate rental of his estate—has maintained, from one end of the year to the other, all those personages in fustian and moleskin—and has, moreover, made his tenantry sulky. Do you think the price paid is in any way compensated by the value received? Of course not. You are a man of sense, and therefore, for the future, we trust that you will set your face decidedly against the battue system: shoot yourself, as a gentleman ought to do—or, if you do not care about it, give permission to your own tenantry to do so. Rely upon it, they will not abuse the privilege.

The fact is, there never should be more than two coveys in one field, or half-a-dozen hares in each moderate slip of plantation. That, believe us, with the accession you will derive from your neighbours, is quite sufficient to keep you in exercise during the season, and to supply your table with game. No tenant whatever will object to find food for such a stock. If you want more exciting sport, come north next August, and we shall take you to a moor which is preserved by a single shepherd's herd, where you may kill

your twenty brace a-day for a month, and have a chance of a red-deer into the bargain. But, if you will not leave the south, do not, we beseech you, turn yourself into a hen-wife, and become ridiculous as a hatcher of pheasants' eggs. The thing, we are told, has been done by gentlemen of small property, for the purpose of getting up an appearance of game: it would be quite as sane a proceeding to improve the beauty of a prospect by erecting cast-iron trees. Above all things, whatever you do, remember that you are the denizen of a free country, where individual rights, however sacred in themselves, must not be extended to the injury of those around you.

To say the truth, we have observed with great pain, that a far too exclusive spirit has of late manifested itself in certain high places, and among persons whom we regard too much to be wholly indifferent to their conduct. This very summer the public press has been indignant in its denunciation of the Dukes of Atholl and Leeds—the one having, as it is alleged, attempted to shut up a servitude road through Glen Tilt, and the other established a cordon for many miles around the skirts of Ben-na-Mac-Dhui, our highest Scottish mountain. We are not fully acquainted with the particulars; but from what we have heard, it would appear that this wholesale exclusion from a vast tract of territory is intended to secure the solitude of two deer-forests. Now, we are not going to argue the matter upon legal grounds—although, knowing something of law, we have a shrewd suspicion that both noble lords are in utter misconception of their rights, and are usurping a sovereignty which is not to be found in their charters, and which was never claimed or exercised even by the Scottish Kings. But the churlishness of the step is undeniable, and we cannot but hope that it has proceeded far more on thoughtlessness than from intention. The day has been, when any clansman, or even any stranger, might have taken a deer from the forest, tree from the hill, or a salmon from the river, without leave asked or obtained: and though that state of society has long since passed away, we never till now have heard that the free air of the mountains, and their heather ranges, are not open to him who seeks them. Is it indeed come to this, that in bonny Scotland, the tourist, the botanist, or the painter, are to be debarred from visiting the loveliest spots which nature ever planted in the heart of a wilderness, on pretence that they disturb the deer! In a few years we suppose Ben Lomond will be preserved, and the summit of Ben Nevis remain as unvisited by the foot of the traveller as the icy peak of the

Jungfrau. Not so, assuredly, would have acted the race of Tullibardine of yore. Royal were their hunting gatherings, and magnificent the driving of the Tinchel; but over all their large territory of Atholl, the stranger might have wandered unquestioned, except to know if he required hospitality. It is not now the gate which is shut, but the moor; and that not against the depredator, but against the peaceful wayfaring man. Nor can we as sportsmen admit even the relevancy of the reasons which have been assigned for this wholesale exclusion. We are convinced, that in each season not above thirty or forty tourists essay the ascent of Ben-na-Mac-Dhui, and of that number, in all probability, not one has either met or startled a red deer. Very few men would venture to strike out a devious path for themselves over the mountains near Loch Aven, which, in fact, constitute the wildest district of the island. The Quaker tragedy of Helvellyn might easily be re-enacted amidst the dreary solitudes of Cairn Gorm, and months elapse before your friends are put in possession of some questionable bones. Nothing but enthusiasm will carry a man through the intricacies of Glen Lui, the property of Lord Fife, to whom it was granted at no very distant period of time out of the forfeited Mar estates, and which is presently rented by the Duke of Leeds; and nothing more absurd can be supposed, than that the entry of a single wanderer into that immense domain, can have the effect of scaring the deer from the limits of so large a range. This is an absurd and an empty excuse, as every deer-stalker must know. A stag is not so easily frightened, nor will he fly the country from terror at the apparition of the Cockney. Depend upon it, the latter will be a good deal the more startled of the two. With open mouth and large gooseberry eyes, he will stand gazing upon the vision of the Antlered Monarch; the sketch-book and pencil-case drop from his tremulous hands, and he stands aghast in apprehension of a charge of horning, against which he has no defence save a cane camp-stool, folded up into the semblance of a yellow walking-stick. Not so the Red-deer. For a few moments he will regard the Doudney-clad wanderer of the wilds, not in fear but in surprise; and then, snuffing the air which conveys to his nostrils an unaccustomed flavour of bergamot and lavender, he will trot away over the shoulder of the hill, move further up the nearest corrie, and in a quarter of an hour will be lying down amidst his hinds in the thick brackens that border the course of the lonely burn.

We could say a great deal more upon this subject; but we hope that expansion is unnecessary. Throughout all Europe the right of passage over waste and uncultivated land, where there never were and never can be inclosures, appears to be universally conceded. What would his Grace of Leeds say, if he were told that the Bernese Alps were shut up, and the liberty of crossing them denied, because some Swiss seigneur had taken it into his head to establish a chamois preserve? The idea of preserving deer in the way now attempted is completely modern, and we hope will be immediately abandoned. It must not, for the sake of our country, be said, that in Scotland, not only the inclosures, but the wilds and the mountains are shut out from the foot of man; and that, where no highway exists, he is debarred from the privilege of the heather. Whatever may be the abstract legal rights of the aristocracy, we protest against the policy and propriety of a system which would leave Ben Cruachan to the eagles, and render Loch Ericht and Loch Aven as inaccessible as those mighty lakes which are said to exist in Central Africa, somewhere about the sources of the Niger.

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FOOTNOTES:

[1] Mr Kohl fixes the date of the "melted lead" day at 1319, forgetting that Margaret, the Semiramis of the North, in whose reign the event occurred, did not reign in Denmark until about 1375. She died in 1412.

[2] In the year 1660, the different estates of Denmark made a voluntary surrender of their rights into the hands of their sovereign, who became by that act *absolute*: it is a fact unparalleled in the history of any other country. Up to the year 1834, this unlimited power was exercised by the kings, who, it must be said to their honour, never abused it by seeking to oppress or enslave their subjects. In the year 1834, however, Frederic VI., of his own free will and choice, established a representative government. The gift was by no means conferred in consequence of any discontent exhibited under the hitherto restrictive system. The intentions of the monarch were highly praiseworthy; their wisdom is not so clear, as, under the new law, the kingdom is divided into four parts—1. The Islands; 2. Sleswig; 3. Jutland; 4. Holstein; each having its own provincial assembly. The number of representatives for the whole country amounts to 1217. Each representative receives four rix-dollars a-day (a rix-dollar is 2s. 2½d.) for his services, besides his travelling expenses. The communication between the sovereign and the assembly is through a royal commissioner, who is allowed to vote, but not to speak.—See *Wheaton's History of Scandinavia*.

[3] Whilst in this neighbourhood, Mr Kohl should have explored the Gunderler Wood, where stone circles and earth mounds are yet carefully preserved, marking the site of one of the principal places of sacrifice in heathen times. At *Gyssselfelt*, a lay nunnery exists, founded as recently as the year 1799.

[4] It was by the Duchess of Newcastle, according to Pepys, that this play was written. In his Diary he says, under date of the 11th April 1667:—"To Whitehall, thinking there to have seen the Duchess of Newcastle coming this night to court to make a visit to the Queen. The whole story of this lady is a romance, and all she does is romantic. Her footmen in velvet coats, and herself in an antique dress, as they say; and was the other day at her own play, *The Humorous Lovers*, the most ridiculous thing that ever was wrote, but yet she and her lord mightily pleased with it; and she at the end made her respects to the players from her box, and did give them thanks." This was the eccentric dame who kept a maid of honour sitting up all night, to write down any bright idea or happy inspiration by which she might be visited.

[5] "The siege, so far as it depends on me, shall be pushed with all possible vigour, and I do not altogether despair but that, from the success of this campaign, we may hear of some advances made towards that which we so much desire. And I shall esteem it much the happiest part of my life, if I can be instrumental in putting a good end to the war, which grows so burdensome to our country, as well as to our allies."—*Marlborough to Lord Oxford*, Aug. 20, 1711; Coxe, vi. 92.

[6] Coxe, vi. 93.

[7] "As you have given me encouragement to enter into the strictest confidence with you, I beg your friendly advice in what manner I am to conduct myself. You cannot but imagine it would be a terrible mortification for me to pass by the Hague when our plenipotentiaries are there, and myself a stranger to their transactions; and what hopes can I have of any countenance at home if I am not thought fit to be trusted abroad?"—*Marlborough to the Lord Treasurer*, 21st Oct. 1711.

[8] I hear, that in his conversation with the Queen, the Duke of Marlborough has spoken against what we are doing; in short, his fate hangs heavy upon him, and he has of late pursued every counsel which was worst for him.—*Bolingbroke's Letters*, i. 480. Nov. 24, 1711.

[9] *Parl. Hist.*, 10th December 1711.

[10] SWIFT'S *Journal to Stella*, Dec. 8, 1711.—Swift said to the Lord Treasurer, in his usual ironical style, "If there is no remedy, your lordship will lose your head; but I shall only be hung, and so carry my body entire to the grave."—Coxe, vi. 148, 157.

[11] Cunningham, ii. 367.

[12] BURNET'S *History of his Own Times*, vi. 116.

[13] *Mém. de Torcy*, iii. 268, 269.

[14] SWIFT'S *Four Last Years of Queen Anne*, 59; *Continuation of RAPIN*, xviii. 468. 8vo edit.

[15] "The French will see that there is a possibility of reviving the love of war in our people, by the indignation that has been expressed at the plan given in at Utrecht."—*Mr Secretary St John to British Plenipotentiary*, Dec. 28, 1711.—BOLINGBROKE'S *Correspondence*, ii. 93.

[16] Coxe, vi. 189, 184.

[17] *Mém. de Villars*, ii. 197.

[18] "Her Majesty, my lord, has reason to believe that we shall come to an agreement upon the great article of the union of the monarchies, as soon as a courier sent from Versailles to Madrid can return. It is, therefore, the Queen's *positive command* to your Grace that *you avoid engaging in any siege, or hazarding a battle*, till you have further orders from her Majesty. I am, at the same time, directed to let your Grace know, that you are *to disguise the receipt of this order*; and her Majesty thinks you cannot want pretences for conducting yourself, without owning that which might at present have an ill effect if it was publicly known. P.S. I had almost forgot to tell your Grace that communication is made of this order *to the Court of France*, so that if the Marshal de Villars takes, in any private way, notice of it to you, your Grace will answer it accordingly."—*Mr Secretary St John to the Duke of Ormond*, May 10, 1712. BOLINGBROKE'S *Correspondence*, ii. 320.

[19] Eugene to Marlborough, June 9, 1712.—Coxe vi. 199.

[20] *Parl. Hist.*, May 28, 1712. *Lockhart Papers*, i, 392

[21] Coxe, vi. 192, 193.

[22] "No one can doubt the Duke of Ormond's bravery; but he is not like a certain general who led troops to the slaughter, to cause a great number of officers to be knocked on the head in a battle, or against stone walls, in order to fill his pockets by the sale of their commissions."—Coxe, vi. 196.

[23] *Lockhart Papers*, i. 392; Coxe, vi. 196, 199.

[24] The words of the treaty, which subsequent events have rendered of importance, on this point, were these:—Philippe V. King of Spain renounced "à toutes pretentions, droits, et titres que lui et sa postérité avaient ou pourraient avoir à l'avenir à la couronne de France. Il consentit pour lui et sa postérité que ce droit fût tenu et considéré comme passé au Duc de Berry son frère et à ses descendans et postérité *male*; et en défaut de ce prince, et de sa postérité *male*, au Duc de Bourbon son cousin et à ses *héritiers*, et aussi successivement à tous les princes du sang de France." The Duke of Saxony and his *male* heirs were called to the succession, failing Philippe V. and his male heirs. This act of renunciation and entail of the crown of Spain on *male* heirs, was ratified by the Cortes of Castile and Arragon; by the parliament of Paris, by Great Britain and France in the sixth article of the Treaty of Utrecht.—*Vide* SCHOELL, *Hist. de Trait.*, ii. 99, 105, and DUMONT, *Corp. Dipl.*, tom. viii. p. 1. p. 339.

[25] Coxe, vi. 205.

[26] Cunningham, ii. 432; Milner, 356.

[27] *Mém. de Villars*, ii. 396, 421.

[28] Mr Pitt to Sir Benjamin Keene.—*Memoirs of the Spanish Kings*, c. 57.

[29] *Life of Marlborough*, 175.

[30] "At the future congress, his Imperial Majesty will do all that is possible to sustain my Lord Duke in the principality of Mendleheim, but if it should so happen that any invincible difficulty should occur in that affair, his Imperial Highness will give his Highness an equivalent out of his own hereditary dominions."—*Emperor Charles VI. to Duchess of Marlborough*, August 8, 1712.—Coxe, vi. 248.

[31] Coxe, vi. 249, 251.

[32] Duke of Marlborough's Answer, June 2, 1713.

[33] Coxe, vi. 369, 373.

[34] Coxe, vi. 263.

[35] Lediard, 496. Coxe, vi. 384, 385.

[36] Coxe, vi. 384-387.

[37] Marlborough's Dispatches. *Blackwood's Magazine*, Nov. 1846, p.

[38] Marlborough House in London cost about L.100,000.—Coxe, vi. 399.

[39] SMITH's *Moral Sentiments*, ii. 158.

[40] BOLINGBROKE's *Letters on the Study of History*, ii. 172.

[41] "Il existe des malades dont les clous jai'lissent des chaussures quand ils sont étendus dans la direction du nord."

Transcriber's note

Minor typographical errors have been corrected without note. Irregularities and inconsistencies in the text have been retained as printed.

Mismatched quotes are not fixed if it's not sufficiently clear where the missing quote should be placed.

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Page 727: "that a ower should reside somewhere" ... the transcriber has added the missing "p" in "power".

Page 734: "All the sevants' hall combined," ... the transcriber has added "r" to read "servants".

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
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